

THE
CAILLAUX DRAMA

JOHN N. RAPHAEL

MAX GOSCHEN

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THE CAILLAUX DRAMA





Waiting.

THE CAILLAUX

DRAMA

BY

JOHN N. RAPHAEL

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MCMXIV

TO MY MOTHER

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I

THE STORY OF THE DRAMA

LATE on Monday afternoon, March 16, 1914, a rumour fired imaginations, like a train of gunpowder, all over Paris. In newspaper offices, in cafés, in clubs, people asked one another whether they had heard the news and whether the news were true. It seemed incredible. The wife of the Minister of Finance, said rumour, Madame Joseph Caillaux, one of the spoiled children of Paris society, had gone to the office of the *Figaro*, had waited there an hour or more for the managing editor, Monsieur Gaston Calmette, had been received by him, and had shot him dead in his own office. Nobody believed the story at first. Nobody could believe it. The very possibility of such a happening made it appear impossible. It was known, of course, that for some weeks before the *Figaro* had been waging an unsparing campaign against the Minister of Finance. It was known that Monsieur Caillaux had been and was infuriated at this campaign, but nobody believed that tragedy had followed. There was a rush to the *Figaro* office. Paris is a small town compared with London, and the *Figaro* building in the Rue Drouot is in a more central position in the throbbing news and sensation-loving heart of Paris than is either Piccadilly or Fleet Street in London. Within ten minutes of the first news of the tragedy there was a large crowd gathered in the Rue Drouot, and even those who could not get into the *Figaro* building soon received confirmation that the drama really had occurred. People had seen a large and luxurious motor-car stationed outside the building. There was nothing at all unusual in this, for the offices of the *Figaro* are the resort in the afternoon of many people with big motor-cars. What was unusual, and had attracted notice, was the fact that the driver of the car had worn the tricolour cockade which in Paris is worn only by the drivers of cars or carriages belonging to the Ministers. Even this evidence was in no way conclusive, for courtesy permits Ambassadors and Ministers accredited to the French Government by foreign countries to give their servants the red

white and blue cockade, and it was thought by many that the car had not belonged to a French Minister at all, but was the property of an Ambassador. Then the story gained precision. A woman, it was said, escorted by police, had come out of the *Figaro* office and seated herself in the car. The driver, as she entered, had removed his tricolour cockade and driven round the corner to the police-station. The doors of the *Figaro* office were closed and guarded. A few minutes later all Paris knew the story. In the big grey motor-car in which she had driven to the Rue Drouot that afternoon, Madame Caillaux had been taken in custody to the police-station in the Rue du Faubourg Montmartre. Monsieur Gaston Calmette, the editor of the *Figaro*, lay dying in his office. His friend, Doctor Reymond, who was with him, gave little hope that his life could be saved, and those of the members of the staff of the paper who could be approached could only murmur confirmation of the same sad news. Later in the evening Monsieur Calmette was taken out to Neuilly to the private hospital of another friend, Professor Hartmann. He died there just before midnight. Madame Caillaux had arrived in her motor-car at No. 26 Rue Drouot at about five o'clock, and had asked for Monsieur Calmette. She was told that Monsieur Calmette was out, but that he would certainly arrive before long. "Then I will wait," she said.



Agence Nouvelle—Photo, Paris

OFFICES OF *LE FIGARO* ON THE EVENING OF THE MURDER



Agence Nouvelle—Photo, Paris

GASTON CALMETTE IN HIS OFFICE AT THE *FIGARO*.

The customs of a Paris newspaper differ considerably from those of newspapers in London. They are, if I may put it so, more social. In a London newspaper office nearly all the business of the day with the outside world is transacted by express letter, by telegram, or over the telephone. The editor and his collaborators see fewer members of the public in a week in the offices of a London newspaper than the editor and collaborators of a Paris newspaper of the same importance see in an afternoon. The difference in the hours of newspaper work in Paris and in London, the difference in the characteristics of Frenchmen and of Englishmen have a great deal to do with this difference in newspaper methods. To begin with, the London newspaper goes to press much earlier than does the newspaper in Paris, for Paris papers have fewer and later trains to catch, and “copy” is therefore finished much later in Paris. The principal London editors are invariably in their offices at latest at noon every day, and prefer to see their visitors between the hours of twelve and four o’clock. In Paris practically every newspaper editor receives between five and seven in the evening, and it is

very rare to find heads of newspaper departments (the business side of course excepted) in their offices before five P.M. In other words the business of the day begins at about five o'clock in a Paris newspaper office, when the business of the evening begins in London and the business of the day is finished, and the real hard work of the night staff hardly begins until ten. The hour at which Madame Caillaux called therefore, to see Monsieur Calmette, was a perfectly normal one. She was told that he would certainly come in before long, and was asked for her name. She did not give it, said that she would wait, and was shown into a waiting-room where curiously enough she sat down directly beneath a large framed portrait of the King of Greece, who met his death at the hands of a murderer not very long ago. Madame Caillaux waited over an hour. We learned, afterwards, that in her muff, during this long period of waiting, she carried the little revolver which she had bought that day, and with which she was presently to shoot Monsieur Calmette to death. She grew impatient at length, made inquiries of one of the men in uniform whose duty it is to announce visitors, and learned that Monsieur Calmette, who had just arrived, was now in his office with his friend Monsieur Paul Bourget, the well-known novelist. "If Madame will give me her card," said the man. Madame Caillaux took a card from her case, slipped it into an envelope which was on the table by her side, and gave it to the man in uniform, who took it to Monsieur Calmette's office. Monsieur Calmette and Monsieur Bourget were on the point of leaving the *Figaro* office together for dinner. Monsieur Calmette showed his friend the visiting card which had just been handed to him. "Surely you will not see her?" Monsieur Bourget said. "Oh yes," said Monsieur Calmette, "she is a woman, and I must receive her." Monsieur Bourget left his friend as Madame Caillaux was shown into the room. A few moments afterwards the crack of a revolver startled everybody in the building. The interview had been a very short and tragic one. Madame Caillaux, drawing her revolver from her muff, had emptied all six chambers of it. Gaston Calmette fell up against a bookcase in the room. He was mortally wounded. There was a rush from all the other offices of members of the *Figaro* staff, the revolver was snatched from the woman's hand, a member of the staff who happened to be a doctor made a hasty examination, and a friend of M. Calmette's, Dr. Reymond, was telephoned for immediately. Somebody ran or telephoned for the police, but for a long time Madame Caillaux remained in a passage near the room where her victim lay

dying. Before the ambulance was brought on which Monsieur Calmette was carried out into the street he had time to give his keys and pocket-book to one of his collaborators, and to say farewell to them. Madame Caillaux had said very little before she was taken away. When the revolver was snatched from her hand she had said, "There is no more justice in France." She had also said: "There was no other way of putting a stop to it," alluding, no doubt, to the campaign in the *Figaro* against her husband. Then she had given herself into the hands of the police, and the curtain had fallen on this first act of the drama.



Agence Nouvelle—Photo, Paris

M. BOUCARD (THE EXAMINING MAGISTRATE) AND THE
DOCTORS LEAVING THE HOSPITAL WHERE M. CALMETTE DIED.

M. Boucard is in front.

The first feeling in Paris when the crime became generally known was one of stupefaction. The special editions of the evening papers appeared while Paris was at dinner, were snatched with wild eagerness from the hands of the hawkers, and nothing else was talked of all that evening.

Gradually, as details became known, a popular wave of indignation against the murderess became so fierce that the police, informed of it, took special measures to preserve order, and numbers of police with revolvers in the great leather cases which are worn in emergencies appeared in the streets. As a proof of the hold which the drama took immediately on the imagination of the public, it may be mentioned that the theatres were almost empty that evening and that in each entr'acte the audience rushed out of the theatre altogether to get further news, or if a few remained, they waited in the auditorium for news to appear on the screens usually devoted to advertisements, instead of strolling about the theatre corridors as they usually do. An immense crowd gathered round the police-station in the Rue du Faubourg Montmartre, where Madame Caillaux had been taken. The crowd, composed for the most part of riffraff—for the Rue du Faubourg Montmartre is a favourite haunt of the very worst kind of criminals—formed a surging mass in front of the police-station with which the strong force of police found it difficult to cope. Barely a quarter of an hour after the police commissioner, Monsieur Carpin, had begun to question Madame Caillaux, her husband arrived at the police-station in a taxicab. He was recognized and hooted by the crowd, but though his usually ruddy face was deadly pale he gave no other sign that he had noticed this hostility. The only man who did not recognize Monsieur Caillaux was the policeman on duty at the door. He had orders to allow no one to pass, and barred his passage. "I am the Minister of Finance," said Monsieur Caillaux, and pushing past the man, who stood and stared at him, he added, "You might as well salute me." Other Ministers and politicians of note had forced their way into the police-station, and a number of journalists were among them. Stories of all sorts circulated, one to the effect that Monsieur and Madame Caillaux had had a stormy scene, and that the Minister had reproached his wife bitterly for what she had done; another, which proved to be true later on, that he had telephoned to the Prime Minister, and resigned his portfolio and his seat in the Cabinet. Monsieur Carpin, the police commissioner, received some of the journalists in his office, and gave them a short report of what had occurred. "I saw Madame Caillaux at once when she came," he said. "She was perfectly self-possessed, but complained of feeling cold." "You are aware," she said, "of the campaign which Monsieur Gaston Calmette was waging against my husband. I went to some one, whose name I prefer not to mention, for advice how to put a stop to this campaign. He told me that it

could not be stopped. A letter was published. I knew that other letters were to be published too. This morning I bought a revolver, and this afternoon I went to the office of the *Figaro*. I had no intention of killing Monsieur Calmette. This I affirm, and I regret my act deeply.” I quote this first statement of Madame Caillaux as Monsieur Carpin repeated it to the journalists in his office on the evening on which the crime was committed, and as the *Figaro* and other newspapers reproduced it word for word next morning. As will be seen later, these first statements which the prisoner made are of vital importance. It was now nine o’clock. The journalists were told that Monsieur Boucard, the examining magistrate, had given orders for Madame Caillaux to be locked up in St. Lazare prison, and were asked to leave the police-station. The crowd outside in the streets had in some way learned that Madame Caillaux was going, and became denser and more menacing. The officials inside the police-station realized that there was danger to the safety of their prisoner, and heard the cries from the mob in the street below against the Minister of Finance. These were if anything more threatening than those which Madame Caillaux’s name provoked. All of a sudden a yell rose from below. “He’s getting out by the back way! Down with the murderer! Death to Caillaux!” The police-station has two entrances, one, the main one, in the Rue du Faubourg Montmartre, the other leading through a passage and a grocer’s shop out into a little side street, the Rue de la Grange Batelière. There was a wild stampede round to this little shop, and the first of the crowd to arrive there were in time to see Monsieur Caillaux and the Minister of Commerce, Monsieur Malvy, jump into a taxicab at the door. The cab got away amid a storm of shouts and imprecations. “Death to Caillaux! Murderer! Démission!—Resign! Resign!” Madame Caillaux, under the escort of two high police officials, had been smuggled out of the police-station through the grocery shop and taken away in another cab a few moments before her husband left, but the crowd had missed her. She was taken directly to St. Lazare prison, where she has been since, and locked into *pistole*, or cell No. 12, where Madame Steinheil, Madame Humbert, and other prisoners of notoriety awaited trial in their day.

On the morning of Monday, March 16, Madame Caillaux had held a conference at her house in the Rue Alphonse de Neuville with the President of the Civil Court, Monsieur Monier. It was to Monsieur Monier she referred when she told Monsieur Carpin and Monsieur Boucard, the

examining magistrate, that she had been informed by a person, whom she preferred not to mention, that there was no means of putting a stop to the *Figaro* campaign against her husband. A few moments after Monsieur Monier had left the Rue Alphonse de Neuville Madame Caillaux was called up on the telephone by Monsieur Pierre de Fouquières of the Protocol. There was to be a dinner-party, in honour of the President of the Republic, at the Italian Embassy in Paris that evening, and Monsieur de Fouquières rang Madame Caillaux up on the telephone to know at what time exactly she and her husband would arrive at the Embassy. She told him that they would be there punctually at a quarter-past eight, and reminded Monsieur de Fouquières, at the same time, that she was counting on his help to place her guests at an important dinner which was to be given at the Ministry of Finance on March 23. This dinner of course never took place. After her conversation with Monsieur de Fouquières, Madame Caillaux telephoned to her hairdresser, whom she ordered to call and do her hair at seven o'clock for the dinner at the Italian Embassy. At eleven o'clock that morning, her manicure called, and Madame Caillaux then drove to her dentist, Dr. Gaillard, whom, on leaving, she arranged to see again on the Wednesday at half-past two. From the dentist's Madame Caillaux drove to the Ministry of Finance, to fetch her husband. On her way back in the car with him to the Rue Alphonse de Neuville, Madame Caillaux told her husband of her conference with the President of the Civil Tribunal, Monsieur Monier, that morning, and of his declaration that there was no legal means to put an end to the campaign in the *Figaro* against the Minister of Finance. Monsieur Caillaux is a hot-tempered man. He flew into a violent rage, and declared to his wife "Very well then! If there's nothing to be done I'll go and smash his face." From my personal knowledge of Monsieur Joseph Caillaux, from my personal experience of his attitude when anything annoys him, I consider it quite probable that his rage would cause him to lose quite sufficient control of himself to speak in this manner under the circumstances. On one occasion, not very long ago, Monsieur Caillaux received me in his office at the Ministry of Finance and spoke of his causes of complaint against the British Ambassador, Sir Francis Bertie. Although he was talking to an English journalist about the Ambassador of his king his language on that occasion was so unmeasured, and his anger was expressed with such freedom, that in the interview I published after our conversation I was obliged to suppress many of the things he said. In fact when he read some

of them in the interview which I took to the Ministry to show him before I had it telephoned to London, Monsieur Caillaux himself suggested their suppression. Madame Caillaux knew, she has said afterwards, that her husband's anger and violence of temper were such that his threat was by no means a vague one. She has declared that it was this threat of Monsieur Caillaux's which gave her the first idea of taking her husband's place, and going to inflict personal chastisement on the editor of the *Figaro*. It is a truism that small occurrences often have results out of all proportion to their own importance. That morning Monsieur and Madame Caillaux made a very bad luncheon. Madame Caillaux, who has been under medical treatment for some time, ate nothing at all, and the bad luncheon threw her husband into another rage. He was so angry that they almost quarrelled, and Madame Caillaux, to pacify him, promised that she would dismiss the cook there and then, go to a registry office that afternoon, and secure another cook for the next day. Monsieur Caillaux went back to the Ministry of Finance immediately after luncheon, and his wife, who had an engagement for tea at the Hôtel Ritz in the afternoon, rang for her maid to put her into an afternoon dress. She says that she felt very ill while she was dressing, and very worried by her husband's outburst with regard to the *Figaro* campaign against him. She felt that she must do all she could, she has declared, to prevent the publication of certain letters which she believed, rightly or wrongly, that it was Monsieur Calmette's intention to publish in the *Figaro*. At half-past two that afternoon, before going out, Madame Caillaux was, she has told the examining magistrate, taken ill in her room and obliged to lie down, and she described with great vividness a sort of vision which she declares passed like a picture on the cinematograph before her eyes. "I knew my husband to be a good swordsman, and a good pistol shot," she said. "I saw him killing Monsieur Calmette, I saw his arrest, I saw him in the Assize Court standing in the dock. All the terrible consequences of the ghastly drama which I foresaw passed before my eyes, and little by little I made up my mind to take my husband's place, and I decided to go and see Monsieur Calmette that same evening."

As I have already explained, Madame Caillaux knew, as every Parisian knows, that the most likely time to find a newspaper editor in his office was after five o'clock, and, as we know, she had promised to be at the Italian Embassy at a quarter-past eight and had telephoned to her hairdresser to go to her and dress her hair in the Rue Alphonse de Neuville at seven. It is

fairly clear therefore, that when she left her house at three she had no very definite idea of what she was going to do. At three o'clock Madame Caillaux left home—the home to which neither she nor her husband has returned since—and drove in her grey motor-car to a registry office, where she engaged a new cook for the next day. She then drove to the sale-rooms of the armourer Monsieur Gastinne-Renette in the Avenue d'Antin. Even then, she declares, she had no intention of killing the editor of the *Figaro*, but intended to ask him to cease his campaign against her husband, to refrain from publishing letters which she was convinced he intended to publish, and in the event of his refusal, to “show him of what she was capable” (these words are a quotation from her statement to the examining magistrate, Monsieur Boucard), and fire her revolver not to kill, but to wound him. I wish it to be understood, clearly, that I am quoting the foregoing from the evidence of Madame Caillaux herself. I do not wish in any way to comment on this evidence. It is my object merely to try, to the best of my endeavour, to place before the public the state of this wretched woman's mind immediately before the crime which she committed, and by so doing to allow my readers to form their own judgment of her motives. Madame Caillaux was well known to Monsieur Gastinne-Renette, who for that matter knows everybody in Paris society. She told the armourer that she would be motoring a good deal, by herself, between Paris and her husband's constituency of Mamers, during Monsieur Caillaux's coming electoral campaign, and that she wanted a revolver for her own protection. The first weapon which was shown her did not satisfy her. It was expensive, costing £3 19s. 6d., and she hurt her finger, she says, when she pulled the trigger. She was then shown a Browning which cost only £2 4s., and worked more easily. She went downstairs to the shooting-gallery below Monsieur Gastinne-Renette's sale-rooms, and tried her new acquisition, firing six shots from it. By a tragic coincidence her shots struck the metal figure in almost exactly the same places as the bullets she fired afterwards struck her victim. She then put six bullets into the loader, and she told the examining magistrate that her first intention was to put only two cartridges in, but that the salesman was watching her and she thought he might think it strange if she only loaded her revolver partially. At this point in Madame Caillaux's examination, Monsieur Boucard interrupted her. “If you did this,” said the magistrate, “you must surely have made your mind up to murder Monsieur Calmette?” “Not at all,” said Madame Caillaux. “The thought in my mind

was that if he refused to stop his campaign I would wound him.” From the armourer’s, Madame Caillaux drove home again to the Rue Alphonse de Neuville, where she wrote a note to her husband. In this note, which is now in the hands of the lawyers, she wrote, “You said that you would smash his face, and I will not let you sacrifice yourself for me. France and the Republic need you. I will do it for you.” I have not seen this letter myself. My quotation from it is taken from the report in the French papers of March 25 of the examination of Madame Caillaux by Monsieur Boucard. She gave this letter to her daughter’s English governess Miss Baxter, telling her that she was to give it to Monsieur Caillaux at seven o’clock if she had not returned home by then. It seems only fair to believe that Madame Caillaux at that time, while she foresaw the likelihood of a stormy interview with the editor of the *Figaro*, did not intend committing murder. Madame Caillaux’s engagement for tea with friends was at the Hôtel Ritz, but she did not go there to keep it. She arrived at the *Figaro* office exactly at a quarter-past five, and she waited until a little after six o’clock for Monsieur Calmette to come in. When she heard that he had arrived, she asked one of the men in uniform to tell him that a lady whom he knew, but who did not wish to give her name, wanted to speak to him. “He will only receive you,” said the man, “if you let him know your name.” Madame Caillaux then, as I have already said, put her visiting card in an envelope, and sent it in to Monsieur Calmette. In her evidence to the examining magistrate Madame Caillaux stated that she heard Monsieur Calmette a few moments afterwards say aloud, “Let Madame Caillaux come in.” This statement of the prisoner is flatly contradicted by the man who took her card in to the editor of the *Figaro*, and by Monsieur Paul Bourget, who was with Monsieur Calmette when Madame Caillaux’s card was brought to him. It is contradicted also by a gentleman, who was in the waiting-room with Madame Caillaux, waiting to see another member of the *Figaro* staff, and by a friend who was there with him. Madame Caillaux, however, declared in her evidence to Monsieur Boucard that she heard Monsieur Calmette speak her name aloud, and that she was furiously angry because her identity had been made known. This is Madame Caillaux’s own account of the crime itself. “The man opened the door to usher me into Monsieur Calmette’s office, and as I walked to his room from the visiting-room, I had slipped my revolver, which was in my muff, out of its case. I held the weapon in my right hand, inside the muff, when I entered Monsieur Calmette’s private office. He was putting his hat

on an armchair and said to me, 'Bonjour madame.' I replied, 'Bonjour Monsieur,' and added, 'No doubt you can guess the object of my visit.' 'Please sit down,' he said." Madame Caillaux declares that she lost her head entirely when she found herself facing her husband's mortal enemy. "I did not think of asking him anything," she said. "I fired, and fired again. The mouth of my revolver pointed downwards." This statement is undoubtedly true, for the first two bullets fired were found in the bookcase quite near the ground. Madame Caillaux says that she went on firing without knowing what she did. Two of her bullets inflicted mortal wounds, and though everything was done that science could do, her victim died a few hours later.

Monsieur Caillaux had spent the greater part of the afternoon in the Chamber of Deputies, and his first news of the crime, which his wife had committed, reached him at the Ministry of Finance. He had returned to his office there to sign some necessary papers before returning home to dress for the dinner at the Italian Embassy, and he did not therefore receive his wife's note until much later in the evening, after the commission of the crime. Monsieur Caillaux, whatever his faults may be, is a strong man and a plucky one. He turned ashy pale when he heard what had happened, but said nothing further than to ask for a cab, and without a moment's loss of time he went as fast as the cab could take him to the police-station in the Rue du Faubourg Montmartre. There he was at once allowed to see his wife. Before leaving the police-station Monsieur Caillaux telephoned to his chief, Monsieur Doumergue, the Prime Minister, resigning his position in the Cabinet as Minister of Finance. He told the Prime Minister then, that nothing would induce him to reconsider his resignation, and that he would devote himself exclusively to his wife's defence, and take no further part in the political life of the country. The news of the murder was not definitely known at the Italian Embassy until fairly late in the evening, although all the guests were surprised at the absence of Monsieur Caillaux and his wife. Monsieur Poincaré was the first to be told the news, and left the Embassy immediately, followed by all the other guests. A little later in the evening, at about ten o'clock, Monsieur Doumergue summoned his colleagues to a Cabinet Council which was held at the Ministry for Foreign Affairs. The Council lasted from ten o'clock till after midnight. Just before the Ministers separated the news of Monsieur Gaston Calmette's death reached them over the telephone wire. The Ministers' first thought was to save the political

situation. They realized the grave dangers of a Cabinet crisis at this moment, and dispatched Monsieur Malvy, the Minister of Commerce, to Monsieur Caillaux to endeavour to induce him to reconsider his decision to resign. Monsieur Caillaux refused to reconsider it, and Monsieur Doumergue himself failed, though he tried hard, to get him to withdraw his resignation and to remain in office. Even then the colleagues in the Cabinet of Monsieur Caillaux refused to accept his resignation definitely, and the Council adjourned until the Tuesday without coming to any definite decision. On Tuesday, realizing the political impossibility of his retaining his portfolio, even if he could have been persuaded to retain it, the Government decided that the Minister for Home Affairs, Monsieur René Renoult, should become Minister of Finance in Monsieur Caillaux's stead, that the Minister of Commerce, Monsieur Malvy, should succeed him at the Home Office, and that the Under Secretary of State for Home Affairs, Monsieur Raoul Péret, should take the portfolio of Commerce. These decisions were made known on the morning following the murder, the morning of Tuesday March 17, and the necessary decrees were signed before luncheon by President Poincaré, enabling a full Cabinet to meet the Chamber of Deputies that same afternoon. But that same afternoon a storm burst in the Chamber with a violence which shook France as she has not been shaken by a political upheaval for many years.

In the course of his campaign against Monsieur Caillaux in the *Figaro*, Monsieur Gaston Calmette had, on several occasions, spoken of undue interference by members of the Government with the course of justice in the Rochette affair. I shall endeavour later in this book to attempt to give my readers some explanation of the broad lines of the "Affaire Rochette," though it is so complicated, and the intricacy of its details such, that very few Parisians, even, understand them, and even the parliamentary commission which has sat on the case has never been able to unravel it to the satisfaction and comprehension of the man in the street. Monsieur Calmette spoke in these articles of his of a letter written and signed by Monsieur Victor Fabre, the Procureur Général, or Public Prosecutor, in which Monsieur Fabre was said to have accused members of the Government of interference with the course of justice, and to have stated that influence had been brought to bear on him to postpone the Rochette trial. This story had always been denied hotly by the parties most interested. At five o'clock in the afternoon of March 17, the day after the murder of

Monsieur Calmette by Madame Caillaux, Monsieur Delahaye, a member of the Opposition, climbed the steps of the rostrum and placed this motion before the House: *The Chamber, deeply moved by the crime which was committed yesterday, and which apparently was committed in order to prevent divulgations of a nature likely to cast a slur on a magistrate who was acting by order, invites the Government either to dismiss this magistrate from his post or to give him the permission necessary to enable him to take legal action against those who accuse him.*

The Chamber had been half empty when Monsieur Delahaye rose. It filled in a moment with excited members who poured into their seats from the lobbies. Monsieur Gaston Doumergue, and nearly all the members of the Cabinet, took their places on the Government bench, and when Monsieur Delahaye began his speech the House was in that tremor of excitement which is the invariable prelude to a big sensation. Nobody knew, however, with one or two exceptions, what the sensation was going to be, and probably the members of the Government knew least of all. In an excited speech Monsieur Delahaye referred first of all to an open letter which had been written by a member of the Chamber, Monsieur Thalamas, to Madame Caillaux immediately after her arrest. Monsieur Thalamas, whose letter I subjoin in a footnote,^[1] had written as no decent man had any right to express himself on the commission of the murder, and those members of the Chamber who remained unblinded by political prejudice were fully aware of this. After reading the letter, the reading of which was interrupted constantly, Monsieur Delahaye declared that Monsieur Calmette had had the much-talked-about letter, written three years ago, by the Public Prosecutor in his possession, that he had intended to publish it in the *Figaro*, and that it made a direct accusation against Monsieur Monis who had been Prime Minister at the time that it was written and who was now, on March 17, Minister of Marine. Monsieur Delahaye addressed a question directly to Monsieur Monis. "Permit me to ask you," he said, "whether this letter exists or not, whether you knew it, and whether or not it states that you gave orders to Judge Bidault de L'Isle, through the Public Prosecutor, Monsieur Fabre, to order the postponement of the Rochette affair?" There was a tumult of excitement in the House. The excitement centred of course round Monsieur Monis, who had risen to reply, but who was prevented by his friends from speaking. Altercations arose on all sides, and in the midst of the tumult Monsieur Monis rose in his seat and made signs that he

insisted on being heard. A deadly silence succeeded the uproar. "The first question you asked me," said Monsieur Monis in a loud and clear voice, "is whether I knew of the document to which you have alluded, or whether I knew what was contained in it. My answer is No. You asked me whether I gave orders, or caused orders to be given, for the adjournment of the Rochette trial. My answer to that question is emphatically No. And I do more than deny these statements: I call on the President of the Parliamentary Commission of Inquiry into the Rochette case, to read to the Chamber the evidence given before the commission by Judge Bidault de L'Isle. That evidence is in complete conformity with what I have just said." There was a roar of applause from the Left, and Monsieur Jaurès, the President of the Parliamentary Commission of Inquiry into the Rochette case, rose in his seat, and made this important declaration: "Judge Bidault de L'Isle affirmed on his honour, as a man and as a magistrate, that he had never received any order of the kind. But it appears impossible to me that, if it is in existence, we should not be informed about the existence of this document. Does it exist, or does it not exist? If it has disappeared let us be told so." The declaration of Monsieur Jaurès was responsible for more uproar in the House, in the middle of which Monsieur Delahaye was heard to declare that the declaration of Monsieur Fabre had existed, and that Monsieur Calmette, who had obtained possession of it, always carried it about with him. Monsieur Delahaye declared further that he had seen it, that Monsieur Briand, who was Minister of Justice in the Monis Cabinet, had received it when he became Minister of Justice, and that the document confirmed the accusation of Ministerial intervention, which Monsieur Calmette had published in the *Figaro*. Monsieur Doumergue followed Monsieur Delahaye in the rostrum. The Prime Minister, who was evidently much affected, declared his horror of these accusations against members of the Cabinet. "I have read the official summary of the work of the Commission of Inquiry," he said, "and it states that Monsieur Bidault de L'Isle declared that he had been under no pressure whatever, and that he had adjourned the Rochette trial of his own free will. Monsieur Delahaye has declared," said the Prime Minister, "that the letter he saw was a copy of the original. What is the value of this copy? The Government is perfectly prepared to favour a fresh Inquiry, perfectly ready to bring a clear light to bear on this question, but we want proof. Where is the proof?" And the Prime Minister sat down amid a yell of applause from his political friends.

Then the bombshell fell. Monsieur Barthou stepped into the rostrum, declared that the declaration of the Public Prosecutor Monsieur Fabre was in his possession, and with one of those dramatic gestures of which Frenchmen have the secret, produced a faded sheet of paper from his pocket, unfolded it, slapped it on the desk in front of him, and cried "And here it is!" ("Ce document, le voici!") "This statement," he said, written by Monsieur Victor Fabre, "was handed to Monsieur Briand when he was Minister of Justice. When I succeeded Monsieur Briand he handed it over to me. I refused to allow it to become known, but I consider that the time has come for its production in this house." And in a clear voice Monsieur Barthou read the following aloud:

Le mercredi 2 mars 1911, j'ai été mandé par M. Monis, Président du Conseil.

Il voulait me parler de l'affaire Rochette.

Il me dit que le gouvernement tenait à ce qu'elle ne vînt pas devant la Cour le 27 avril, date fixée depuis longtemps; qu'elle pouvait créer des embarras au ministre des finances, au moment où celui-ci avait déjà les affaires des liquidations des congrégations religieuses, celles du Crédit Foncier et autres du même genre.

Le président du Conseil me donna l'ordre d'obtenir du président de la Chambre correctionnelle la remise de cette affaire après les vacances judiciaires d'août-septembre.

J'ai protesté avec énergie. J'ai indiqué combien il m'était pénible de remplir une pareille mission.

J'ai supplié qu'on laissât l'affaire Rochette suivre son cours normal. Le président du Conseil maintint ses ordres et m'invita à aller le revoir pour lui rendre compte.

J'étais indigné. Je sentais bien que c'était les amis de Rochette qui avaient monté ce coup invraisemblable.

Le vendredi 24 mars Monsieur M.B. ... vint au Parquet. Il me déclara que, cédant aux sollicitations de son ami le ministre des finances, il allait se porter malade et demander la remise après les grandes vacances de son ami Rochette.

Je lui répondis qu'il avait l'air fort bien portant, mais qu'il ne m'appartenait pas de discuter les raisons de santé personnelle invoquées par un avocat, et que je ne pouvais, le cas échéant, que m'en rapporter à la sagesse du Président.

Il écrivit au magistrat.

Celui-ci, que je n'avais pas vu et que je ne voulais pas voir, lui répondit par un refus.

M^e Maurice Bernard s'en montra fort irrité. Il vint récriminer auprès de moi et me fit comprendre, par des allusions à peine voilées, qu'il était au courant de tout.

Que devais-je faire?

Après un violent combat intérieur, après une véritable crise dont fut témoin, seul témoin d'ailleurs, mon ami et substitut Bloch-Laroque, je me suis décidé, contraint par la violence morale exercée sur moi, à obéir.

J'ai fait venir Monsieur le président Bidault de L'Isle.

Je lui ai exposé avec émotion la situation où je me trouvais. Finalement, M. Bidault de L'Isle consentit, par affection pour moi, à la remise demandée.

Le soir même, c'est-à-dire le jeudi 30 mars, je suis allé chez M. le président du Conseil et lui ai dit ce que j'avais fait.

Il a paru fort content.

Je l'étais beaucoup moins.

Dans l'antichambre j'avais vu M. du Mesnil, directeur du *Rappel*, journal favorable à Rochette et m'outrageant fréquemment. Il venait, sans doute, demander si je m'étais soumis.

Jamais je n'ai subi une telle humiliation.

Ce 31 mars 1911.

Annexe. [This was not read in the Chamber.]

Le jour même de la réunion, pendant la suspension d'audience, des conseillers qui siégeaient à côté de M. Bidault de L'Isle se sont élevés en termes véhéments contre la forfaiture qu'on venait de lui imposer.

Pourquoi ne les a-t-on pas entendus à la commission d'enquête?

On aurait pu, par exemple, interroger M. Francois-Poncet qui n'a dissimulé à personne, ni son indignation ni son dégoût pour les manœuvres inqualifiables imposées par le président du Conseil au Procureur Général.



Agence Nouvelle—Photo, Paris

M. VICTOR FABRE, THE PROCUREUR GÉNÉRAL

For English readers to realize the full importance of this document I must explain that the Public Prosecutor or Procureur Général ranks as a Government official, and holds almost the same position as a judge holds in

England, with the difference that he does not judge but prosecutes. For influence to be brought to bear on such an official by members of the Government is much the same thing as though Cabinet Ministers in England had ordered the Director of Public Prosecutions and the judge who was to try Mr. Jabez Balfour to adjourn the trial for six or seven months for political reasons. Supposing such a thing to have been possible, and Jabez Balfour to have disappeared from England so that he never came up for trial at all, one can imagine the outcry which would have been raised. Here in plain English, as plain and as simple English as I can summon to my help, is the translation of Monsieur Fabre's accusing document:

On Wednesday March 2, 1911, I was summoned by Monsieur Monis, the Prime Minister. He wished to talk to me about the Rochette affair. He told me that the Government did not wish the case to come before the courts on April 27, which date had been fixed a long time ago. He told me that it might create trouble for the Minister of Finance at a moment when he had already on hand the liquidation of the religious congregations, the Crédit Foncier case, and others of the same kind. The Prime Minister ordered me to induce the President of the Correctional Court (Judge Bidault de L'Isle) to adjourn this affair till the end of the legal vacation August-September. I protested with energy. I pointed out how painful it was for me to carry out such a mission. I begged (the Premier) to allow the Rochette case to follow its normal course. The Premier adhered to his order, and told me to see him again and give him news of my mission. I was deeply hurt and indignant. I had no doubt that Rochette's friends had organized this incredible *coup*. On Friday March 24 Mr. M. B. ... (Rochette's lawyer, Maître Maurice Bernard) came to my office. He stated that, yielding to the solicitations of his friend the Minister of Finance, (Monsieur Caillaux) he was going to plead illness and asked for the adjournment of his friend Rochette's trial. I replied to that, that he looked perfectly well, but that it was no part of my duty to question a plea of personal ill-health made by a lawyer, and that I should simply refer the matter to the wisdom of the

judge. He wrote to the judge. Judge Bidault de L'Isle, whom I had not seen and did not want to see, met his request with a refusal. Maître Maurice Bernard showed great irritation at this refusal. He called on me again, used recriminatory language, and made me understand by means of thinly veiled allusions that he was perfectly informed of everything. What could I do? After much self-communion, after a veritable crisis of mental agony of which the witness, in fact the only witness, was my friend and deputy, Bloch-Laroque, I decided that I must obey the moral pressure which had been brought to bear on me. I sent for Judge Bidault de L'Isle. I laid before him, with emotion, the situation in which I had been placed. Eventually Judge Bidault de L'Isle consented from affection for me to the adjournment which had been demanded. That same evening, that is to say, Thursday, March 30, I went to the Prime Minister and told him what I had done. He appeared very pleased. I was much less pleased. In the ante-chamber I had seen Monsieur Du Mesnil, the managing editor of the *Rappel*, a newspaper which was favourable to Rochette and was in the habit of attacking me frequently. He had come, no doubt, to ask the Prime Minister whether I had allowed myself to be coerced. I have never undergone such humiliation before.

March 31, 1911.

V. FABRE.

Annexe.

On the day of the meeting during a suspension the councillors (that is to say the two judges) who sat on the bench with Judge Bidault de L'Isle expressed themselves very vehemently against the pressure which had been brought to bear on them. Why were they not heard by the Commission of Inquiry? For instance it would have been easy to question Monsieur François-Poncet, who had taken

no pains to conceal either his indignation or his disgust at the unqualifiable manœuvres which the Prime Minister had forced on the Public Prosecutor.



Agence Nouvelle—Photo, Paris

THE FUNERAL OF M. CALMETTE

The reading of this statement from the rostrum of the Chamber was followed within forty-eight hours by the resignation of Monsieur Monis from the Cabinet, and its immediate result was the resumption of the work of the Parliamentary Commission of Inquiry which had sat on the Rochette case. This commission (over which of course Monsieur Jaurès presided, as he had presided over the others) conducted the inquiry, as all such inquiries invariably are conducted in France, on political lines. The sessions of the commission did not pass off without the resignation of some of its members, the public was inclined to shrug its shoulders at the leniency of its examination of past Ministers of the State, and the wording of its verdict when delivered was a farce, not altogether unworthy of the date on which the Paris morning papers published it, the first of April. The Parliamentary Commission could find no stronger words to stigmatize the situation

described in Monsieur Fabre's statement, which description the inquiry proved to be true, than "a deplorable abuse of influence." The phrase has become a joke in Paris now, and is in popular use on the boulevards. The Chamber of Deputies, however, before the close of the Parliamentary session, found other words to express the nation's displeasure, and after a session which lasted from two o'clock in the afternoon of April 3 till two o'clock in the morning of April 4, the Chamber of Deputies adjourned for the Easter holidays, having voted the following order of the day:

The Chamber,

Takes note of the statements and findings of the Parliamentary Commission of Inquiry.

Disapproves and reprehends the abusive intervention of financial interests in politics, and of politics in the administration of justice.

Affirms the necessity of a law on parliamentary incompatibility,

And with the resolution to assure, more efficaciously, the separation of political and judicial power,

Passes to the order of the day.



Agence Nouvelle—Photo, Paris

THE BROTHERS, SONS AND RELATIVES OF M. CALMETTE AT THE
FUNERAL.

The debate, of which this significant order of the day was the corollary, was not only an extremely interesting, but a very stormy one. In the course of it, a member of the Chamber challenged Monsieur Doumergue, the Prime Minister, to fight him, but the quarrel was smoothed over. Monsieur Briand, Monsieur Barthou, Monsieur Barrès, Monsieur Doumergue, and Monsieur Jaurès all took a very active part in the debate, and when the Chamber finally adjourned till June, in other words till after the general elections, the general impression was that the Doumergue Ministry would not return to power.

With this historic debate ends the first chapter of the Caillaux drama. The vibrations of a revolver shot in a newspaper office in the Rue Drouot have eddied and spread till France was set aquiver. The woman who fired the shot, the wife of the man who an hour before the shot was fired was the most powerful man in France, knew before she was taken to her cell in Saint Lazare that the first consequence of her act had been the headlong downfall of her husband. She must feel now like a child who has pulled up

a little stone and caused an avalanche, and not only France but Europe and the whole world are wondering what may go to pieces in the wreckage.

FOOTNOTES:

[1] Copy of open letter sent by Monsieur Thalamas to Madame Caillaux:

MADAME,

Je n'ai pas l'honneur de vous connaître, mais je sais par expérience quelle est l'infamie de la presse immonde envers les sentiments les plus intimes et les plus sacrés, quelle guerre elle mène contre la famille, les choses privées les plus respectables, et ceux qui luttent contre les privilèges des riches et contre les menées cléricales. Vous en avez tué un. Bravo! Lorsqu'un homme en vient à se mettre ainsi en dehors de la loi morale, il n'est plus qu'un bandit. Et quand la Société ne vous fait pas justice, il n'y a plus qu'à se faire justice soi-même!

Faites de ma lettre l'usage que vous voudrez. Trouvez-y le cri de la conscience d'un honnête homme révolté, et d'un journaliste-député écœuré des procédés de ceux qui déshonorent la presse et le Parlement.

THALAMAS

P.S. Ma femme me prie de vous adresser l'expression de sa sympathie. Elle vient de faire sur votre acte un article pour la *Dépêche de Versailles*. Elle vous l'enverra demain.

Translation:

MADAME,

I have not the honour of your acquaintance, but I know by experience the infamy of the unclean Press towards the most intimate and most sacred sentiments, I know the war which it wages against home and family, against the intimacies of life most worthy of respect, against those who oppose the privileges of the rich, and the influence of the priests. You have killed one of them. Well done! When a man puts himself in this way outside all moral laws he is nothing but an outlaw, and when society does not do justice to him the only thing to be done is to take the law into one's own hands.

Make whatever use you like of my letter. It is the genuine expression of the feelings of revolt of an honourable man's conscience, the expression of the conscience of a journalist who is a member of the Chamber, and who is disgusted by the methods of those who dishonour both Press and Parliament.

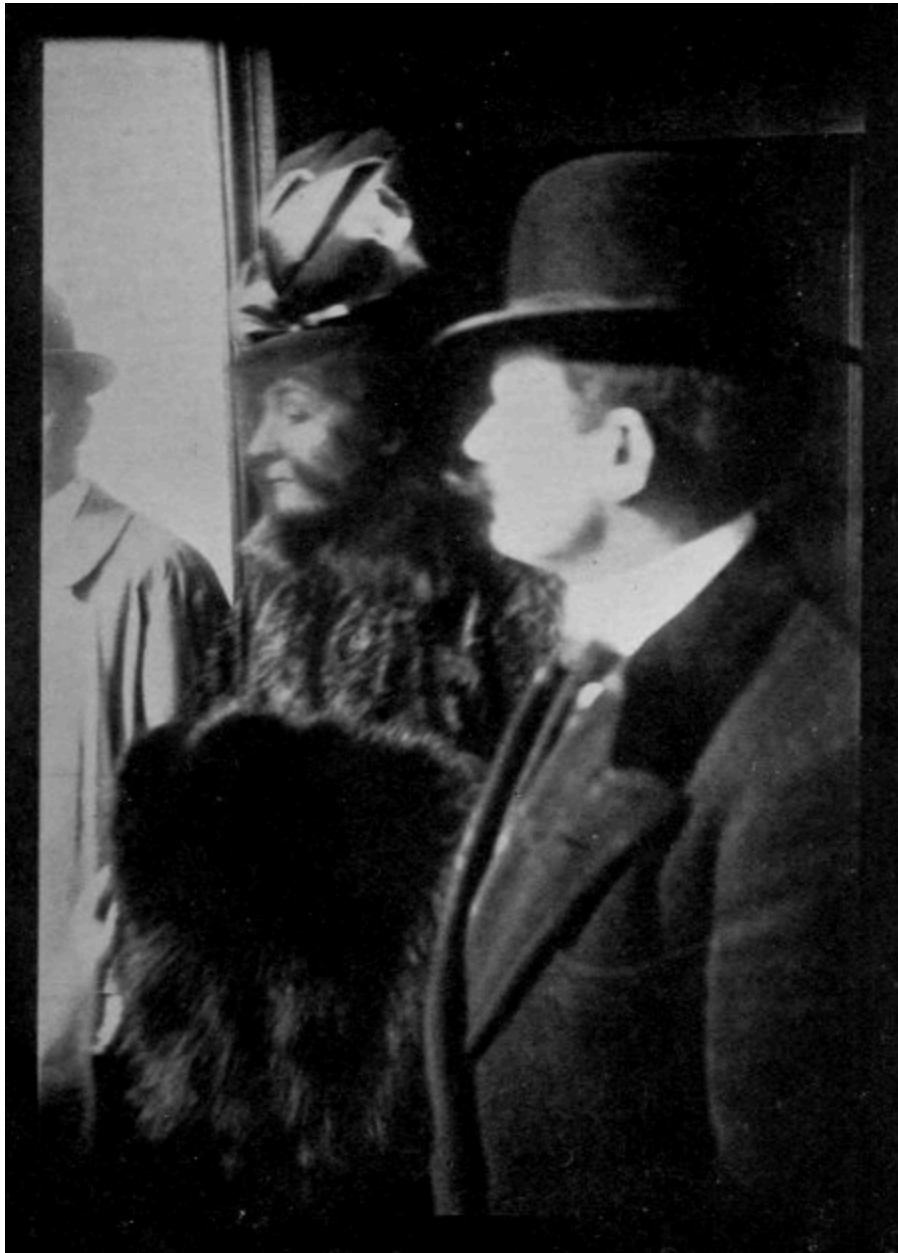
THALAMAS

P.S. My wife begs me to assure you of her sympathy. She has written an article on your act for the *Dépêche de Versailles*. She will send it you to-morrow.

[2] The word crushed is underlined in the original text.

II

CELL NO. 12



MME. CAILLAUX (AND DETECTIVE) ON HER WAY TO THE LAW
COURTS TO BE EXAMINED

It is a very short drive from the Rue du Faubourg Montmartre to the prison of Saint Lazare, where Madame Caillaux was taken from the police-station. She had been taken from the office of the *Figaro* to the police-station in her own luxurious car. She drove to Saint Lazare in one of the horrible red taxicabs which have rattled for too many years about the streets of Paris, with a member of the police force in plain clothes seated beside her, another on the uncomfortable little seat opposite, and a third on the box by the driver. The prison authorities had been advised by telephone of her arrival at the prison, and arrangements had been made to put her into *pistole* No. 12, the cell in which Louise Michel, Valentine Merelli, Madame Humbert, Madame Steinheil and many other Parisian celebrities awaited their trials. The cab drove into the courtyard of the prison and the gates closed behind it. The police handed their prisoner over, with the usual formalities, to the prison authorities, she was kept waiting while she was inscribed on the prison books, she was searched—for no prisoner escapes this formality—and was told to walk forward to a large open space between two staircases. The house of correction of Saint Lazare is a very old building, which dates from the beginning of the twelfth century. It was a hospital for lepers in 1110, and remained one till 1515, when the monks of the Order of Saint Victor took it over, and abolished the lepers' hospital. In 1632 Saint Vincent de Paul and the priests of the order became the inmates of Saint Lazare, and in 1779 it became a house of correction and provisional and permanent detention for men. On July 13, 1789, when famine raged in Paris, the mob broke into Saint Lazare, and looted the enormous stock of food which the Lazarists were known to be keeping there. The monks were driven out, the building sacked and the store houses gutted by fire. The convent of Saint Lazare then became a State prison in which suspects were kept. It is now a prison for women. There is room for about twelve hundred prisoners, but at a pinch the old building would hold 1600. The prisoners are divided into three categories. The first consists of women who are awaiting trial, or who have been sentenced to less than a year's imprisonment. The second division consists of girls under age who have been sentenced to confinement in a house of correction till they are twenty-one, the third

division is that of unfortunates whose sentences of imprisonment are short ones. Saint Lazare prison, though of course under State control, is in practice ruled by a body of nuns who, while responsible to the authorities, have really the entire management of the enormous prison in their hands and hold the real power. It is a huge bleak wilderness of stone with echoing corridors and haunting silences, and has been sentenced to demolition for sanitary reasons for many years. But threatened buildings live long in France when they belong to the State. A modern prison, such as Fresnes in France or any of the English prisons, is a pleasure resort compared with Saint Lazare, and there is less difference between Fresnes and a cheap hydropathic than there is between the prison of Saint Lazare and the prison of Fresnes. The silence, the darkness, the cold, damp, and dirt are perhaps the worst of its discomforts, but I have been told by women who have been imprisoned there that the mental and physical torture of the months in which they waited trial surpassed anything that could be imagined. Within an hour after her arrival Madame Caillaux ceased to wear her name and became a number—No. 12. The number she received is considered a favour, for cell No. 12 is the most spacious of all the cells in Saint Lazare.



SŒUR LEONIDE

The chief superintendent of the prison nuns

Specially drawn by M. Albert Morand

In the large open space between the two stairways is a high chair, almost a throne, on which sits Sister Léonide, the chief superintendent of the prison nuns. She is a woman of about forty. A handsome woman with a stern set face. The drawing of her in this volume was done specially for me by the well-known artist of St. Lazare, Monsieur Albert Morand. Monsieur Morand is one of the few men who have been authorized to make drawings of St. Lazare, and his work has the honour of a special place in the Carnavalet Museum. His drawings which are reproduced in this volume are probably unique. The nickname which the prisoners give Sœur Léonide is "Bostock," after the famous American lion tamer, who, in his day, was a celebrity in Paris. Her severity is not more remarkable than is her power of quelling the first signs of mutiny among the prisoners by a mere glance, and it was the quick-witted appreciation of this power of the eye which gave her her name. Sister Léonide made a sign to one of the two women who stood by her. The woman, a prison attendant who goes by the ironically prison-given name of a *soubrette*, opened a door and motioned to No. 12 to walk straight on down a half-lighted misty corridor, painted a muddy brown. This corridor seems endless. It is like a street in a nightmare. There are doors on either side which seem to leap out of the half darkness, and at long, long intervals a little flame of gas. It is only quite recently that there is any incandescent gas in St. Lazare and what there is, even now, is quite inadequate, merely serving, as a former prisoner expressed it, "to show us the darkness around." The anticipatory mental torture of this first long journey down the interminable corridor must be terrific to a woman whose life, before her imprisonment, has run on easy lines. The doors are named and numbered. Cell No. 8, Cell No. 9, Workshop No. 2, Library, and so forth. All of them have huge and heavy locks, and bolts and bars. "Here," said the *soubrette*. She produced a huge key which she fitted into the lock of a door on which in big white letters were painted the words "Pistole No. 12." She had to use both hands to turn the key. The door creaked and opened inwards. Cell No. 12 is fairly large. As a rule there are six little beds in it, and it has held as many as eight beds. The walls are painted black, from the floor up to three quarters of the distance to the ceiling. The top quarter is white-washed, but the whitewash is grey, from age and want of care. They use extraordinarily little soap and water in the prison of Saint Lazare. The heavy beams across the ceiling have been decorated for many years by a network of spiders' webs, and though there was a rumour in the

Paris Press at the time of her imprisonment that Cell No. 12 had been cleaned for Madame Caillaux's reception, I am told that the webs and the spiders are there still.



THE CORRIDOR OUTSIDE THE PISTOLES

Madame Caillaux's cell, No. 12, is the door on the right by the table.

Drawn specially in St. Lazare Prison by M. Albert Morand

There were so many absurd stories in the Paris Press about the comforts which had been provided in Saint Lazare for Madame Caillaux that an impression became prevalent that she must be having rather a good time in prison. I need hardly say that there was very little, if any, foundation in fact for these stories. Monsieur Morand's drawing of the "soubrette" does away with the mind-picture which newspaper readers may have formed of a smart maid waiting on this favoured prisoner, getting her bath for her, and bringing her a breakfast tray each morning. The *soubrette* of *pistole* No. 12, who looks after the *pistole* next door as well, where there are seven prisoners, and who therefore can have little time to devote to the prisoner in No. 12, is a woman called Jeanne (I do not know her surname), who murdered her husband with a penknife some months ago. She is a quiet,

somewhat surly woman, and good conduct has obtained for her the privilege of acting as *soubrette* in two of the *pistoles*, for enforced idleness is one of the prison's worst punishments. One of the favourite newspaper stories which were in circulation soon after Madame Caillaux's imprisonment was one which told of the furnishing of the *pistole* in which she had been put. Journalists had seen a big motor lorry arrive with her furniture, we were told, and the cell had been made as comfortable as a room in her own house. This story gained a semblance of truth from the reproduction in the papers of the arrival of a big motor lorry at Saint Lazare. I reproduce this picture here. It looks conclusive, and convincing at first sight, for the group of journalists who saw the van drive in can, one might think, surely not have all been mistaken. However, I took the trouble to make some inquiries while my Paris colleagues, I fear, jumped to conclusions. I learned that the van which figures in the picture comes quite regularly to Saint Lazare. It contains linen in the rough sent by a contracting firm, for whom the prisoners turn the rough linen into sheets and pillow-cases. The contractors, the prison authorities, and the prisoners, all find their advantage in this arrangement—and the van did not contain even a chair for Madame Caillaux's cell.



“JEANNE,” THE SOUBRETTE OF PISTOLE NO. 12

Specially drawn by M. Albert Morand

The cell has now two beds in it, one for the prisoner, one for Jeanne the *soubrette*. A great deal of nonsense has been written in the newspapers

about “the maid” whom Madame Caillaux was allowed in prison. The simple fact, of course, is that the authorities consider it necessary that watch should be kept on her, and the “maid,” Jeanne the prison *soubrette*, is by no means a pleasant companion. The furniture is very primitive, though better than that of some of the other cells. There are a mattress on the bed of cast iron, a pillow but no bolster, two straw-bottomed chairs, a little white deal table, a jug and a basin which were once enamelled yellow but through which the rusty metal shows. On the bed is a brown rug with the word “Prison” written on it. Madame Caillaux has been allowed to cover this rug with an old quilt which Madame Steinheil brought into the prison. Above the bed is a shelf on which the prisoner’s linen can be put, behind the bed a little trap through which the wardresses can peep into the cell at any moment. The floor of No. 12 is tiled with rough red tiles, much worn, and broken. There is a stove, but it has never warmed the cell, and in cold weather the damp and cold are very bitter. No. 12 has three windows, strongly barred, and in addition to the bars there is wire netting. This wire netting has its reason. The windows of No. 12 look out on the courtyard in which, twice a day, the prisoners are allowed for exercise. This courtyard is quite pleasant in the summer, for there are several trees in it, but the prisoners have an unpleasant habit of attracting the attention of the inmates of *pistole* No. 12 by throwing stones at the windows, as a sign that chocolate or cakes would be acceptable. In this courtyard inside the old convent of Saint Lazare, which has the picturesque charm of great age, some of the most sensational scenes of the days of the Terror took place, for it was from that courtyard that the tumbrils left for the guillotine. The chapel opens into this courtyard too, and Madame Caillaux from the windows of her cell enjoys a very pretty view when the courtyard is empty. In the exercise hours the view is less pleasing. There is always war between the women prisoners of the other classes and those of the *pistole* class, and until the new inmate of No. 12 learned how to slip bits of chocolate, biscuit, or sugar out across the window-sill so that they fell into the courtyard she dared hardly show herself at the window. It is a peculiarity that, in the house of silence, everything of interest is known to all the prisoners immediately. Madame Caillaux had not been twelve hours in No. 12 before all her fellow prisoners knew all about the drama which had brought her there, and were curious to see her.



Agence Nouvelle—Photo, Paris

THE LORRY WHICH PARIS JOURNALISTS THOUGHT
WAS FULL OF MME. CAILLAUX'S FURNITURE.

Most of the men in the crowd are either journalists or police in plain
clothes.



LA COUR DES FILLES IN SAINT LAZARE.

It is here that Madame Caillaux is allowed to take daily exercise for three-quarters of an hour.

Drawn specially in St. Lazare Prison by M. Albert Morand

Curiously little is known by the outside world, though Paris is a gossip-loving and gossipy city, of the real facts of the life inside the house of correction of Saint Lazare. I never realized myself until quite recently the horrors of incarceration there. Chance then threw me into communication with a woman who had shot another woman dead, had spent some months

in Saint Lazare, had been acquitted by the jury and is a free woman now. Her crime had been a crime of jealousy. The jury had refused to punish her more than she had been punished, and she got a verdict of “not guilty,” though she shot and killed her rival in the affections of her husband and pleaded guilty to so doing. This woman is a woman with literary tastes, a woman who is in the habit of observing, and who has the gift of describing what she sees. She has told me a great deal about the life in Saint Lazare, but far more eloquent than anything which she has told me is the present condition of the woman herself. We talk about “the prison taint” with very little real knowledge of what it means. Imagine a woman of your own world, a lady of refinement and of education, who waits to be spoken to before she opens her lips, who stands aside to let you pass if you open a door, who, if you beg her to take precedence, walks before you with bowed head and folded hands as though you were her gaoler. Her voice is always subdued, she never contradicts, she gives her opinion only when asked for it, and even then it is an opinion without emphasis. She has forgotten how to hurry. She has forgotten how to lie in bed late in the mornings. She never gives an order. When she wants something from a servant her tone and manner in asking for it are those of supplication. She is resigned—terribly resigned. Her whole attitude is one of resignation so pitiful that, unattractive woman though she is, a man’s heart fairly bleeds for her, and one feels a longing to try and comfort and console her as one would console a child who has been beaten. Morally and mentally the prisoner in Saint Lazare is being beaten all the time that she is in prison. There is no physical punishment, there is no active cruelty, there is only the terrible deadweight of the prison system; but this is quite enough to unsettle and to dull the most active brain. There is no doubt that the active brains suffer the most. The whole atmosphere of the place, as this woman told me, is the atmosphere of a convent from which all love and sympathy are banished. Imagine, if you can, a hospital in which, while everything is done to ease the physical distress of the patients, their moral distress is ignored. Imagine a hospital in which the nurses are stern and unsmiling, in which complaint of mental distress is met with silence, in which no unnecessary word is ever spoken, in which no woman ever puts her cool hand on another woman’s forehead because she has a headache, or kisses her because she is unhappy. Imagine long dreary days with no brightness in them. Imagine the horrid rattle of big keys in heavy locks. Form your own mind-picture of Cell No. 12, with its

broken red-tiled floor, its bare black walls topped with dirty grey whitewash, its furniture of a straw-bottomed chair, a plain white deal table, a battered metal basin and water jug, its windows with their bars and wire netting, the cruel silence and soul-deadening simplicity. No flowers, no ribbons, no armchair, no cushions, very little light after sundown, none of the thousand and one trifles which brighten the poorest room of the poorest woman. No conversation, no letters which have not been read first by strangers, visits hedged in with the severest of formality, no name, a number—in a word no life, merely existence, and existence without the sympathy which makes existence lovable. This is the mind-picture I have formed, and this is a true picture of Madame Caillaux's daily life in *pistole* No. 12. Her principal distraction is her occasional drive with two plain clothes policemen to the Palace of Justice, and her examination there by the magistrate. And yesterday this woman was fêted and cherished by society, had a large circle of friends, was busy every moment of the day. Now she has nothing to do but to think. She may write, she may read, but she may only exist. Her existence has become a backwater without a ripple in it, a dark cul-de-sac into which no sunshine penetrates. Is it surprising that the constant presence of a *soubrette* of the prison should be considered necessary? A man smashed a water-bottle and cut his throat in Paris the other day to avoid six months imprisonment. He had been in prison before, awaiting trial, and he knew what it meant. And he was a rough man with no refined tastes, and no need of refinement. In Italy the other day a brigand went mad after solitary confinement. The prisoner in Saint Lazare is not even allowed to go mad. A great deal of nonsense has appeared in the English newspapers about Madame Caillaux's life in Saint Lazare. Paris papers have printed stories (the authorities have always contradicted them) drawing a picture of a comfortable room with carpet on the floor and curtains to the windows. The woman who described to me the real life in Saint Lazare assures me that the "carpet" is merely a strip of rug to keep the tiled floor, with the dangers of the broken tiles, from the prisoner's bare feet when she steps out of bed, and that it is a physical impossibility that any curtains should be hung. Madame Steinheil was allowed to hang sheets in front of the windows. Perhaps Madame Caillaux has obtained this permission too. The prisoner is allowed to get her food from outside, but this food is of the plainest and simplest. She is allowed to receive visits, but the visits are rare ones, and she is never alone with her visitor. She may

write, but what she writes is always read. She may receive letters but she knows that all her letters pass through other hands and are subject to careful scrutiny before she gets them. She has no privacy at all and knows that she is always under watch and that even when she is alone in her cell there is an eye at the little trapdoor which peeps into it over her bed. The prisoner in the *pistole* has not even the consolation of company during exercise hours, and she must sometimes envy the women whom she can see from her windows. She can talk to the nuns, but they answer as little as possible. She lives out her life in a whisper. The *soubrette* is a prisoner. She talks a little sometimes—prison talk. She brings the *pistolière* her cup of soup at seven in the morning, and tells her all the prison news, but she is not allowed to remain long, for she has other work to do and it is the hour of the canteen. If the *pistolière* wants coffee she must go to the canteen and buy it. She is allowed a large mugful every morning, for which she pays twopence. She walks down the long dreary corridor with her mug in her hand, and waits in a large hall where the *pistolières* stand in a row against the wall. Numbers are called in turn, and each woman is given her coffee and the permitted trifles she has ordered the day before, such as butter, milk, white bread (the prison bread is grey), herrings, dried figs or letter paper. Then the long morning drags on until post time. The letters are distributed by Sister Léonide herself, and the letters are always open. The *pistolière* does not take her exercise in the large courtyard with the trees in it. The yard in which she is allowed to walk, and which Monsieur Moran has drawn for me, is small and has a high wall round it. The windows of cells look down on it, and as the prisoner walks up and down she knows that she is being watched and feels that there are eyes behind the bars of every window. Every now and again a big rat runs across her path. These rats of Saint Lazare are fat and of huge size. They run about quite freely and are almost tame, for no one ever interferes with them. The nuns of Saint Lazare keep cats, but they and the rats made friends long ago, and the cats and rats feed amicably together. At least a hundred rats a day are killed in the kitchens and corridors, but there are so many rats that the others hardly miss them. You hear them at night scampering over the beams of the ceilings, you see them in the corridors, the kitchens, the cells, everywhere. For some reason they are most playful about dusk, and there are stories in the prison of women who have had fits of hysteria and have even gone out of their minds because of sudden fear of these rats of the prison. There is a sickness

common to all prisoners in Saint Lazare which is known there as “the six o’clock sickness” (*le mal de six heures*). It attacks all newcomers, and none escape it. It comes on after the walk in the courtyard, when night begins to close in, and the prison settles into silence till the morning. It is an attack of a kind of malarial fever, a shivering fit and a violent headache with a feeling of lassitude and nausea afterwards. When it comes on, the prisoners are given a cachet of quinine from the prison pharmacy. It does very little good. After dark the *pistolière* is allowed two candles which she fixes in a piece of bread or fastens by means of their own wax to her wooden table. No lamps are allowed. I have seen it stated in the newspapers that Madame Caillaux is allowed a lamp, but I do not know whether the statement is true. The last ceremony of the day is “the roll call.” This, like most of the other ceremonies in Saint Lazare, is conducted in absolute silence. The door of the *pistole* is opened, and Sœur Léonide appears with the big Book of Hours which she carries in her two hands. On either side of her is a *soubrette*, one of whom carries a big bunch of keys. Sister Léonide stands in the doorway of the *pistole* for a moment, looks at the prisoner to make certain that she is there, bends her head, turns and goes. Not a word is spoken. And then comes the night.



MADAME CAILLAUX'S CELL EXACTLY AS IT IS.

Drawn by M. Albert Morand who received special permission from the prison authorities to make this sketch.

The one bright spot in this terrible life of monotony in the prison of Saint Lazare, the one relief from these never-ending days of the same food, the same walk, the same rats, the same silence, is Mass in the chapel. Here the *pistolière* sits, silent, it is true, but with other women near her and round her. But even here she sits apart, and Madame Caillaux, I am told, has not attended mass. "There is only one hope in Saint Lazare," said the former prisoner who gave me most of this information, "we all hope for our day of trial." "All of you?" I asked. "Oh, yes," she said. "No matter what we fear, nothing can be worse than the terrible monotony of life in the *pistole*. Our lives are those of prisoners in a dark gallery. The trial and the open law courts are the one glimpse of light and life at the end of the passage."

III

THE CRIME AND THE PUBLIC

WHENEVER anything sensational occurs to disturb the serenity of daily life in Paris, the vortex of politics promptly sucks it in. The Parisians—Frenchmen in general, in fact—are insatiable politicians, and no matter what the happening, discussion of it becomes immediately a party matter. It is of little consequence whether the item which is talked about in clubs, in cafés, in the newspapers, in the theatre lobbies, at dinner-parties, and at supper after the theatre is green hair, the Caillaux Drama, or a new play, the people who discuss it usually take sides in accordance with their political views. You may laugh at the idea that green hair or a non-political play has any bearing on politics, but in Paris this is curiously true. Green hair, for instance, became a dogma of the Opposition. It was adopted by ladies of the aristocracy, therefore Socialists and Radicals jeered at it. The sensible man who ventured to laugh at green hair was immediately stigmatized by those who upheld the new fashion as a supporter of the parliamentary system and the *bloc*, not because parliamentary Radicals and green hair have any real connexion, not because Monsieur Jaurès prevents the ladies of his family from wearing it, but because the Duchesse de Y. and the Comtesse de Z., who are “*bien pensants*,” have become votaries of the fashion. A new play is judged not so much on its merits as on political grounds. If the author be of aristocratic sympathies, Monsieur Lavedan, for instance, the anti-aristocrats promptly run down his play, and if he be one of the class from which Dreyfusards were drawn during the Dreyfus case and afterwards, the reactionaries have no good word to say for his work. How curiously true this is in Paris, and how difficult it is for any foreigner who has not lived many years in Paris to understand it, was proved by the tumult and bloodshed over a play of Monsieur Henry Bernstein’s which was produced some years ago at the Comédie Française. The reactionary party actually contrived to wreck the play because they disliked Monsieur Bernstein,

because he was a Jew, and because his play was produced in the national theatre. The principal difficulty for a foreigner in understanding the extraordinary hold of politics in France on matters which appear and which are really entirely outside the scope of politics is increased by the Frenchman's attitude in argument. When a foreigner disagrees with a Frenchman on any question whatsoever, the Frenchman, should he happen to be getting the worse of the discussion, puts an end to it by remarking, smilingly and politely, "But you are a foreigner, my friend, and therefore cannot possibly understand this matter, which is essentially French." There is no answer to such a statement. Frenchmen believe, quaintly enough, that the hand of every foreigner is always against them. The national conceit in France, an excellent asset, of course, for the nation, but singularly aggravating sometimes, is enormous, unfathomable, and entirely impervious to argument or logic. The greatest praise for anything in France is that it is French. The greatest praise for anything in Paris is that it is very Parisian, and so peculiar is this national conceit that it finds an outlet in the inevitable claim which is invariably made for French initiative in any invention, scientific or otherwise, which has made its mark in the world, for any novelty of medical science, for anything inspired at all. The origin of anything worth having in the world is French. This is dogma, and quite indisputable. Your Frenchman will admit the marvels of Marconi, but he will always add that Branly, a Frenchman, was the real inventor of wireless telegraphy, and will ignore Hertz as far as he dares. There was an argument in the French Press, not long ago, for instance, to prove that Columbus was a Frenchman. I do not know whether his famous egg was also a French egg, and I do not remember exactly how Columbus was proved to be French. I do know, however, that Frenchmen are quite sure that, although Edison and Bell had something to do with the invention of the telephone, a Frenchman was the real inventor of it, and quite recently, when Mr. Westinghouse died, the newspapers proved, to their own satisfaction, that a Frenchman was the inventor of the Westinghouse brake.



Agence Nouvelle—Photo, Paris

MONSIEUR CAILLAUX IN HIS OFFICE AT THE MINISTÈRE DES
FINANCES.

Now the reactionary nationalist party in France makes more noise than all the others put together. The reactionary newspapers are more violent in tone than any of the others, and have a knack of making a statement on Monday, reaffirming it on Tuesday, and alluding to it as an absolute and admitted fact on Wednesday. They have therefore the grip on public opinion which noise and reiteration always secure, and it is very natural that public opinion abroad, which has necessarily less opportunity for discrimination, should finish by accepting the reiterated outcry of the noisiest portion of the French Press as the real French opinion. In a drama like the Caillaux drama, in a case where a respected man, the editor of a flourishing Paris newspaper, has been done to death, it is obvious that those who feel that the woman who has killed him has any claim to sympathy at all will find themselves in the minority. It is no less a fact that unfair methods have been in use ever since the death of Monsieur Calmette to rouse the opinion of the world against the wretched woman who is in prison for killing him. The law courts will decide how much or how little sympathy is due to her. In the meanwhile the French Press is pursuing its inevitable method of judging the

case in advance, and everything is being done for political reasons to increase the public feeling of natural horror for the deed which resulted in the death of the editor of the *Figaro*. It is difficult to exaggerate the bitter tone of the daily howl for punishment: Already the *Action Française* has begun to throw mud at Monsieur Boucard, the examining magistrate, in case his report on the case should be too lenient, and to suggest that he has been bought over. I have not seen in any French paper a suggestion that Madame Caillaux is already being punished by the political downfall of her husband and her own incarceration. There is no sign anywhere in the French newspapers of an attempt to be fair, and the very worst side of the French character has come to the surface in this chorus of bitter cruelty to a woman who is down, on the one side, and libels on the dead man on the other. As much harm is being done to Madame Caillaux's case by her friends as by her enemies. While her enemies are clamouring against her, her friends are losing any public sympathy which might have arisen, by attacking the memory of Gaston Calmette. It is quite obvious to any reasonable person who considers the drama calmly and without prejudice that Madame Caillaux did not kill Monsieur Gaston Calmette for the mere pleasure of killing. It is equally obvious that Monsieur Calmette waged his campaign in the *Figaro* against Monsieur Caillaux because he thought it was the right thing to do, and that he thought the political downfall of Monsieur Caillaux, which he was attempting to bring about, would be a good thing for France. Nothing is to be gained, however, on either side by an attempt to vilify the other. The facts speak for themselves, and can be chronicled in a very few lines. Monsieur Calmette considered the political downfall of Joseph Caillaux a necessity for his country. Monsieur Caillaux, rightly or wrongly, feared that to procure his downfall Monsieur Calmette intended to publish certain private letters. Monsieur Calmette's daily attacks on Monsieur Caillaux naturally enraged both Monsieur Caillaux and his wife. The fear of an attack in print on their private lives may or may not have been justified, but it certainly was the direct cause of the murder. This murder is deplored by everybody. Nobody will deny that Madame Caillaux deserves punishment, but if those who are working every day to embitter public feeling against her would only pause to think, and would leave political considerations on one side for a moment, they would realize that their campaign is an insult to their own judges, their own juries, and their own legal system. France boasts of its liberty. Whenever a sensational case

occurs, and public feelings are stirred, that liberty is allowed to degenerate into licence, and to disagree with the howl of the reactionary Press is to ask for abuse. Everybody who says a word of pity for Madame Caillaux in France nowadays is accused of trying to make the course of justice deviate. The examining magistrate whose duty it is to try and find the truth out and report on it is insulted if he dares to be impartial. Everybody who dares to suggest that the very bitterness of the Caillaux campaign was largely responsible for its deplorable climax is held up to obloquy as an enemy of France. I hold no brief either for Madame Caillaux and her husband or for the campaign in the *Figaro*. Both the murder and the bitterness of the campaign of which it was the climax are to be deplored. The campaign, as I shall show in this book, was a necessary evil. The bitterness and insistency with which it was conducted were perhaps unnecessary evils. The woman has killed, and will undoubtedly be punished. She is being punished already. The man who conducted the bitter campaign has been shot dead. Surely there is nothing to be gained by attempting to sully the dead man's memory, or by attempting to overwhelm the woman whose victim he was. Madame Caillaux in prison is a victim of the political campaign of the *Figaro* in exactly the same degree as the editor of the *Figaro* is the victim of Madame Caillaux. The two will be judged. The wrong of one neither minimises nor magnifies the action of the other. I am as certain that Madame Caillaux believed, she had a right to shoot as I am certain that she was wrong to kill. I am as certain that Monsieur Calmette believed in the justice of his campaign as I am certain that Monsieur and Madame Caillaux believed that it was being conducted unjustly.

What neither of them or Monsieur Calmette realized was the harm that all three would do to the country which I am certain all three loved.

The terrible, the brutal fact remains that Gaston Calmette is in his coffin and that Madame Caillaux killed him. Unhappily, there is no doubt that if Monsieur Calmette had been wounded merely, the outcry of the anti-Caillaux party would have been nearly as loud, and the dignity of French justice would have been considered as little or less than it is to-day by Monsieur Caillaux and his friends on the one side and Monsieur Calmette and his on the other. If the Caillaux drama had not a death in it the disinclination to allow the courts to judge without interference would have been as great as it is now, in spite of the lesson which the Fabre incident

should teach. To the observer, to the lover of France the most deplorable, the most unhappy result of the Caillaux drama is the belittling of France in the eyes of the whole world by the inability of the French nation to put simple faith in its own administrators of the justice of the country. And most unhappily of all, this want of faith is justified. The story of the Rochette case, like the story of the Dreyfus case, is undoubtedly a blot on France's fair name, and every man or woman who loves France sincerely must deplore it.

It is a regrettable thing that Frenchmen find it so difficult, find it, indeed, well nigh impossible to fight fairly. The case of Madame Caillaux is surely bad enough as it stands without the need for unfair comment before it comes on for trial. If you say this to a Frenchman he will probably answer that there is very little hope of a fair trial. This I do not believe, and if I did believe it and were a Frenchman I should hate to say it. I could fill this volume with extracts from the Paris newspapers, of almost any day since Gaston Calmette was killed in his office, to prove how unfair comments have been on the case while it is still *sub judice*. I will not weary my readers with long extracts, however. They would be unpleasant reading, and they would answer no more purpose than this little but characteristic extract from the *Patrie* of the 8th of April. When Madame Caillaux was first put in prison there was, as I have said, an outcry in the Opposition Press against the "undue favours which were being shown to her in Saint Lazare." The reports of these undue favours were flatly contradicted by the prison authorities, but the lawyers of another prisoner, a Madame Vitz, were clever enough to take advantage of the outcry to secure the comparative comforts of the *pistole* for their client. Madame Vitz was already in a weak state of health when she was moved, and she has now gone mad. This is what the *Patrie* (a reactionary paper) has to say about her case: "Madame Caillaux, who enjoys the little and the great favours of the prison administration, must be satisfied to-day. Another wish which she recently expressed has just been carried out. Calmette's murderess had a neighbour in the cell next to hers, Madame Vitz. Her counsel, Maître Desbons, obtained, with a great deal of trouble, some alleviation of her fate, and she was put in the *pistole* class in the cell next door to the one occupied by Madame Caillaux. Owing to her constant annoyance at the extraordinary favours with which Madame Caillaux was treated Madame Vitz has gone mad. In her cell she was always calling out 'Madame Caillaux! Madame Caillaux!' and screaming. The wife

of the ex-Minister of Finance complained of her neighbourhood. The director of the prison bowed to her wishes, and had Madame Vitz removed to the prison infirmary." Can anything be more grossly, more stupidly, and childishly unfair than this attempt to alienate sympathy from Madame Vitz's neighbour? I have quoted it because it is short, but any Paris paper of the *Patrie* type unfortunately provides more material of the same kind daily than I should care to translate or my readers would care to read. I should not be surprised if many of the comments in the London newspapers suffered considerably and indirectly from the unfairness of many of the newspapers in Paris while the case has been *sub judice*. The reason for this is very simple. In Paris there are six evening papers of any importance. These are the *Patrie*, which appears early in the afternoon, the *Temps*, the *Liberté*, and the *Journal des Débats*, which appear at about five o'clock, the *Intransigeant* and the *Presse*, which appear just about dinner time. Of these six papers five are Opposition papers, and only one of these five, the *Journal des Débats*, makes the slightest attempt to be impartial. The only really impartial evening paper is the *Temps*, which gives the news of the day and comments on it, but comments without bias. The *Patrie* and the *Presse* are under the same directorate, the *Intransigeant*, while perhaps not quite so rabid as the *Presse* and the *Patrie*, is openly unfair whenever politics call for unfairness, as they usually do, and the *Liberté*, while it prints the news, is always invariably and openly in such frank opposition to the Government that nothing done by any member of the Government is ever anything but wrong, and news which has the slightest reference to politics of any kind is invariably coloured. It follows that the local correspondent without a very wide knowledge and experience of French peculiarities and French methods must find it very difficult to form an opinion (in time for transmission to London the same evening) sufficiently without bias to be really valuable. Every journalist in Paris is obliged to read the evening papers; the evening papers, with two honourable exceptions above mentioned, always present the news of the day with the colouring of their political convictions, and the correspondent of an English paper may therefore frequently have found it impossible during the Caillaux drama, as he often found it impossible during the Panama scandal, the Dreyfus case, and other of the periodic convulsions of modern France, to separate the wheat of fact from the chaff of political colouring. In saying this I intend no reflection whatever on the honesty, the brilliance, or the intelligence of the Paris correspondents of the

London Press, all of whom are my acquaintances, and most of whom I am proud to number among my personal friends. I feel sure that if any of them happen to read what I have just written they will not only admit its truth, but be inclined to think that I have spoken with even less emphasis than I might.

Whatever may be the result of the trial of Madame Caillaux there is no question of the immediate result of the murder of Monsieur Calmette, on public opinion in France. Men and women alike, all consider that Madame Caillaux should be treated with the utmost severity, and men and women alike, all are anxious to see whatever punishment is possible meted out to her husband. So real is this feeling—and I am talking now of the general public and not of journalists or politicians—that Monsieur Caillaux has found it necessary to go about, when it has been needful for him to show himself in public, with a strong bodyguard of police in plain clothes. He has allowed himself to be persuaded, contrary to his first intention, to remain a candidate for re-election in his constituency, but he is so well aware of the feeling against him everywhere that, although lack of personal courage is certainly not one of the faults of the ex-Minister of Finance, he is conducting his canvass by deputy, and remains in Paris under constant guard.



Le Miroir, Dessin de F. Auer.

PRESIDENT POINCARÉ GIVES EVIDENCE ON OATH IN THE
CAILLAUX DRAMA BEFORE THE PRESIDENT OF THE APPEAL
COURT, DRAMA BEFORE THE PRESIDENT OF THE APPEAL
COURT, WHO WAITED ON HIM FOR THIS PURPOSE AT THE
ELYSÉE.

I have spoken of the unfair manner in which the Opposition Press of France have fallen on everybody who has ventured to express the opinion that there was any motive at all for Madame Caillaux's crime except an inhuman lust for murder. And yet not only the evidence of Monsieur Caillaux himself but the evidence on oath of the President of the French Republic, Monsieur Raymond Poincaré, and the evidence of other independent and unbiased witnesses, shows that there is reason to believe that the immediate motive of the crime was a hysterical fear of disclosures which Madame Caillaux believed would be made in the *Figaro*. Of course this hysterical fear does not excuse the crime of Madame Caillaux, but it certainly goes very far towards explaining it, and the existence of the belief that there was danger of the publication of letters which contained intimate allusion to her private life cannot be doubted by anybody, no matter what their political convictions may be after reading the evidence which President Poincaré felt called on to give, creating by the giving of it a precedent which emphasizes the doctrine that the President of the Republic has, with the rights, the liabilities and the responsibilities of every private citizen of France. President Poincaré did not go to the Palace of Justice to give his evidence. Monsieur Caillaux, on Thursday, April 2, informed the examining magistrate, Monsieur Boucard, that certain persons had evidence of importance to give which bore on his wife's case. Among the names which he mentioned was that of Monsieur Raymond Poincaré, the President of the French Republic, and Monsieur Caillaux stated that the evidence for which he asked the examining magistrate to seek would prove conclusively that on the morning of the crime both he and his wife were, rightly or wrongly, convinced that the *Figaro* might publish certain letters of a private nature referring to themselves. An official letter was sent by the examining magistrate to the Parquet de la Seine, with reference to the course that should be followed in this matter of Monsieur Poincaré's evidence, and after some hesitation as to ways and means of enabling the President of the Republic to give evidence on oath, Monsieur Forichon, the presiding judge of the Court of Appeal, was sent to the Elysée, and to him after swearing to tell the truth, the whole truth, and nothing but the truth, Monsieur Raymond Poincaré described the interview which Monsieur Caillaux had with him at ten o'clock on the morning of Monday, March 16. We know that on that morning Monsieur Monier, the President of the Civil Court of the Seine department, called, at her request, on Madame Caillaux, and was consulted

by her as to means and ways of putting a stop to the campaign against her husband in the *Figaro*. Monsieur Caillaux had intended to be present at this consultation, but a Cabinet council had been called at the Elysée at ten o'clock, and he was of course obliged to attend it. The Ministers were nearly all assembled, and were chatting with the President of the Republic in a room leading into the Council Chamber, when, just as the doors of the Council Chamber were opened and the Ministers passed through, Monsieur Caillaux asked the President of the Republic for a few moments' conversation in private. Monsieur Poincaré, with the unfailing courtesy which distinguishes him, acquiesced immediately, and allowing the other Ministers to pass into the Council Chamber, the President of the Republic remained alone with Monsieur Caillaux in the room they had left, and closed the door. "I have just learned from a sure source," said Monsieur Caillaux to Monsieur Poincaré, "that private letters written by me to the lady who is now my wife have been handed to the *Figaro* and that Gaston Calmette intends publishing them." "Monsieur Caillaux was under the stress of great emotion," said the President of the Republic in his evidence. "He told me that he feared that Monsieur Calmette was about to publish in the *Figaro* private letters, the divulgation of which would be extremely painful to him and Madame Caillaux. I replied that I considered Monsieur Calmette an honourable gentleman (*un galant homme*) altogether incapable of publishing letters which would bring up Madame Caillaux's name in the polemics between them. But my efforts to convince him that this was so were in vain, and he replied to me that he considered divers articles of the *Figaro* were written with the object of preparing (the public mind) for this publication. I was unable to undeceive Monsieur Caillaux or to calm him. At one moment he sprang from his seat and exclaimed, 'If Calmette publishes these letters I will kill him.' He then declared to me that he was going to consult his lawyers, notably Maître Thorel, the solicitor, on the means to be taken and the procedure necessary to prevent the *Figaro* from publishing these letters. I advised him to see, as well, the barrister who had taken his interests in hand in his divorce case, Maître Maurice Bernard. Maître Maurice Bernard, I said to Monsieur Caillaux, knows Monsieur Calmette. It will be easy for him to get the assurance from Monsieur Calmette that no letter will be published, and if needs be—if, contrary to my own belief, your suspicions are founded—he would have the authority necessary to prevent the publication of the letters. Monsieur Caillaux

thanked me, but declared to me that as he would be occupied at the Senate the whole afternoon he would not be able to see Maître Bernard. In reply to that, I told him that Maître Bernard was a friend of my own who often came to see me, and that he had let me know that not having seen me for some time owing to a journey to Algiers, he would come, either that day or the next, to shake me by the hand. I added that if he came to see me I would make a point of repeating our conversation to him. Maître Bernard did come early in the afternoon. I told him what Monsieur Caillaux feared, and asked him to make a point of seeing him. Maître Bernard replied that he considered Monsieur Calmette quite incapable of publishing letters which referred to Madame Caillaux, but that for all that he would make a point of seeing Monsieur Caillaux the same day, and if need be Monsieur Calmette as well. I heard afterwards that Maître Bernard had seen Monsieur Caillaux at the end of the afternoon, but too late. I was much impressed by the state in which Monsieur Caillaux was, so much so that when the Prime Minister came to see me on business during the afternoon I thought it my duty to tell him of the conversation I had had with Monsieur Caillaux and with Maître Maurice Bernard."

Monsieur Caillaux's own evidence was equally assertive on the question of the letters. I may say here that it is common talk in Paris that these letters, one a short one, and the other sixteen pages long, contained passages which well explained Monsieur and Madame Caillaux's fears for their publication. Monsieur Caillaux is said to have written to the lady who is Madame Caillaux now, with the utmost freedom and disrespect of the Republic to which he gives the nickname "Marianne," and the intimacy of portions of the letters is generally believed to be such that no paper as respectable as the *Figaro* could possibly affront its readers by putting them in cold print.

The letters, or copies of them, exist, or were in existence just before the crime. They are popularly believed to be highly scandalous in content and in tone. It is, however, only fair to Monsieur Calmette's memory and to the writer of the letters, Monsieur Caillaux, and his unhappy wife to whom he wrote them, to put on record the protest of Madame Madeleine Guillemard, who wrote on April 8, 1914, to the examining magistrate declaring that she knew the whole text of the letters, that they were intimate and tender, but

that “their tone was that of letters written by a gentleman to a lady whom he respects.”

President Poincaré’s evidence, however, shows that Monsieur and Madame Caillaux feared that the letters would be printed, and this fear is made more emphatic by Monsieur Caillaux’s own evidence before Monsieur Boucard, which, with the curious habit which is prevalent in France, the examining magistrate summarized and communicated immediately to the Press.



Miroir Photo, Paris

MONSIEUR CAILLAUX LEAVING THE LAW COURTS.

(The man on the right is a detective.)

IV

MONSIEUR CAILLAUX'S

EXAMINATION

THE principal witness for the defence of Madame Caillaux will be her husband, and as is usual in France where every witness is allowed and is expected to tell the examining magistrate who collects evidence before the trial everything he knows which bears in any way upon the case, Monsieur Caillaux has gone at length into his wife's motives for the crime, and has described very fully the happenings on March 16, 1914, when the murder was committed. He was examined by Monsieur Boucard in his room at the Palace of Justice on April 7 and 8, immediately after the evidence of the President of the Republic had been taken. Monsieur Joseph Caillaux is the son of Monsieur Eugène Alexandre Caillaux, who was Inspector of Finance and Minister of State. He has been married twice.

His first wife was Madame Gueydan, who was the divorced wife of a Monsieur Jules Dupré. Monsieur Caillaux married her in 1906. Monsieur Caillaux and his first wife did not live very happily, and their relations became more than strained in July 1909, after the fall of the Clemenceau Cabinet, in which Monsieur Caillaux was Minister of Finance. In September of that year Monsieur Caillaux and his wife were at Mamers. One night, Monsieur Caillaux declared to the examining magistrate, a packet of letters disappeared from a drawer in his writing-table. Two of these letters were letters written by Monsieur Caillaux to Madame Léo Claretie (*née* Raynouard). Madame Claretie was at that time (September 1909) already divorced from her husband. As we know, she became Monsieur Caillaux's wife in 1911. These two letters, which disappeared from Monsieur Caillaux's writing-table are the two letters to which reference is made at the end of the last chapter, letters which Monsieur and

Madame Caillaux believed to be in the possession of Monsieur Calmette. The letters were of a most intimate character. One, a very short one, was written on letter paper with the heading of the Conseil Général de la Sarthe. The second, written on paper of the Chamber of Deputies, was a long sixteen-page letter containing, Monsieur Caillaux said, the story for the last few years of all the intimacies of his life. "In this letter," Monsieur Caillaux said, "I told my future wife, at length, of the reasons, many of which were based on political grounds, which prevented me from freeing myself immediately from my wife (Madame Gueydan) and from marrying her." Monsieur Caillaux was much upset at the discovery that Madame Gueydan-Caillaux had possession of these letters, and for their restitution he offered his wife either a complete reconciliation or a divorce. Madame Gueydan-Caillaux accepted the reconciliation with her husband, and on November 5, 1909, the parties met in the presence of Monsieur Privat-Deschanel, the secretary of the Ministry of Finance, and an intimate friend of Monsieur Caillaux's, at Monsieur Caillaux's house, 12 Rue Pierre Charron. In Monsieur Privat-Deschanel's presence the letters were solemnly burned, together with others bearing on the disagreement between husband and wife. Before they were burned Madame Gueydan-Caillaux gave her word of honour to her husband and to Monsieur Privat-Deschanel that she had kept no photograph and no copy of the letters. Their destruction was followed by a complete reconciliation. Monsieur Caillaux declared that as far as he was concerned the reconciliation was sincere, that he gave up all thought of Madame Raynouard-Claretie, his present wife, and he asked Monsieur Boucard to call on Monsieur Privat-Deschanel to bear witness to this. Some months later Monsieur Caillaux found, he says, that it was quite impossible for him to remain friends with his wife, and at the beginning of July 1910 he instituted divorce proceedings. The divorce was pronounced on March 9, 1911 by agreement between the two parties. Very soon after, in November of the same year, Monsieur Caillaux was married in Paris to the divorced wife of Monsieur Léo Claretie, who is now in prison for the murder of Monsieur Gaston Calmette. As a curious sidelight on the mixture of intimate home details and of politics in the Caillaux drama it is worth while remembering here, that in her evidence to the examining magistrate Madame Gueydan, Monsieur Caillaux's first wife, stated the reasons, as she understood them, for this change of mind on the part of Monsieur Caillaux. She declared that in November 1909 Monsieur Caillaux, being a candidate

for re-election in the Sarthe District feared that her possession of the letters and her antagonism to himself might make trouble for him during the electoral campaign. In April 1910 the election was over and he was elected, he feared her no longer, wanted to marry his present wife, and instituted divorce proceedings in consequence in July, forcing her to allow herself to be divorced by the sheer deadweight of his influence, which if exercised against her would, she knew, have prohibited her from obtaining the services of the best counsel and have reduced her to absolute penury. In October 1911 when Monsieur Caillaux was Prime Minister, his *chef de cabinet*, Monsieur Desclaux, told him one day that a journalist, Monsieur Vervoort, who was on the *Gil Blas*, had been offered by Madame Gueydan, his former wife, the right to publish certain letters. The details which Monsieur Vervoort gave about these letters, referred exactly, Monsieur Caillaux said, to the two letters which his former wife had burned in his presence, and to a letter which appeared in the *Figaro* of March 13, 1914, in facsimile. This letter was written by Monsieur Caillaux to his first wife, Madame Gueydan, before he married her. Like the others it was a love letter with long passages about politics in it. It was written thirteen years ago, but it contained Monsieur Caillaux's statement: "I have crushed the income-tax while appearing to defend it." (J'ai écrasé l'impôt sur le revenu en ayant l'air de le défendre.) It is this letter portions of which the *Figaro* published in facsimile. It was written in Monsieur Caillaux's well-known handwriting, and he had signed it "Ton Jo". The intimacy of the "Ton" was of course in itself something of an outrage when it appeared in a newspaper, for the letter was written to another man's wife.



Miroir Photo, Paris

M. PRIVAT-DESCHANEL WHO WITNESSED THE DESTRUCTION OF
THE LETTERS BY MME. GUEYDAN-CAILLAUX.

Monsieur Caillaux considered, he said, that the letters (the “Ton Jo” letter and the other two) formed a trilogy, so that if one were published, publication of the two others was likely. When Monsieur Desclaux told him what Monsieur Vervoort had said, Monsieur Caillaux answered, “These letters have been stolen from me. Their publication would cause me pain because of their intimate bearing on my private life. I cannot believe that any journalist could have so little respect for himself or his profession as to make use of such weapons.” Monsieur Desclaux replied that neither Monsieur Vervoort nor his editor, Monsieur Pierre Mortier, were going to use the letters. Some weeks after this Monsieur Caillaux married his present wife. Monsieur Caillaux at this point in his evidence broke off to declare to Monsieur Boucard that his second marriage was a very happy one. This declaration was not as unnecessary as it sounds at first sight, for long before the actual drama, during the weeks of the bitter campaign in the *Figaro* against the Minister of Finance, from January’s beginning till the day of M. Calmette’s death, and afterwards, Paris gossip had been very busy with the names of both men. They were said to be rivals in their private lives. I do not care to go into the details of the gossip which associated their names in rivalry, for this gossip, in which another woman’s name was mentioned, is decidedly unpleasant. Monsieur Calmette’s married life would have been cut short by the law courts if death had not intervened, and if Monsieur Calmette had been killed on March 17, instead of on the 16th, his wife would no longer have been Madame Calmette. Divorce proceedings between the two had culminated, and the divorce would have been made absolute on that day. As it was Madame Calmette, whose father, Monsieur Prestat, is the chairman of the *Figaro* Company, learned the news of her husband’s murder only the day after it occurred. She had been away from Paris, and returned in the evening of March 16. As she left the railway station she heard the newspaper hawkers shouting the news, but believing that they were announcing the fall of the Cabinet did not take sufficient interest in the details to buy a paper. Next morning telegrams of condolence from her friends, and perusal of the morning papers told her what had happened, and incidentally apprised her that she inherited as his widow a much larger share of Monsieur Calmette’s large fortune than would otherwise have been hers. Gaston Calmette was of course a very rich man, for some years ago Monsieur Chauchard, the founder and principal shareholder of the *Magasins du Louvre* had left him a large slice of his great

wealth. Paris gossip had, as I have said, been busy linking the names of Messieurs Calmette and Caillaux, and this is not to be wondered at when it is remembered that Monsieur Calmette was on the point of being divorced, that Monsieur Caillaux had been divorced once from Madame Gueydan-Caillaux, the divorced wife of Monsieur Dupré, and that his present wife was the divorced wife of another man. Monsieur Caillaux in his evidence to Monsieur Boucard declared, however, that the stories of a disunion in his married life were absolute nonsense, and that it was so absurd to say that there was any disunion between him and his present wife that the two of them used to laugh at the gossip to which I have referred. He added that there was no reason for any personal animosity towards himself on Monsieur Calmette's part, and that he had never given him any reason for such animosity. "On several occasions," he said, "during the last few months I was asked to start a campaign against Monsieur Calmette personally, and papers to support it were brought to me. I always refused these offers." Monsieur Caillaux then spoke of the other documents in Monsieur Calmette's possession. These were of course the letter written by the Procureur Général, Monsieur Victor Fabre, which Monsieur Barthou read in the Chamber of Deputies on March 17, and other documents which are known as "the green papers." These were telegrams and copies of telegrams referring to the incident of Agadir. They were of so grave a nature that Monsieur Calmette had been asked not to publish them for diplomatic reasons. "I should like to point out" (said Monsieur Caillaux), "that I could have no possible fear personally of the publication of these documents. On the contrary I should as far as I am myself concerned have been glad to see them published. A day will come when time has smoothed over old sores, and I shall be able to speak freely. I have written a book on Agadir, and it will be seen when that can be published that the documents, the letters, and the telegrams in this book will convince all Frenchmen, not only of my patriotism, but of my political clearness of vision." Monsieur Caillaux declared that he knew exactly what was going on in the *Figaro* office, and that he knew that Monsieur Calmette would make use of any weapons in his power to cause his overthrow. He then referred to a conversation in the street under a gas lamp between Monsieur Barthou and Madame Gueydan, his, Monsieur Caillaux's, former wife. During this conversation, he said, Madame Gueydan had read extracts from letters to Monsieur Barthou, and Monsieur Caillaux declared that he had understood from Monsieur Barthou

that these letters were the two private letters which had been stolen from him. The examining magistrate confronted Monsieur Barthou and Monsieur Caillaux at this point, and Monsieur Barthou stated that Monsieur Caillaux must have been mistaken. It was true that he had had a conversation with Madame Gueydan, but the letters she read to him were the Fabre letter and the “Ton Jo” letter, and it was to them that Monsieur Barthou had alluded afterwards in his conversation with Monsieur Caillaux. When the “Ton Jo” letter appeared in the *Figaro* on March 13 Monsieur Caillaux was greatly upset, although the more personal portions of the letter had been cut. On the next day, Saturday the 14th, he stated, he received an anonymous letter saying that the *Figaro* was going to publish the other two letters, and the same day he received from other sources confirmation of this. “I had told my wife all about these things,” he said. “She was entirely in my confidence, and she expected these stolen letters to be published. Their publication would have affected me comparatively little, but would have wounded my wife in her dignity as a woman, and distressed her more than I can say.” Monsieur Caillaux then told the examining magistrate the events of the day of the murder as he knew them, beginning with the statement that his wife’s nerves were shattered, and that she was and had been for some time, in a state of considerable over-excitement. She read the *Figaro* every morning, her general health was bad, and the campaign had overpowered her. “At nine o’clock on the morning of March 16 my wife walked into my dressing-room with the *Figaro* in her hand,” said Monsieur Caillaux. “She showed me the paper with a headline ‘Intermède Comique—Ton Jo.’ ‘Presently,’ she said, ‘we shall see your pet name for *me* in the public Press like this,’ and she threw the paper angrily on a chair. ‘Can’t you put a stop to this campaign?’ she asked me. And we decided to consult Monsieur Monier the President of the Civil Tribunal of the Seine.”



Miroir, Photo, Paris.

M. BARTHOU MOUNTING THE STAIRS OF THE LAW COURTS ON
HIS WAY TO GIVE EVIDENCE IN THE CAILLAUX CASE.

“It was my intention to go and see him that day at half-past one, but I forgot that he would be busy at the Palace of Justice at that time. I had to go to the meeting of the Cabinet at the Elysée, and when Monsieur Monier called at half-past ten my wife received him alone.” Monsieur Caillaux then repeated his conversation with his wife when she called for him before luncheon at the Ministère de Finances. His evidence on this point and the evidence of Madame Caillaux are identical. From the examining magistrate’s report of the evidence given by Monsieur Caillaux he appears to have said nothing to his wife of his own conversation with the President of the Republic. Monsieur Caillaux confirms his wife’s statement that he said to her, “I shall go and smash Calmette’s face.” Their car was in the Rue Royale when Madame Caillaux asked him whether he intended to do so that day. “I answered,” Monsieur Caillaux said, “No, not to-day. I shall choose my own time, but the time is not far off.”

After luncheon, as Monsieur Caillaux was leaving the house, Madame Caillaux told him that she was afraid she would not be able to dine at the Italian Embassy. “She certainly looked ill and worn out,” Monsieur Caillaux said, “and I asked her to send my servant to the Ministry of Finance with my evening clothes. I understand that my wife sent a telephone message to the Italian Embassy a little later to say that I should go to the dinner without her. This, I would like to point out, shows that she had no idea at that time of what was going to happen, for if she had made up her mind then, she would either have said that neither of us was going to the Italian Embassy or she would have said nothing. I left my wife without any apprehensions, except that I was uneasy at her weakness and the condition of her nerves. At about three o’clock that afternoon I met Monsieur Ceccaldi at the Senate, and told him how uneasy I felt. When I returned to the Ministry of Finance I learned what had happened, and went to the police-station at once. My wife’s first words to me when I got there and saw her were, ‘I *do* hope that I haven’t killed him. I merely wanted to give him a lesson. ’”

This was the end of Monsieur Caillaux’s evidence in the examining magistrate’s room at the Palace of Justice on April 8, 1914. Monsieur Privat-Deschanel was called and confirmed that portion of it which referred to the burning of the Gueydan-Caillaux letters, and the declaration by Monsieur Caillaux’s first wife that she had kept no copies or photographs of

them. “The scene,” said Monsieur Privat-Deschanel, “was such a moving one, and impressed me so deeply, that though it happened four years ago everything that was done and every word that was spoken have remained graven on my memory.”

V

THE CAMPAIGN OF THE “FIGARO”

IN order to understand the details of the Caillaux drama, it is necessary to search for the reasons which contributed to the bitter campaign in the *Figaro* against Madame Caillaux's husband, the Minister of Finance. In order to understand these reasons fully it will be necessary to go some way back into the history of French politics, when some insight will be possible into the inner meaning of the campaign, into the interests which lay behind it, and the reason of its bitterness. When Monsieur Raymond Poincaré was elected President of the French Republic, his election gave great offence to that breaker of Cabinets, the veteran statesman Georges Clemenceau. Monsieur Clemenceau had been a supporter of Monsieur Poincaré's rival, Monsieur Pams, and resented deeply the election of the man whom he had not backed. Soon after the presidential election the new President of the Republic gave another cause for offence to Monsieur Clemenceau by choosing Monsieur Louis Barthou as Prime Minister.

Monsieur Clemenceau vowed revenge, and true to his invariable system of playing the Eminence Grise in French politics, he buried the hatchet with Monsieur Caillaux, whom during the Agadir crisis he had openly declared to be liable to a trial before the high court for high treason, and with Monsieur Briand's help did everything possible to make matters uncomfortable for Monsieur Barthou and his Cabinet, and for the man whose policy that Cabinet represented, the new President of the French Republic, Monsieur Raymond Poincaré.

The campaign was almost a French War of the Roses. It was conducted with bitterness on either side, and the Clemenceau faction won the first battle, overthrowing the Barthou Cabinet, and securing the return to power of Monsieur Caillaux, while Monsieur Briand, by his own choice stood aside. Nominally the new Cabinet was under the leadership of the Prime Minister, Monsieur Gaston Doumergue.

Actually Monsieur Caillaux as Minister of Finance and Monsieur Monis as Minister of Marine were the two twin rulers in the new Government of France with Monsieur Clemenceau behind them as general adviser.

Now Monsieur Briand, though Monsieur Clemenceau's sworn friend, politically, was no real friend politically of Monsieur Caillaux. The two men represented different factions, for in the neighbourhood of 1913 Monsieur Caillaux had founded the radical unified party, the programme of which he announced in a great meeting at Pau that year, and Monsieur Briand very shortly afterwards founded the Federation of the Left, a form of moderate Socialism which combated the extreme radicalism of Monsieur Caillaux's party on many points. Then Monsieur Caillaux began to make mistakes, most of which were largely due to his impulsiveness, his ill-temper in the wrong places, and his natural gift for making enemies. Monsieur Barthou set to work to fight Monsieur Caillaux and called Monsieur Calmette to help him. Public rumour added that there was personal animosity and personal rivalry between these two men, but whether this be true or not their political rivalry was undoubted, and the reasons for such political rivalry are plain. Both were rich men, but while Monsieur Caillaux represented reforms for the lower middle class at the expense of the rich, Monsieur Calmette representing the party of property, the party which we in England should describe as that of men having a stake in the country, fought these reforms with all the influence at his command as editor and director of a great newspaper. He set out to pull Caillaux down from his position, and his task was a comparatively easy one owing to the unreasoned outbursts of temper with which Monsieur Caillaux exposed the weak points in his armour on many occasions, the number of mistakes impulse had caused him to make in the past, and his growing unpopularity. From the beginning of January 1914 until his death on March 16, hardly a day passed without an article of a column or more, and sometimes much more, by Monsieur Calmette in the *Figaro* attacking Monsieur Caillaux, Monsieur Caillaux's past, and Monsieur Caillaux's policy. He was attacked as a politician, as a man, and as a financier, and his silence under attack made the attacks which followed more bitter instead of putting an end to them. Six years ago the Rochette affair had, directly and indirectly, been the cause of more than one storm in the French political tea-cup. It had brought the fierce light of publicity to bear on many public men, and politicians feared publication of the details of the case as much, almost,

as the side issues of the Dreyfus case were feared some years before, and as, before that, the Panama and other scandals had been feared. During the Agadir trouble Monsieur Caillaux had laid himself open to a great deal of criticism, and the *Figaro* did not hesitate to disinter both these affairs and use them as a weapon against Monsieur Caillaux. Another affair of lesser importance in which Monsieur Caillaux's name was mentioned in the *Figaro* campaign was the affair of the Prieu inheritance. In this connexion the *Figaro* did not hesitate to accuse Monsieur Caillaux of dishonourable conduct, and to base on it his unfitness for the post of a Minister of France. It is almost impossible in the space at my command to give all the details of a newspaper campaign such as this against a Minister in power. The campaign lasted nearly three months, and it was so many-sided that I should need another volume if I were to attempt to set down its details fully. But I may resume the broad lines of the *Figaro* campaign against Monsieur Caillaux and the reason which the *Figaro* itself gave to its readers for that campaign. Monsieur Calmette from the first declared that he considered the return to power of Monsieur Joseph Caillaux after his downfall in 1911 as a veritable misfortune to France. He considered that the presence of Monsieur Caillaux in the Cabinet was of real peril to French interests, and, as I have explained, it was undoubtedly a peril to the interests of the rich men's party which the *Figaro* represented, for Monsieur Caillaux was determined to carry through his tax on accumulated property, and the general idea of this tax was decidedly popular. There is nothing Frenchmen love so much as making a rich man pay. Monsieur Caillaux with political astuteness saw the vote-catching possibilities of his measure, was doing everything in his power to maintain the Doumergue Ministry, of which he was the leading member, at the helm of public affairs until this year's elections, and would undoubtedly have succeeded.

Monsieur Calmette, with the help of Monsieur Caillaux's political enemies, was working hard for the overthrow of the Cabinet, or rather for the overthrow of Monsieur Caillaux, for, as the *Figaro* wrote, it was Caillaux alone, Caillaux the Minister, Caillaux the politician, whom Calmette the politician wished to pull headlong. Day by day in the *Figaro* he put his adversary in the pillory. He stigmatized his conduct of the Franco-German negotiations in 1911, he recalled in stinging terms the general indignation which had wrecked the Caillaux Ministry after the resignation of Monsieur De Selves, the Minister for Foreign Affairs. He

recalled the work and the report of the Commission of Inquiry, over which Monsieur Raymond Poincaré (who was of course not President of the Republic then) presided, and wrote scathingly, fiercely almost, of Monsieur Caillaux's difficulties and quarrels with the Spanish Ambassador and with his Majesty's Ambassador Sir Francis Bertie. He recalled words used by Monsieur Caillaux which almost suggested that France under a Caillaux régime cared very little for the entente cordiale, and reproduced a threat, which rumour had reported, of undiplomatic reprisals towards Spain. Some months ago, to be precise on December 18, 1913, Monsieur Caillaux made a counter declaration to me personally in reply to the rumours that he had spoken against the entente cordiale. This declaration was made three weeks before the beginning of the daily campaign in the *Figaro*, and Monsieur Caillaux said for publication in the *Daily Express*, of which paper I was at that time the Paris correspondent, "I defy anyone to find in any word that I have spoken publicly, to find in any act of my public life, any ground for an assertion that I am not a whole-hearted partisan of the entente cordiale." Monsieur Caillaux added that he had relatives in England, that he was a great admirer of England and of Englishmen, and said: "I am convinced that the entente cordiale is an asset for the peace of Europe, and while as a Frenchman and a servant of France, I point out that France expects to reap equally with her partner the benefits of the entente cordiale, I am sure that England in her inherent fairness understands this, and is as anxious both to give and to take as France can be. I wish to express my amazement and my sorrow that even for a moment Englishmen should have thought me anything but their friend."

On the occasion of this interview, which was a long one, lasting a full hour at the beginning of the afternoon, and another half-hour later the same day when I submitted what I had written to Monsieur Caillaux before sending it to London, in order that there should be no discussion possible afterwards as to what he had really said, a good deal passed which I did not put into print.

In the interview as printed appeared an allusion by Monsieur Caillaux to the undue interference by Englishmen in France's home affairs. Monsieur Caillaux spoke that afternoon with ebullient freedom of expression about the British Ambassador in Paris, Sir Francis Bertie. He declared that Sir Francis went out of his way to make trouble and that he had worked against

him (Monsieur Caillaux) in London for the sheer pleasure of stirring up strife.

I thought it quite unnecessary to say these things aloud in an English newspaper, especially as, after saying them, Monsieur Caillaux asked me not to include them in the interview as he had no wish for a newspaper discussion with the British Ambassador. I quote them now merely for the purpose of showing the peculiar and unstatesmanlike quarrelsomeness of Monsieur Caillaux's temper. The man has very little self-restraint, and while many of his public acts and public sayings prove this, few of them prove it so conclusively as his outburst in his room at the Ministry of Finance, in the presence of the representative of an English newspaper, against the British Ambassador in Paris.

Following up these attacks on his personality the *Figaro* impugned Monsieur Caillaux's honour. It did this with the outspokenness which is a peculiarity of French newspaperdom, and which would be magnificent if it were not so frequently misused. Monsieur Caillaux was accused of changing his policy half a dozen times with the one pre-occupation of retaining his portfolio, was twitted with self-contradiction with regard to the income-tax law, and the immunity from taxation of French Rentes, and was openly taxed with encouraging dishonourable and dishonest speculation, if not of indulging in it himself. According to the *Figaro* Monsieur Caillaux made deliberate arrangements to allow friends of his to speculate and make large sums of money on the Paris Bourse, tuning his public statements to time with the deals of the speculators, and in answer to these accusations Monsieur Caillaux said nothing.

"The income-tax was Monsieur Caillaux's hobby horse. He has stated frequently that he has always been in favour of it," wrote the *Figaro* one day. "For many years the income-tax was the principal item of Monsieur Caillaux's political programme, and he told his constituents at Mamers that his political programme had never changed in its main lines." Then the *Figaro* reproduced in facsimile Monsieur Caillaux's letter to the first Madame Caillaux in which the words occurred: "I crushed the income-tax while pretending to defend it."

But these attacks on Monsieur Caillaux were by no means the only ones, and Monsieur Calmette also accused Monsieur Caillaux of favouring

Rochette's escape and interfering with the course of justice. These are the broad lines of the *Figaro* campaign against Monsieur Caillaux.

That some of the attacks were justifiable is undoubtedly the fact. That the manner of them was a worthy one is more open to discussion. Politicians must of course expect to be attacked by newspapers which oppose them, but there is little doubt that the bitterness and the persistence of this newspaper campaign worked its victim up to a state of frenzy, and the calm observer knows what effect daily attacks on a public man are likely to have on that public man's life within the four walls of his home. Monsieur Caillaux's excited declaration to the President of the Republic, his excitement in the motor car, when, driving with Madame Caillaux he declared that he would go down to the *Figaro* and chastise Monsieur Calmette, show the man's state of mind, and show us very clearly how that state of mind is likely to have reacted on his wife. I repeat that this book is in no sense an apology for Madame Caillaux's act of murder. I repeat that I do not wish to defend either Monsieur Caillaux or his wife. But in common fairness I cannot do otherwise than present as faithfully as possible the effect of the *Figaro* campaign against him, on Monsieur Caillaux and on his constant companion. Nor do I hesitate to say that while the bitterness of the *Figaro* campaign in no way excuses the murder of its editor by Madame Caillaux, no one can deny, I think, that it explains it.

VI

CALMETTE v. CAILLAUX

WHENEVER an official in the French Colonial Office had to refuse the application of a subordinate for leave, he would tone down his refusal with the metaphor, "We'll try and give you leave at all events before the *affaire* Prieu is decided finally." For many years *l'affaire* Prieu had been the Jarndyce v. Jarndyce case of the French Colonial Office, and it was almost forgotten when Monsieur Caillaux and the *Figaro* brought it back at a bound into the domain of actuality. The case was forgotten so thoroughly that when the *Figaro* mentioned it under the title of "Monsieur Caillaux's Secret Combinations" in an article signed by Monsieur Gaston Calmette on January 8, 1914, the name Prieu was misspelled "Priou".

The case in itself was one of concessions in Brazil. In the early years of the Third Republic a French merchant named Prieu died in France after a long life spent in Brazil. He had been a rich man and with the help of the French Consul in Rio de Janeiro had secured certain profitable concessions. At his death the French Government considered that these concessions lapsed to the State, and sold them. Monsieur Prieu's heirs claimed from the State a considerable sum, something between £120,000 and £160,000, of which their lawyers contended that the Government of France had frustrated them. The case dragged on for many years, and in 1909, when Monsieur Cochery was Finance Minister and Monsieur Renoult Under Secretary of State for Finance (Monsieur Renoult is Minister of the Interior in the Doumergue Cabinet), the case was practically shelved.

At that time the heirs of Monsieur Prieu, after getting a refusal to their offer to abandon their entire claim against the French Government in return for a cash payment of £20,000, were inclined to drop the whole case, the legal expenses of which were becoming embarrassing. They had put matters in the hands of a man of affairs, but he and they had little hope of any result, when, according to the *Figaro*, Monsieur Caillaux, on January 5,

1914, sent for their representative. The *Figaro* declared on the 8th, over the signature of Monsieur Gaston Calmette, that Monsieur Caillaux had stated to this gentleman that the claim of the Prieu family appeared to him to be justified, that the French Government would probably have to pay from £200,000 to £240,000 including compound interest on the debt, and that a transaction might be possible if the Prieu heirs were inclined to hand over a considerable percentage on the money paid them to the French Government for political needs. Obviously if Monsieur Caillaux really did make such an offer, did really offer to settle a case which had been in litigation for years and was about to lapse, provided the claimants would agree to pay a large percentage of the money back for party needs, he made an offer which he would find it difficult to defend in Parliament or elsewhere.

The *Figaro* was most assertive. Monsieur Calmette declared that Monsieur Caillaux had said: "If you get this money we must get some of it. The Government has its duties, and its needs." Monsieur Calmette went on to declare that a second interview had taken place at the Ministry of Finance the next day, the Tuesday, when Monsieur Caillaux had demanded 80 per cent. of the debt for the party coffers, and that on the Wednesday, the day before the *Figaro* article appeared, the representative of Monsieur Prieu's heirs and the Finance Minister had come to an agreement on terms somewhat less onerous than the 80 per cent. mentioned at first.

The disclosure of these curious proceedings created a storm in the political world of Paris, and although Monsieur Caillaux published a denial, in general terms his contradictions were not considered very satisfactory. The article in the *Figaro* had of course one result. Any settlement of the Prieu case on the lines above mentioned became quite impossible. One is inclined to wonder, now, whether the claimants will proceed against the French Government, prosecute their claim again, and call Monsieur Caillaux as a witness to declare in court that he considers the claim justifiable. It was rumoured at the time that Monsieur Calmette had offered to compensate the Prieu claimants for the loss which the publication in the *Figaro* of their dealings or attempt at dealing with Monsieur Caillaux would entail.

Whether this offer was actually made or not will probably be shown at the trial of Madame Caillaux, for the examining magistrate, Monsieur Boucard, has questioned the parties concerned. As I have said, the Prieu

case is an old one. It has been discussed in the Chamber of Deputies at intervals during the last thirty years, and the first interpellation on it goes back thirty-three years to July 8, 1881. Pierre Marcel Prieu was a candidate for Parliament in 1876 and in 1877. He died in 1899, in France, in poverty. To his last day he had protested against what he called “the theft” of his concessions by the French Government, and he had protested with such violence that he had been imprisoned for some months because of his protests. His claim was that the Brazilian Government had on August 30, and on September 6, 1879, paid the French Minister for Foreign Affairs in two cheques, one for £200,000 and one for £400,000, as a settlement of his concessions. These cheques were, he declared, made payable to the firm of Baring Brothers in London, and on January 4, 1880, the money—£600,000—was paid over by the Baring firm to the Paris bankers Hottinguer and Co. Pierre Marcel Prieu declared that the payment of this money was compensation by the Brazilian Government due to him personally for the unjustifiable seizure of thirteen merchant ships with merchandise by the Brazilian Customs. After Prieu’s death his heir, Monsieur D’Ariste, did not care to fight the case and made over his rights in it—whether with or without a quid pro quo does not appear—to relatives and friends of Prieu, who formed a syndicate for the purpose of recovering the debt or part of it from the French Government. The principal members of the little syndicate were Monsieur A. Boileau and Monsieur Prosper Sauvage. Their lawyer is Monsieur Antoine De Fonvielle, and they put their claims in the hands of a man of affairs, Monsieur Auguste Schneider. It is this gentleman who, according to the *Figaro* and Monsieur Gaston Calmette, called by appointment on Monday January 5, Tuesday the 6th, and Wednesday the 7th, 1914, at the Ministry of Finance, and agreed with Monsieur Caillaux to a settlement on the terms already stated.

According to Monsieur Calmette, Monsieur Caillaux bound himself to see that the full amount of the claim should be paid, and Monsieur Schneider was to sign an agreement on Saturday, January 10, by which he handed a large proportion of the money over to the party funds. Whether such an agreement was ever come to or not is the affair of the law courts. It must resolve itself into a case of hard swearing, for the contradictory assertions of both parties will be, in all probability, somewhat difficult of proof. The disclosures of these matters in the *Figaro* naturally enough put an end to all negotiations if such negotiations really took place.

On January 10 Monsieur Antoine de Fonvielle wrote a letter to Monsieur Calmette which I subjoin in full. It was printed in the *Figaro* on January 12. It is dated from Paris, where Monsieur de Fonvielle has a flat at 77 Rue du Rocher. "Monsieur le Directeur," he writes, "I was informed at about twelve o'clock on Friday last, January 8, of the campaign in the *Figaro* on the Prieu affair, of which I knew all the details. There are certain mistakes in the *Figaro* article, and it struck me as advisable to put the people interested in direct touch with the *Figaro*. I went therefore, on the evening of January 8, at about half-past ten, to see Monsieur Schneider, who lives at 57 Boulevard Beauséjour at Auteuil. Two people went with me and waited for me in a taxicab at the door of the house. I went to see Monsieur Schneider because he has for several years been the mandatory of the claimants in the Prieu affair. Monsieur Schneider has taken all the necessary steps to press the claims of the Prieu heirs with the French Foreign Office both in France and abroad, in England, and in Brazil.

"Monsieur Schneider, who was very surprised at my visit, introduced me to a journalist, Monsieur Vidal, who was with him. I asked Monsieur Schneider to go with me and see Monsieur Calmette at the *Figaro* office. Monsieur Schneider replied, 'There is no reason why I should put myself out for Monsieur Calmette. He has interfered quite enough already (*Il m'a assez mis des bâtons dans les roues*). If it had not been for his interference, the affair would have been settled by now.' I then told Monsieur Schneider that Monsieur Calmette had not sent me to ask him to come, but that I thought that in his own interests and in those of the heirs, he would do well to go to the *Figaro* office without delay, and tell the truth and all that he knew about this business. Monsieur Vidal got up from his seat, and said to Monsieur Schneider, 'Sir, I do not advise you to go. You must know what has been agreed.' I insisted, and Madame Schneider, who was putting her baby to bed in a room next door, came brusquely into the room and said to her husband, 'Do what Monsieur Vidal tells you, and do not go with Monsieur de Fonvielle.' I insisted again that he ought to go to the Rue Drouot with me, and Madame Schneider, who showed some excitement, told her husband to do what she suggested, adding, 'You can't do any good by going. Besides, you know what you promised Monsieur Caillaux.' I then thought it best to go. When I got downstairs I told the two people with me what had happened. One of them has material interests in the affair. (Signed) Antoine de Fonvielle."

Immediately under Monsieur de Fonvielle's letter, Monsieur Calmette published in the *Figaro* of January 12 letters from two members of the Prieu syndicate, Monsieur Boileau and Monsieur Prosper Sauvage. Monsieur Boileau made the following declaration: "As the papers had spoken of the Prieu affair, a meeting was called to hear what Monsieur Schneider had to say. Monsieur Schneider declared: 'I was very much surprised at the fuss made in the papers. The affair was going to be settled, and I had an appointment to-morrow, Saturday, January 10 (the meeting was at half-past eleven on the evening of the Friday), to receive a definite proposal.' I left the meeting with Monsieur Schneider, and as we went away together he made this remark to me: 'If the affair succeeds we shall have to leave a good many feathers behind us.'"

The third letter published by the *Figaro* was from another member of the Prieu syndicate, Monsieur Prosper Sauvage: "I was present at the meeting which was called to discuss the situation created by the articles in the *Figaro*," he wrote. "I was one of the first to arrive, and met Messieurs Monniot, Mazars, and Boileau. Naturally the conversation bore on the incidents of the day, and when I expressed my astonishment and my indignation at the proposal that the Government should take 80 per cent. for its electoral needs while the heirs received only 20 per cent. of the money, Monsieur Monniot declared that Monsieur Schneider had told him about the interview which he had had, and had confirmed these figures. He added that Monsieur Schneider had found the rate excessively high, and quite unacceptable. (Signed) Prosper Sauvage."

These letters appeared in the *Figaro* on January 12. The same day Monsieur Calmette accused Monsieur Caillaux of having extorted £16,000 from the Comptoir d'Escompte for the party funds. Monsieur Calmette wrote that Monsieur Ulmann, of the Comptoir d'Escompte, had been received at five o'clock one afternoon by Monsieur Caillaux, and that some days afterwards the £16,000 had been placed at the disposition of the Minister of Finance. Everybody concerned contradicted these statements very flatly, and as they have no bearing on the Caillaux drama other than to show the bitterness and personal nature of the attacks in the *Figaro* against Monsieur Caillaux we may leave them on one side.

Three days later, on January 15, Monsieur Francois Lebon published in *L'Œuvre*, a little weekly paper which has been in bitter opposition to the

present Government, an article on the scandals of the week, in which he referred to the Prieu affair, and to the affair of the Comptoir d'Escompte. In this article, which is the more worth quoting because it attacks not only Monsieur Caillaux but the present parliamentary régime in France as well, Monsieur Lebon exclaims against the outcry which many people raise against such revelations as those made by the *Figaro*, that "they tarnish the good name of the Republic."

"The republican régime," writes Monsieur Lebon, "is settling down in the mud. We may consider it permissible to think that a few more stains will not be much more visible. When a man is drowning it is perhaps an excess of precaution to refrain from throwing him a rope for fear of splashing him with a few drops of water. One of these days it will become perceptible that if the Third Republic fell so low, it was because the Third Republic was 'la République des camarades.'"

This is severe language from a Frenchman about France, but unfortunately there is much in the political history of recent years to support this charge of graft and of corruption. Charges of corruption in the N'Goko Tanga affair, charges which were not altogether denied satisfactorily, were brought by Monsieur Ceccaldi when the colonial Budget came up for discussion, and the fact that Monsieur Ceccaldi has since become a close friend and supporter of the Caillaux Government makes these charges all the more significant now. Each Government in France has a secret fund of £44,000; £24,000 of this fund are used comparatively openly. The little balance of £20,000 is not nearly enough for the funds needed by the Government at the general elections, and it is a well-known fact that a great deal more is spent.

The question as to where this money comes from is hardly a mystery. The Mascuraud committee, an association of parliamentarians and commercial men, has been generous with money in the past. This year it is said to have withheld a large proportion of its usual subsidy, and the *Figaro* and other Opposition papers declare that Monsieur Caillaux did what he did for the purpose of ensuring at the coming elections the election of Government candidates for the Chamber of Deputies.



Agence Nouvelle—Photo, Paris.

MONSIEUR CAILLAUX'S FRIEND, M. CECCALDI.

On January 15 another long article over Monsieur Calmette's signature in the *Figaro* dealt severely with Monsieur Caillaux's relations with

financial men in Paris. The suggestion made was that Monsieur Caillaux, who was a member of the board of the Argentine Crédit Foncier, the Egyptian Crédit Foncier and other enterprises of international finance, was for personal and pecuniary reasons unable to resist the pressure brought to bear on him by his colleagues among the directors of these financial boards, and was obliged to do what they told him to do, irrespective of his own political convictions or of the higher interests of the country, which interests he as a Minister of the State should have considered first.

According to the *Figaro*, a Monsieur Arthur Spitzer, an Austrian by birth, a Frenchman by naturalization, and one of the most influential directors of the big French bank, the Société Générale, had gained his position there owing to the influence and recommendation of Sir Ernest Cassel.

“Since 1911,” said the *Figaro*, “the French Prime Ministers and Finance Ministers had successively expressed their opinions that Monsieur Spitzer took too large a share in every sense of the word of the big loans which were launched on the Paris market. In consequence Monsieur Spitzer’s re-election to the board of the Société Générale in 1913 was indirectly opposed by the Government. Monsieur Spitzer, in deference to the expression of this opinion which was conveyed to the Société Générale by a permanent official of the Ministry of Finance, resigned his position on the board of the Société Générale, but he remained on the board of the Crédit Foncier Argentin and on the board of the Crédit Foncier Egyptien, of which two boards of directors Monsieur Caillaux was a member. The intermediary between the Government and the Société Générale in the secret and delicate negotiations which resulted in the resignation of Monsieur Spitzer had been Monsieur Luquet, one of the principal permanent officials in the Ministry of Finance. Shortly after Monsieur Caillaux’s return to power an intimate friend of Monsieur Spitzer, Monsieur André Homberg, a director of the Société Générale, and another financial magnate whose name the *Figaro* does not mention, called on Monsieur Caillaux at the Ministry of Finance, and shortly afterwards Monsieur Luquet was superseded and was succeeded in his post by Monsieur Privat-Deschanel, the general secretary of the Financial office, the man in whose presence Madame Gueydan had burned her husband’s, Monsieur Caillaux, letters. In other words, Monsieur Calmette accused Monsieur Caillaux of allowing himself to be influenced

by his financial friends to serve their financial needs by the removal of a useful servant of the country. On the following day, January 16, the *Figaro* launched another accusation against Monsieur Caillaux, that of interfering between two big shipping companies in order to please his financial friends.”

There is no need to go into the details of the quarrel between the South Atlantic Company and the Compagnie Transatlantique. Suffice it to say that the *Figaro* accused Monsieur Caillaux of acting in an arbitrary fashion and taking orders for his conduct from certain financial magnates, among whom was Monsieur André Homberg of the Société Générale. On January 19, Monsieur Gaston Calmette announced for the following day a series of articles describing “the nefarious part played by Monsieur Caillaux in the events which preceded the sending of a German gunboat to Agadir.” On the 20th this series of articles began. They continued without intermission till January 24. I shall refer to them more fully in another chapter of this book.

On January 26, Monsieur Gaston Calmette called Monsieur Caillaux to account in the *Figaro* on the question of a heavy fine of £325,000 which had been inflicted on a Paris bank (the Banque Perrier) for the non-observance of certain formalities in connexion with an emission of two million pounds sterling of Ottoman bonds. Monsieur Gaston Calmette returned the next day to the question, twitting Monsieur Caillaux somewhat cruelly with his inability to give a satisfactory reply. On Wednesday, January 28, he returned to the charge again and at some length on the front page of the *Figaro*, dropping it on the 29th for an article of two columns and a half on Monsieur Caillaux’s connexion with the Crédit Foncier Egyptien and the Crédit Foncier Argentin.

In this article Monsieur Calmette deliberately accused Monsieur Caillaux of allowing quantities of South American bonds and shares an official quotation on the Paris Bourse because Monsieur Spitzer, Monsieur Ullmann and others of his financial friends were interested in placing these bonds in France. Monsieur Calmette declared that during the six months of Monsieur Caillaux’s tenure of office as Finance Minister in 1911, that is to say from February to June of that year, South American bonds and shares to the amount of forty million pounds sterling received an official quotation on the Paris Bourse, and he drew up and published a Table showing the prices at which the quotations had been given, and the depreciation of these stocks

and shares during the three years which followed. The depreciation is about twenty-five per cent. In other words, according to the *Figaro*, Monsieur Caillaux's admission of these enormous blocks of South American bonds on the Paris Bourse resulted in a loss to French investors of ten millions sterling.

Naturally enough Monsieur Caillaux replied through the official Havas agency, and in reply to his *communiqué* Monsieur Calmette on January 30 returned to the charge, emphasising his original accusations.

On the first of February Monsieur Caillaux visited his constituency of Mamers. The *Figaro* on that day published a long and bitter article describing the misdeeds of the Minister of Finance since his entry into politics. On the 2nd it published two columns more containing a sarcastic appreciation of Monsieur Caillaux's visit to Mamers. On February 5, Monsieur Caillaux was accused in the *Figaro* of postponing the French loan and so inducing French investors to place their money elsewhere, notably in Italy. On February 7 the *Figaro* accuses Monsieur Caillaux, of "continuing to earn the gratitude of the Triple Alliance." After adjourning the French loan and so facilitating the success of one Prussian loan, and the preparation of a second, "Monsieur Caillaux," he is told by the *Figaro*, "has enabled the Hungarian Government to contract a loan of twenty millions sterling." "When all our enemies have filled their Treasuries," says the *Figaro* of February 7, "perhaps Monsieur Caillaux will make up his mind to reveal the great plans and schemes to which he has subordinated the eventual issue of a French loan." On Sunday February 8 the *Figaro* contented itself with publishing a photograph of Monsieur Caillaux, and making fun of it, but day by day no number of the paper appeared without an attack on him of one kind or another. On February 11, announcing the Finance Minister's resignation from the board of the Crédit Foncier Argentin, Monsieur Calmette comments on it in these words: "Monsieur Henri Poirier, an intimate friend of Monsieur Spitzer, has taken his, Monsieur Caillaux's, place provisionally. When Monsieur Caillaux wishes to return to the board there is no doubt that Monsieur Poirier will make way for him." On February 19, commenting on the statement in the Senate of Monsieur Caillaux, two days before, that he had never said in 1901 that a Minister of Finance would never consent to interfere with all the taxes, the *Figaro* gives him the lie direct, quotes the speech he made on July 4, 1901, and declares

that it is a complete condemnation of his whole fiscal policy at the present time. On the 20th Monsieur Calmette returns to the charge, compares several speeches of Monsieur Caillaux made at different dates, and comments on them in these words: "Monsieur Caillaux modifies his declarations and his financial programme according to whether he is a Minister in power or anxious to become one, according to whether he is speaking so as to remain in office or speaking against the Ministry so as to overthrow it." On February 25 Monsieur Gaston Calmette returns to "the secret combinations of Monsieur Caillaux," and the big fine of £325,000, "which was imposed but never collected," and ends his article by the accusation that Monsieur Caillaux, for private reasons, authorized a loan issued by a South American bank after the authorization had been refused three times by his predecessor Monsieur Pichon. On Thursday, February 26, the *Figaro* returns to the attack on the same subject. On March 2, 1914, Monsieur Calmette published a letter written on December 19, 1908, by Monsieur Caillaux, who was then Minister of Finance, to Monsieur Clemenceau, who was then Prime Minister and Minister of the Interior. In this letter Monsieur Caillaux protests against the publication in the *Journal Officiel* of advertisements of foreign lottery bonds. "Six months after the date of this letter," says Monsieur Calmette, "the Clemenceau Cabinet fell, and Monsieur Caillaux in the following autumn became President of the board of the Crédit Foncier Egyptien. He remained President of that board till January 1914, even while he was a member of the Cabinet again from March 2, 1911, till January 10, 1912. In December 1908 while Monsieur Caillaux was Minister of Finance and was not yet on the board of the Crédit Foncier Egyptien he had refused the introduction on the Paris market of 800,000 lottery bonds. In 1912 he authorized their introduction." "Our plutocratic demagogue," writes Monsieur Calmette, "had found in the interval between 1908 and 1912, 100,000 good reasons for suppressing his refusal of 1908 to give these bonds a market."

This article is of course a deliberate accusation of financial and political dishonesty. On March 3, Monsieur Calmette returns to the question of the South Atlantic Shipping Company. On the 4th, Monsieur Calmette warns the public against a loan which is to be issued by this company, and suggests that Monsieur Caillaux's reasons for encouraging it are reasons of party policy, and anything but straightforward. On March 5 the *Figaro*, over the signature of Monsieur Gaston Calmette, accuses Monsieur Caillaux

publicly of facilitating a Stock Exchange *coup* by enabling his friends to gamble, with a certainty of success, in the price of French Rentes on the Paris Bourse.

This accusation needs a few words of explanation. The budget proposals contained one item of supreme interest to French investors. This was the taxation of stocks. On March 4 at five o'clock it became "known" in the lobbies of the Chamber and in the newspaper offices of Paris that Monsieur Caillaux intended to omit French Rentes from his scheme of taxation. Naturally this expected immunity of French Rentes from taxation was the reason of a rise of French Rentes. On the Thursday, March 5, Monsieur Caillaux contradicted the rumour of the afternoon before, and declared that he intended to propose the taxation of French Rentes. At twenty minutes to twelve on that morning, when the sworn brokers of the Paris Bourse fixed the opening price, the official contradiction had not reached them. At twelve o'clock, when the opening price was published on the Bourse, Rentes were up to 88.80, the highest price which had been reached since the declaration of war in the Balkans. A large amount of stock changed hands at this high price. Seven minutes later Monsieur Caillaux's *communiqué* was generally known, and Rentes fell forty centimes in a few minutes, entailing heavy losses.

Monsieur Barthou made a cynical and characteristic comment on this Bourse operation. "The money was not lost to everybody," he said. On March 8 Monsieur Gaston Calmette stigmatizes Monsieur Caillaux's behaviour with reference to the immunity and taxation of French Rentes as "a double pirouette, a looping-the-loop act which allowed certain friends of the Minister of Finance, of whom he was very fond and whom he kept very well informed, to execute a most audacious Stock Exchange *coup*."

Monsieur Calmette follows this up by a personal attack on Monsieur Caillaux, who, he declared, stated through the Agence Havas on December 28 that he had resigned his position on the board of the Crédit Foncier Egyptien and the Crédit Foncier Argentin, that Monsieur Caillaux had misstated the truth, and that he was still a member of these boards and drawing a large sum for his services. On March 10 Monsieur Calmette attacked Monsieur Caillaux in an article which occupied nearly three columns of the front page of the *Figaro*, on his behaviour in the Rochette case.

This article was of course written with the knowledge that the letter of Monsieur Victor Fabre, the Procureur Général, which appears earlier in this volume, would, if published, support the charges made by Monsieur Gaston Calmette against Monsieur Caillaux, and Monsieur Monis. It marks the last stage of this long series of personal attacks in the *Figaro*, far too many of which attacks appear to be only too well deserved.

“For Rochette to escape from legal punishment for his crime against the investing public it was necessary that his case should not come on for trial on April 27, 1911,” wrote Monsieur Calmette in the *Figaro* on March 10, 1914. The meaning of this is that by French law a prosecution which has not been followed by execution within three years falls to the ground and becomes null and void. Rochette would be a free man if he remained unsentenced three years after his first prosecution in 1908. On March 2, 1911, wrote Monsieur Calmette, “Monsieur Caillaux became Minister of Finance in the Cabinet of which Monsieur Monis was Prime Minister, and Monsieur Perrier Minister of Justice. Rochette had been arrested on March 20, 1908. On May 8 he was released provisionally. He was tried on July 27, 1910, sentenced to prison, appealed, and was able to continue his inroads on the private fortunes of France in all tranquillity. Rochette in 1908 continued to speculate and continued to empty France’s woollen stocking. He got seventy-two million francs of small investors’ money before his arrest, he got sixty-eight million francs more out of it afterwards. If his case did not come on before the three years were up he would be a free man.”

Monsieur Calmette then tells the story of the pressure which was brought to bear by Monsieur Monis and Monsieur Caillaux on Monsieur Fabre and on Judge Bidault de L’Isle, which story we know in all its details now, and he comments on it in these words: “Rochette was saved. All he had to do was to wait for the previous procedure to be proclaimed null and void, and this was done on February 2, 1912. When, to his amazement, a new suit was commenced under the Cabinet of which Monsieur Poincaré was Prime Minister, Rochette took flight. He is a free man to-day, freer and better protected than all of us. He will smile as he reads this indiscreet account of his troubles which are over, and in his gratitude he will send from overseas a gracious greeting to the Minister of Finance, his saviour and his friend. Monsieur Caillaux it was who demanded, who obtained, who insisted on, the various postponements which allowed Rochette to

thieve with impunity. Monsieur Caillaux it was who allowed Rochette to proceed during the long legal procedure with the systematic spoliation of the public purse for which he had been arrested, tried, and sentenced once. The protector, the accomplice, of this shady financier is Monsieur Caillaux. Monsieur Caillaux it was who *in exchange for subventions of money to the newspapers which supported him and his policy* facilitated, prolonged, and increased the strength of the influence of this Stock Exchange adventurer on the public whom he was ruining.

“There you have the plutocratic demagogue! There you have the man of the Congo, the man who nearly made us quarrel with England and with Spain, the man of the Crédit Foncier Egyptien lottery bonds, the man who drew money for serving on financial boards and for services rendered, the man who indulged in secret machinations and criminal intervention, the Finance Minister of the Doumergue Cabinet! Neither the Commission of Inquiry nor Monsieur Jaurès ever really understood the Rochette affair. They guessed something about it, they felt what it meant, instinctively, and they stopped their inquiry, frightened by so much illegality, disgusted at so many crimes. Now you know the truth of it all. Here it stands revealed in all its nakedness to the public whose savings have been stolen. It can be resumed in one word—infamy! It can be resumed in one name—Caillaux!”

On March 11, Monsieur Calmette pointed out that Monsieur Caillaux had issued no official contradiction to the terrible accusations in the *Figaro* of the day before. On Thursday, March 12, he called public attention again to Monsieur Caillaux’s silence, and in heavy black type in the very centre of the front page of his paper appeared these three lines, which were, so soon, to be fraught with tragic consequence.

“WE SHALL PUBLISH TO-MORROW A CURIOUS
AUTOGRAPH DEDICATED BY MONSIEUR
JOSEPH CAILLAUX TO HIS ELECTORS.”

On Friday, March 13, 1914—those of my readers who are superstitious will take note that it was a Friday and a thirteenth of the month—the “Ton Jo” letter appeared on the front page of the *Figaro*.

VII

THE “TON JO” LETTER

SENAT.

With the best will in the world it was impossible for me to write to you yesterday. I had to take my part in two terribly tiring sessions of the Chamber, one in the morning; at nine o'clock, which finished at midday, the other at two o'clock, from which I only got away at eight o'clock in the evening, dead beat.

However, I secured a magnificent success. I crushed^[2] the income-tax while appearing to defend it, I received an ovation from the Centre and from the Right, and I managed not to make the Left too discontented. I succeeded in giving the wheel a turn towards the Right which was quite indispensable.

To-day I had another morning session at the Chamber which only finished at a quarter to one.

I am now at the Senate where I am going to have the law on the contributions directes voted, and this evening, no doubt, the session will be over. I shall be dead tired, stupid, ill almost, but I shall have done a real service to my country.

Ton Jo.

That is the “Ton Jo” letter. That is the document which, printed in big black type in the centre of the front page of the *Figaro* on Friday, March 13, 1914, and re-printed in facsimile lower down on the same page, was followed on the 16th by the revolver shots which killed Monsieur Gaston Calmette. The letter was written by Monsieur Caillaux on July 5, 1901—thirteen years before it was published in the *Figaro*. When he wrote it Monsieur Caillaux was Minister of Finance in the Waldeck-Rousseau Cabinet, and apart from the tragic event which followed close on its publication, the letter is a curious and upsetting confession of political duplicity. The income-tax has been Monsieur Joseph Caillaux’s hobby horse for many years. It is an uncomfortable sensation to read, over his own signature, this confession, in his own handwriting, that while appearing to fight for the tax he was really doing his best to crush it out of sight. The natural deduction was of course that Monsieur Caillaux was now, in 1914, pursuing the same tactics which he pursued thirteen years ago.

La véritable déclaration de M. Caillaux relative à l’impôt sur le revenu

Malgré toute ma bonne volonté
il m'a été impossible de t'écrire
hier. J'en due, en effet, rester deux
heures courantes à la Chambre l'un
le matin à 9 heures puis à finir à midi,
l'après à 2 heures dont je me occu-
pait jusqu'à 8 heures hier soir. J'ai
d'ailleurs reçu par ces très beau-
coup : j'ai coram l'impôt sur le
revenu en ayant l'air de le défendre.
Je me suis fait acclamer par la
gauche et par la droite et je n'ai

pas trop mécontenté la gauche. Je suis
arrivé à donner un coup de main à
droite qui était indispensable.

Aujourd'hui j'ai eu encore une
bonne matinée à la Chambre qui ne
s'est terminée qu'à 1 heure moins le
quart. Elle s'est au soir où je suis
allé voter la loi sur la contribution
directe et, à son tour droite, la
gauche s'en est allée. Je suis harassé,
absolument, presque malade, mais
j'aurai rendu un vrai service
à mon pays.

Bon, Jz

THE “TON JO” LETTER FROM THE *FIGARO*

Friday, March 13, 1914

Once again his speeches have shown him as a partisan of the income-tax, and a partisan of the taxation of French Rentes. The “Ton Jo” letter leaves us uncertain whether this partisanship is not merely a political move, and whether Monsieur Caillaux may not again be “crushing the income-tax while appearing to defend it.” His own letter is a terrible comment on his policy, and it is difficult to exaggerate the shock which the publication of this letter caused in Parliament and among the supporters of the Minister of Finance and of the present Government.

Needless to say, Monsieur Gaston Calmette made the most of it. He embodied the letter in a long article in which he repeated his former accusations against Monsieur Caillaux, accused him of conniving at the escape of Rochette from justice because Rochette’s money was useful to his personal policy, accused him of deliberate lying in the announcement he made of his resignation from the board of the *Crédit Foncier Egyptien*, accused him openly of felony in connexion with the *Bourse coup* and the tax.

The “Ton Jo” letter was not published in its entirety. Monsieur Calmette wrote that he suppressed the end of it because that referred to a subject which had nothing to do with fiscal questions. The name of the person to whom it was written was also suppressed, but every one in Paris knew very soon that the letter had been written to Madame Gueydan-Dupré, who afterwards—five years after the letter’s date, when she was divorced—became the wife of Monsieur Caillaux. When the letter was written in these intimate terms Madame Gueydan-Dupré, whom Monsieur Caillaux addressed with the familiar “tu” which means so much in French, his note to whom he signed “Ton Jo,” was the wife of another man. When that letter was published, the woman, to whom it had been written thirteen years before, had been the wife of Monsieur Joseph Caillaux for five years and had ceased to be his wife, had been divorced from him for two years.

It is easy to imagine the feelings of the present Madame Caillaux, of the successor of Madame Gueydan in Monsieur Caillaux’s affections, when she saw this letter reproduced in facsimile on the front page of the *Figaro*, and realized that all France was reading between the lines. It can have mattered very little to her that Monsieur Calmette had suppressed the last few lines of this letter. The mere fact that the first part of it was published, that in his article he made it clear that he knew how it had begun and ended, and made

clear to others to whom it had been written, was all-sufficient for the woman who now bears Monsieur Caillaux's name. That woman knew that there had been other letters in existence. She knew that Monsieur Caillaux had written letters to her which had been at one time in the possession of the woman to whom this "Ton Jo" letter was addressed, and these letters contained, as she well knew, the same mixture of love and politics as the document published on that Friday, March 14.

Her own married life before she became Monsieur Caillaux's wife had not been happy. She knew and dreaded the power and the will to injure of a woman scorned. She knew of course of the dramatic scene which had occurred before she married Monsieur Caillaux, between her husband and his first wife, Madame Gueydan. She knew that the letters which she dreaded had been destroyed on that occasion, but she knew, too, that their destruction had been obtained at the price of a reconciliation between Monsieur Caillaux and his first wife, and she knew, no woman better, that Monsieur Caillaux had not kept to the spirit of the bargain, had obtained a divorce from his first wife, shortly after the destruction of these letters, and immediately after his divorce had become her own husband. She was not sure that there were no copies of the letters in existence.

One shudders to visualize that interview between husband and wife on the morning of Friday, March 13. One can realize the fears which were expressed, the mud of past years which was stirred. And that morning, we may be fairly certain, the first thought of desperation was born in Madame Caillaux's brain. Can you not see this woman thinking, pondering, murmuring to herself, "This must be stopped"? Can you not see her snatching at her copy of the *Figaro* next morning, skipping with an impatient shrug of the shoulders her husband's *communiqué* to the Agence Havas, and reading down the page with anxious eyes to see whether the revelation of the letters which she feared would follow? One shudders at the mental picture of the lives of Monsieur and of Madame Caillaux, of this man and this woman, during the days which followed the publication of the "Ton Jo" letter. And when she saw, on Monday, March 16, that Monsieur Calmette had not stopped his campaign against her husband although three days before, on the 13th, he had said "My task is finished" one can realize her anguish—the anguish of fear.

VIII

AGADIR

IN almost every newspaper article which I have read on the Caillaux drama one sentence has invariably amused me. "The question of Agadir," we read, in French and English papers both, "is too fresh in the reader's mind for any exhaustive reference to it here to be necessary." But memories are short in these fast-living days, and though the history of Agadir is recent history, no story of the Caillaux drama can be complete without recalling it at length. For one of the accusations against Monsieur Caillaux as a politician which the *Figaro* made constantly is that Monsieur Caillaux made mistake on mistake, and was misled by his hatred of the Ministers who had been instrumental in the original and comparative settlement of the Moroccan difficulties, to do grave wrong to France over the Agadir matter.

His hatred of his parliamentary opponents, it was said at the time, was very nearly instrumental in creating serious international complications. Further imprudence was shown by his endeavour to palliate the effect of his first ill-considered act, and he was finally forced to consent to concessions on behalf of France which France need not have made at all if Monsieur Caillaux had been more prudent from the beginning.

This, stripped of all vituperation, is the accusation which Monsieur Caillaux has to answer before the tribunal of history. Let us look into it. In order to do so we must go back to the Act of Algeciras. It will be remembered that the Act of Algeciras gave France the right of policing Morocco because of its neighbourhood to Algiers. Three years after the Act of Algeciras French troops were in occupation of certain portions of Moroccan territory, and the jingo party, the Pan-Germanists, in Germany were protesting with heat against this military occupation.

The peace party in Germany, however, had other views. There was a feeling that an understanding on the basis of the act of Algeciras between

France and Germany might lead to a weakening of the Entente between France and Great Britain, and be useful economically to German enterprise.

On February 8, 1909, when Monsieur Clemenceau was at the head of the French Government with Monsieur Stephen Pichon as his Foreign Minister, Germany recognized, more freely than it had recognized before, the interests of France in Morocco for the maintenance of order, and promised collaboration economically. A secret letter changed hands, confirming this agreement, and admitting that Germany should remain disinterested in the politics of Morocco. In this same letter it was admitted also that the economic interests of France in Morocco were more important than the economic interests of Germany. The importance of this letter rested of course on the fact that it practically entailed the suppression of immediate friction between the two countries.

The Clemenceau Cabinet worked hard to carry the good work further still, so that the spirit of this Franco-German understanding should be extended to the Congo. The French representative of the bondholders of the Moroccan debt, Monsieur Guiot, who had been in the French Foreign Office, paid a visit to Berlin, and the result of his negotiations with the German Foreign Office in the Wilhelmstrasse was a memorandum dated June 2, 1909, by which it was decided to create a Franco-German Company for the purpose of exploiting certain concessions. On June 5 the French Minister for Foreign Affairs, Monsieur Pichon, took counsel with the French Colonial Minister, Monsieur Milliés-Lacroix, on the advantages and disadvantages of this Franco-German collaboration.

At the end of July 1909, the Clemenceau Cabinet fell. Monsieur Briand became Prime Minister and retained Monsieur Pichon at the Quai d'Orsay, but Monsieur Clemenceau dropped out of the Cabinet and Monsieur Caillaux was no longer Minister of Finance.

It is not too much to say that the Clemenceau-Caillaux alliance dates from this little upheaval in French internal politics, and it was at this point that Monsieur Caillaux's enmity to Monsieur Briand and Monsieur Pichon first led him astray.

On August 2, 1909, the N'Goko Sanga Company, in reply to a letter from the Minister for Foreign Affairs offered to give up, against a substantial indemnity, a portion of the territory for which it held

concessions. A commission was formed to discuss terms, but it was not till April 29, 1910, that the amount of the indemnity was definitely stated. The indemnity was to be F2,393,000 or £95,720.

On February 17, 1910, after the French and German Governments had signified in October of the year before their approval of the provisional agreement between Monsieur Guiot and the Wilhelmstrasse, the Moroccan Company of Public Works was formed. It had a capital of F2,000,000, fifty per cent. of which was in French hands, twenty-six per cent. in German hands, and the remaining twenty-four per cent. in the hands of the other Powers who had signed the Act of Algeciras. Then parliamentary politics in France had their say in the matter, and the Radicals, Socialists and Radical-Socialists in France, with Monsieur Caillaux in the foreground of debate, made use of the question of the N'Goko Sanga indemnity as a weapon in Parliament against Monsieur Briand.

In consequence of this, the summer of 1910 did not bring with it any definite advance in the Franco-German understanding which had appeared to be so full of promise. In November 1910, after the strike of railway men had weakened the authority of the French Government somewhat, the N'Goko Sanga question came up in Parliament once more, and the Franco-German understanding on Moroccan affairs and the affairs of the Congo became enveloped in an immense haze of words. By February 1911 the German negotiators began to show impatience, although on or about the 15th of the month the Imperial Government had, to all practical intent, agreed to allow, to a Franco-German company, concessions in the German Cameroons. A fortnight after that, on February 28, 1911, Monsieur Briand and his Cabinet were forced to resign. On March 3, Monsieur Monis became Prime Minister of France, and Monsieur Caillaux was his Minister of Finance. The Monis Cabinet found itself weighted with immense responsibility. The situation in Morocco was extremely difficult, and the French Government found itself on the horns of a dilemma. On the one side were the promises made and the engagements formed by the Governments in France which had preceded Monsieur Monis, owing to which the Monis Cabinet was obliged, if it wished to remain true to the policy on which it had gained power, to break with the line of conduct followed by former French Cabinets in relation to Germany for two years. On the other side

was the very real danger of breaking, without any other reason than that of internal politics, with the pacific policy of the last twenty-four months.

The internal troubles in Morocco, making French military action a necessity, put the French Government in the awkward position of giving Germany the appearance of a real grievance by the military steps which had to be taken, and the Pan-Germanists of course jumped at the pretext for accusing France of laying forcible hands, or attempting to lay forcible hands on Morocco in spite of all past treaties and agreements and without ensuring to Germany the share which had been promised her in 1909.

I would ask the reader of this book who has had the strength of will to struggle with the tortuous paths of Franco-German difficulties which led to the Agadir climax, to memorize this situation for the sake of a clearer comprehension of what follows. On the one side two years of Anglo-French negotiations which promised comparative peace for the future; on the other, the sudden breaking off of all negotiations and apparent disregard on the part of France for everything which had smoothed over the situation before. The fact that the change of policy had become a necessity owing to Cabinet changes in France and the promises made by members of the new Cabinet to their constituents could not be offered as a reason. At the best they could be offered as an excuse, and it was this necessity of making excuses which enabled the German Government to voice the claim for compensation which was to result in a territorial loss which France will never forgive the Ministers who were responsible, and which will make it difficult for either of them to take leading parts in France's government again for many years to come.

The first thing which the Monis Cabinet did was to bulldoze (it seems the only word to use) the question of the Franco-German understandings in Congo and Cameroon. This measure was taken in spite of warnings in high quarters in France. President Fallières is known to have been against the measure and to have expressed his views as forcibly as the French Constitution allowed him to express them, and Monsieur Conty, the director of political affairs in the French Foreign Office, was distinctly adverse to the measure as well. Monsieur Conty knew that for twenty years past, one of the principal pre-occupations of the German Government was the African question, and he knew that the German colonial party was very

warmly supported by the Pan-Germanists, and had considerable influence with the Kaiser himself.

On these grounds in a note which he handed to Monsieur Cruppi, Monsieur Conty (who is now in 1914 the French Minister at Peking) pointed out the wire-pulling powers of the German interests in the Cameroon and Congo companies, and warned the French Government that there was grave danger to peace in ignoring their claims. He pointed out that while the Kaiser was known to be pacific and conciliatory at the time, he might be forced by the Pan-German and colonial interests to demonstrate again as he had demonstrated once before at Tangier, and that the result was almost bound to be France's abandonment to Germany of advantages which she might, by a show of generosity now, keep secure.

How right Monsieur Conty was Monsieur Caillaux himself was obliged to admit nearly a year later when in the Senate he said: "I do not deny that the rupture of the Franco-German partnership in Cameroon and the Congo had diplomatic consequences." Unfortunately at this time (March 1911) the principal pre-occupation of the Monis Cabinet was its desire to break away from the policy of the Cabinet of Monsieur Briand to which, logically, it should have adhered.

Monsieur Caillaux was credited at the time with one of those famous epigrammatic outbursts of his which have done him harm on various occasions, when, as this one must be, they are quoted against him. "We really can't have Briand's policy mounted in diamonds and wear it as a scarfpin," Monsieur Caillaux is reported to have said. The epigram, whether he made it or not—and I believe that he did make it—expresses very neatly—far too neatly—the chief motive which underlay the policy of the Monis Cabinet at that time, and which was the main cause of that Cabinet's stubborn opposition to the advice of Monsieur Conty and the advice of the President of the Republic himself.

On March 29, in spite of an eloquent and perfectly constitutional warning from Monsieur Fallières at a Cabinet Council, the Colonial Minister in the Monis Cabinet, Monsieur Messimy, was instructed to declare the consortium in Cameroon and the Congo arrangement impossible. He made this declaration before the Budget committee at the end of March and to the Chamber of Deputies on April 4. On April 3, the

French Government learned of serious trouble in Morocco. Several tribes were rising, and military intervention became inevitable. German irritation was growing. The German object, or at all events one of Germany's main objects, in the discussions and negotiations which began in 1909 and broke off so suddenly and so dangerously in 1911 had been to ensure a German share in the public works which were becoming needful in Morocco. Germany had received as the price of a concession to France an assurance that this share would be granted. In the secret letter, which I have mentioned already, Germany admitted the pre-eminence of French interests in Morocco, and approved the constitution of a society of public works in which the German share of capital was to be much smaller than the French share.

When the Monis-Caillaux-Cruppi Cabinet took the reins in France, the German Government asked the French Government to intervene semi-officially so that the promised interests of the German shareholders should be properly protected. The French Government refused. Such intervention would be equivalent, it was explained, to admitting privilege or monopoly, and such an admission was against all Radical principles.

The German Government, with great patience, pointed out that what was really required was some sort of a guarantee that a French tender should not be accepted to the prejudice of the German share of the concessions. The question was one which lent itself to much discussion, many words, long correspondence and wearisome delays, and presently the question of the railways complicated it still further. In the secret letter of 1909 it had been stipulated that the directors of the Moroccan railways should be French. The German Government now claimed that this clause should be taken to mean that *only the directors* of the railway lines should be Frenchmen and that a large proportion of the subordinate railway servants should be German. Here again Monsieur Caillaux's unfortunate propensity for epigram did not forsake him. "We can't have German stationmasters in spiked helmets in the railway stations of Morocco," he said.

The French Government made no counter-proposal with regard to the management of the Moroccan railways, and the Berlin Government remained silent on the question. This silence gave all thinking men considerable grounds for uneasiness. It was felt that a very thinly veiled

antagonism on all questions of detail was making itself very apparent at the Wilhelmstrasse. There was no definite decision made with regard to Moroccan mining rights either, and it was just about this time that the claims and concessions of the Mannesmann Brothers began to be spoken of.

The situation became quite critical, and there is no doubt that the critical trend of the situation was due very largely to the determination of the Monis Government not to "have Monsieur Briand's policy mounted as a scarfpin." If Monsieur Cruppi and his colleagues had been able to approve the convention with Germany for N'Goko Sanga and the Congo which Monsieur Pichon had prepared, there would have been no excuse for the remark which was made soon afterwards to the French Ambassador in Berlin by Herr von Kiderlen Waechter. "When the railway question fell through I saw that you had made your minds up not to work in concert with us in any matter whatsoever."

Things were going from bad to worse in Morocco itself, and French troops had to be sent on the road to Fez. On April 3, 1911, the French Government ordered French troops to co-operate with the Sultan in the chastisement of rebel bands. On April 17 (President Fallières had left for Tunis on the 15th), the French Government placed 2400 men at the disposal of General Moinier. On April 23, a column was sent to the suburbs of Fez and on May 21 the French tricolour floated beneath the walls of the Moroccan capital.

The German Government said nothing, but a rumble of popular displeasure was heard all over Germany. Herr von Kiderlen Waechter and the German Chancellor received in stony silence the communication made by the French Ambassador in Berlin, Monsieur Jules Cambon, that it had been necessary to send French troops to Fez to protect French subjects and to preserve order. German official newspapers announced, unofficially but obviously on official inspiration, that Germany was about to resume her freedom of action.

At this time there was question (it was about the end of April) of a railway from the German Cameroons to the Belgian Congo. The line would of course, as a glance at the map shows, have to run through the French Congo. For the moment it looked as though there was a loophole for agreement which might lead to others, in this German line across French

territory. This hope disappeared however, and in May 1911 the Agadir *coup* was decided on. Germany realized that the only way of obtaining “compensation” was a threat. The *Panther* went to Agadir. The French Ambassador had a conversation with the German Secretary of State at Kissingen. The German Press was howling. Herr von Kiderlen Waechter answered Monsieur Jules Cambon’s question as to what Germany wanted, in these words: “See what you can give us in the Congo.” A few days later the Monis Cabinet fell, the Caillaux Cabinet came into power, and the *Panther* and the *Berlin* arrived off Agadir. The question of compensation had become acute.

At the beginning of July 1911, English opinion was favourable to Germany’s desires. The Potsdam agreement had soothed Russian fears in the East, France’s march on Fez had excited Spain and made her uneasy, and Italy was beginning to cast greedy eyes on Tripoli. There was very little protest internationally, at first at all events, when the *Panther* and the *Berlin* went to Agadir. Monsieur de Selves, the French Foreign Minister, left Paris for Holland on July 3. On July 4, Monsieur Caillaux, who as Prime Minister took over the Foreign Office while Monsieur de Selves was away, instructed Monsieur Paul Cambon to advise the British Government that France would make no immediate retort to the threat of Germany off Agadir. Monsieur Caillaux gave these instructions in direct opposition to the opinion of Monsieur de Selves which he expressed very clearly in a long telegram from Holland to Paris.

In spite of this telegram from the Minister for Foreign Affairs Monsieur Caillaux telegraphed to Monsieur Paul Cambon as follows: “The German Government has invited us to enter into conversation with regard to Moroccan affairs. We must therefore ask the German Government first of all to explain the object of this conversation. According to the reply of the German Government it will be time, after it has been made, for us to decide whether we should make a naval demonstration in the southern waters of Morocco. I beg you therefore to avoid advising the British Government of any intention for the moment on our part of sending warships either to Agadir or to Mogador.”

The British Cabinet had been asked by Monsieur Paul Cambon, on the instructions of Monsieur de Selves, as to England’s intentions, but before a reply was given Monsieur Caillaux’s telegram had arrived. The Russian

Government remained passive. Germany realized that her bluff would not be called. On July 7 Monsieur de Selves returned from Holland, and Herr von Schoen, the German Ambassador in Paris made the first suggestion of "compensation." France, in principle, was not averse to compensation of a kind. If it was to be a question of the Congo she asked Germany to explain what she wanted.

There was no objection in Paris to a rectification of the Cameroon frontier line, but France wanted to know what Germany was prepared to do in exchange in Morocco. Herr von Kiderlen Waechter on July 30 suggested that an agreement which should follow the lines of the 1909 understanding might be possible. Monsieur de Selves immediately asked, through Monsieur Jules Cambon, for a written note explaining and setting forth this suggestion. It was not till July 15 that the French Government knew what the German demands really were, and decided that on such lines as the cession of all Gabon and all the Congo between the ocean and the Sanga it was quite useless to continue talking. English opinion became uneasy at Germany's demands.

Lord Morley wrote in the *Times* on July 19, "If we do not learn by other means what is going on at Agadir, public opinion may be that we ought to go and see for ourselves."

Belgian opinion became alarmed at the menace to the Belgian Congo. On July 21, Sir Edward Grey spoke very clearly and Mr. Lloyd George declared the same evening that war was better than peace with humiliation. He added that the safety of Great Britain's commerce overseas was no question of party, and that the national honour was at stake. England to a man showed that it was prepared to back France against the German demands. The Franco-British Entente Cordiale, which had been asleep for a fortnight, became more wideawake than ever. Mr. Asquith described the situation as "extremely difficult."

The situation of the German Government in view of this awakening of public opinion seemed to have two issues only. Either an ultimatum in reply to the French Government's refusal to submit, or the acceptance in principle of a rectification of the Congo-Cameroon frontier and the granting to France of sufficient authority to cope with the threat of anarchy in Morocco. An ultimatum would have meant war, and Germany would have appeared

to be the aggressor. The abandonment of her claims was an awkward step to take.

It seems, however, likely that Germany would have taken it, if she had not believed that secret negotiations with prominent men in France were possible. The conduct of these secret negotiations without the knowledge of Monsieur de Selves is the reason which induced Monsieur Clemenceau to say later that Monsieur Caillaux ought to be impeached by the high court for high treason. It is very difficult to state with absolute precision exactly what these negotiations were. According to Monsieur Caillaux the first mention of the Belgian Congo was made by Monsieur von Lancken, but there seems to be every reason to believe that Monsieur Caillaux lost his head a little and introduced the question himself. If this be so Monsieur Caillaux committed a grave fault in tactics, and it appears certain that the German Government considered Monsieur Caillaux an easier person to deal with in these matters than his Foreign Minister. Monsieur Caillaux's opinions on the value to France of British help were certainly very well known—too well known in fact—in the German Embassy in Paris. Monsieur Caillaux was believed by the German Foreign Office to put no faith in eventual help in France's need from the British army. This anxiety on the part Monsieur Caillaux, and the knowledge of this anxiety in German official quarters, enabled the Wilhelmstrasse to exercise indirect pressure.

It is not known exactly, and I do not suppose ever will be known exactly, what negotiations were carried on with Herr von Gwinner of the Deutsche Bank and with or through Sir Ernest Cassel. But on July 28, the German Government was convinced that Monsieur Caillaux was ready to treat. On that date, when Monsieur Jules Cambon asked the German Foreign Minister whether Germany were not ready to find some means of transaction other than the mutilation of the French Congo, Herr von Kiderlen Waechter replied: "No, the question is no longer what it was." This reply is noted in the French Yellow Book.

Monsieur Caillaux's personal interference in the negotiations undoubtedly allowed the German Foreign Office time to breathe, and the Cabinet of Berlin took care to fix her claims on the Congo in such a way as not to justify British alarm, and to offer with one hand what it withdrew with the other, in Morocco. These negotiations lasted fully three months, during which time it is not too much to say that France and Germany, or

better still France, Germany and Europe generally, were on the very verge of war more than once.

Rumour has been busy with sidelights on the negotiations which took place, and not the least interesting of these sidelights is afforded by the telegram which is said to have passed between Berlin and Paris, between the Wilhelmstrasse and the German Embassy: "Do not waste time in discussion with De Selves or Cambon. We can get more out of Caillaux." I do not know whether these are the exact words of the famous telegram, but they are certainly the gist of its meaning. It may be taken as certain that the telegram was sent and received, that Monsieur de Selves obtained possession of it, and that Monsieur Calmette would have published it in the *Figaro* in the course of his campaign against Monsieur Caillaux if he had not been induced to refrain from so doing on patriotic grounds. Several people have seen and read this telegram. After the death of Gaston Calmette it was found in his pocket book with a bullet-hole through it, and handed over, by the brothers of the dead man, to Monsieur Raymond Poincaré in person, for safe keeping. It is the telegram which is currently known as "the green document" because of the paper on which it was transcribed. The French Foreign Office was in possession at this time of the cipher which was used for telegraphic communications between Paris and Berlin by the Wilhelmstrasse and the German Embassy in Paris. Monsieur de Selves knew therefore that "the green document" had been sent, knew its contents, and had a very stormy interview with Monsieur Caillaux, his Prime Minister, in consequence.

The interview was a dramatic one. Monsieur de Selves when he learned of "the green document" consulted Monsieur Clemenceau and Monsieur Briand. He spoke of it, I believe, in other quarters also, and eventually he asked President Fallières to confront him with Monsieur Caillaux so that the discussion on Monsieur Caillaux's interference with the negotiations between the French and German Foreign Offices should take place in the presence of the President of the Republic. Monsieur Caillaux, in a fury of indignation, declared to Monsieur Fallières that there was no truth in the insinuation contained in the message, and went straight to the German Embassy to ask what they meant there by the assertion made in "the green document." The obvious answer to this ill-considered step was an immediate change in the Wilhelmstrasse cipher. Monsieur Caillaux, by his

fit of anger and his imprudence, had lost to his Government a valuable source of information.

There is no need here to give the details of the agreement with Germany which was concluded not very long after the events just mentioned. There can be little doubt, I think, that France might have made a much better bargain if Monsieur Caillaux had been a little cooler and shown less unwisdom. On November 6 Monsieur Caillaux in a speech to his constituents at Saint Calais defended his policy. A week after this speech the German treaty was discussed for a full week in the Chamber, and accepted on November 21. During this week's debate Monsieur Caillaux was attacked with some vivacity, and Monsieur de Selves' attitude gave cause for much excitement. On January 9, 1912, the Senate sitting in committee discussed the Franco-German treaty. In the course of this discussion Monsieur Caillaux, the Prime Minister, explained the conditions under which the negotiations for Franco-German collaboration in the N'Goko Sanga Company and the Congo Cameroon Railway had fallen through, and made this declaration: "An attempt has been made in the Press and elsewhere to establish the story that negotiations with Germany were carried on outside the negotiations of the Ministry for Foreign Affairs. *I give my word of honour that there were never any such negotiations beyond those carried on through diplomatic channels.*"

This declaration was listened to in deep silence, which Monsieur Clemenceau broke. "Will the Minister for Foreign Affairs," said Monsieur Clemenceau, "state whether documents are in existence showing that our Ambassador in Berlin complained of the intrusion of certain people into the diplomatic negotiations between France and Germany?"

The members of the senatorial commission all turned to Monsieur de Selves, but Monsieur de Selves remained silent. Monsieur Caillaux, who had sat down, jumped up again, but Monsieur Clemenceau prevented him from speaking. "I am not addressing myself to you, Monsieur le President du Conseil," he said. "I put this question to the Minister for Foreign Affairs."

Monsieur de Selves, who showed considerable emotion and some hesitation, rose from his seat and said, "Gentlemen, I am divided between the wish to speak the truth and the responsibilities of my situation as

Minister for Foreign Affairs. I ask the permission of the commission to remain silent and to give no answer to the question Monsieur Clemenceau has just asked.” “Your reply,” said Monsieur Clemenceau, “may be perfectly satisfactory to my colleagues, but it cannot be satisfactory to me. I maintain that your reply cannot and does not give satisfaction to the man to whom you have already given your confidence. I am that man, and I will add that you gave me your confidence unsolicited.”

There was a moment of extreme tension, of extreme uneasiness, almost of stupor. Monsieur Clemenceau had spoken with great emphasis. His meaning was self-evident. The situation was a painfully dramatic one, for the statement of Monsieur Caillaux, the Prime Minister, that there had been no negotiations carried on without the knowledge of the Minister for Foreign Affairs appeared to be in flagrant contradiction with Monsieur de Selves’ reticence, and the statement was given the lie direct by Monsieur Clemenceau. The emotion was such that the session of the senatorial commission broke up there and then, and the senators dispersed after adjourning to another day.

That afternoon there was a confidential interview between Messrs. Caillaux, Clemenceau and De Selves, and the same evening the Minister for Foreign Affairs, Monsieur de Selves, handed in his resignation to the President of the Republic in the following letter, dated Paris January 9. “Monsieur le Président,” he wrote, “After the painful incident which occurred to-day at the session of the senatorial commission, I have the honour to ask you to accept my resignation as Minister for Foreign Affairs. It would be impossible for me to undertake any longer the responsibility of a foreign policy for which unity of views and unity of action are withheld from me in the Cabinet. My anxiety to obtain a satisfactory result in official negotiations of difficulty and to obtain the approval of Parliament on my efforts has been responsible for my remaining in office so long. But the double anxiety I have endured neither to withhold the truth, nor to fail in my duty to my colleagues, makes it impossible for me to remain in the Cabinet. I shall always remember the forbearance and kindness with which you have honoured me in delicate circumstances which it is impossible for me to forget. I beg you to receive, Monsieur le Président, the assurance of my profound respect.”

We know now that Monsieur Clemenceau alluded to the “document vert” when he made the accusation against Monsieur Caillaux to which I have already referred. The President of the Republic accepted the resignation of Monsieur de Selves on the evening of January 9, and on January 10, 1912, the Caillaux Cabinet was forced to resign office.

IX

L'AFFAIRE ROCHETTE

IN the first chapter of this book is reproduced *in extenso* the statement of Monsieur Victor Fabre, Procureur Général, a legal official of judge's rank, whose position somewhat resembles that of the Public Prosecutor in England. Monsieur Fabre, the gravity of whose statement caused the downfall of the Monis-Caillaux Cabinet, declared that pressure had been brought to bear on him to postpone or adjourn the trial of a financier named Rochette, who, since the postponement of his trial has escaped abroad, and is abroad still.

The bearing of this statement on the Caillaux drama will be seen in a moment by the perusal of the examination on March 20, 1914, of Monsieur Monis and of Monsieur Caillaux by the parliamentary commission appointed after the storm caused by Monsieur Barthou's reading of Monsieur Fabre's statement to inquire again into the facts of the postponement of Rochette's trial. I quote the details from the official records transcribed from the shorthand notes of the parliamentary inquiry which are in my possession. The inquiry was voted by the Chamber of Deputies on March 17. I may add here that Monsieur Fabre, whose written statement made it necessary, was punished for making that statement, or, rather, for allowing himself to be coerced by the Prime Minister and Monsieur Caillaux, and now occupies a position of lower rank with a smaller salary, at Aix instead of Paris. His successor as Procureur Général, Monsieur Herbaut, will probably act as public prosecutor when Madame Caillaux is tried. On March 20, 1914, at half-past nine in the morning, Monsieur Monis, who was by then no longer Prime Minister, was introduced before the Commission of Inquiry, consisting of Monsieur Jaurès, who presided, and thirty-two other deputies. "Early in the month of March 1911," said Monsieur Monis, "when my Cabinet was barely a fortnight old, I received the visit of the Minister of Finance, Monsieur

Caillaux. Monsieur Caillaux told me that he was anxious to oblige the lawyer, Maître Maurice Bernard, who had represented him in his divorce proceedings against his first wife (Madame Gueydan Dupré), and that Maître Bernard had asked for a postponement of the Rochette affair.”

“Monsieur Caillaux,” Monsieur Monis said, “pointed out that apart from his own wish to oblige Maître Bernard it might be dangerous, for political reasons, to refuse his request for the postponement of the Rochette trial.” “Maître Bernard,” he said, “is a very vehement man, and a lawyer of great gifts. If the trial takes place now he is certain to point out the number of issues of bonds and shares which have been made in recent years on the Bourse, and authorized by the Government, which have dwindled in value, which have caused heavy loss to investors, which issues of stock have never, for all that, resulted in the taking of legal proceedings. An outcry is sure to be raised round a speech of this kind in the Law Courts, and the outcry is sure to have political results. One of the first of these will surely be a number of questions in the Chamber of Deputies. The Government has troubles enough of its own just now without adding to them in this way. It will be much wiser to grant Maître Bernard’s request and postpone the trial.”

It was as a result of this conversation between Monsieur Monis, the Prime Minister, and his colleague the Minister of Finance, Monsieur Caillaux, that the trial of Rochette was postponed. Even without going into any details now, though I am afraid that it will be necessary to go into a good many details presently, the verbatim report of this interview throws a curious light on the close connexion in France between the Government of the country and the country’s legal procedure. Monsieur Caillaux’s reference to Rochette’s power, or rather the power of Rochette’s lawyer, of causing the Government serious inconvenience by an exposure of the number of losses to which French investors have been subjected recently, points very clearly to a none too heavily veiled attempt on the part of Rochette to blackmail the Minister of Finance, and not only points to such an attempt, but looks very much as though it had succeeded, for the blackmailer’s object in this case was not money but time, and he was given time to escape doing it. But perhaps the best way to realize what this man Rochette was and is, and how he obtained the power of forcing the French Government to take so strange a step as to order a judge and the Public

Prosecutor to postpone his trial and so secure his impunity and his escape from all further worry, is to look into the history of Monsieur Rochette himself from the beginning.

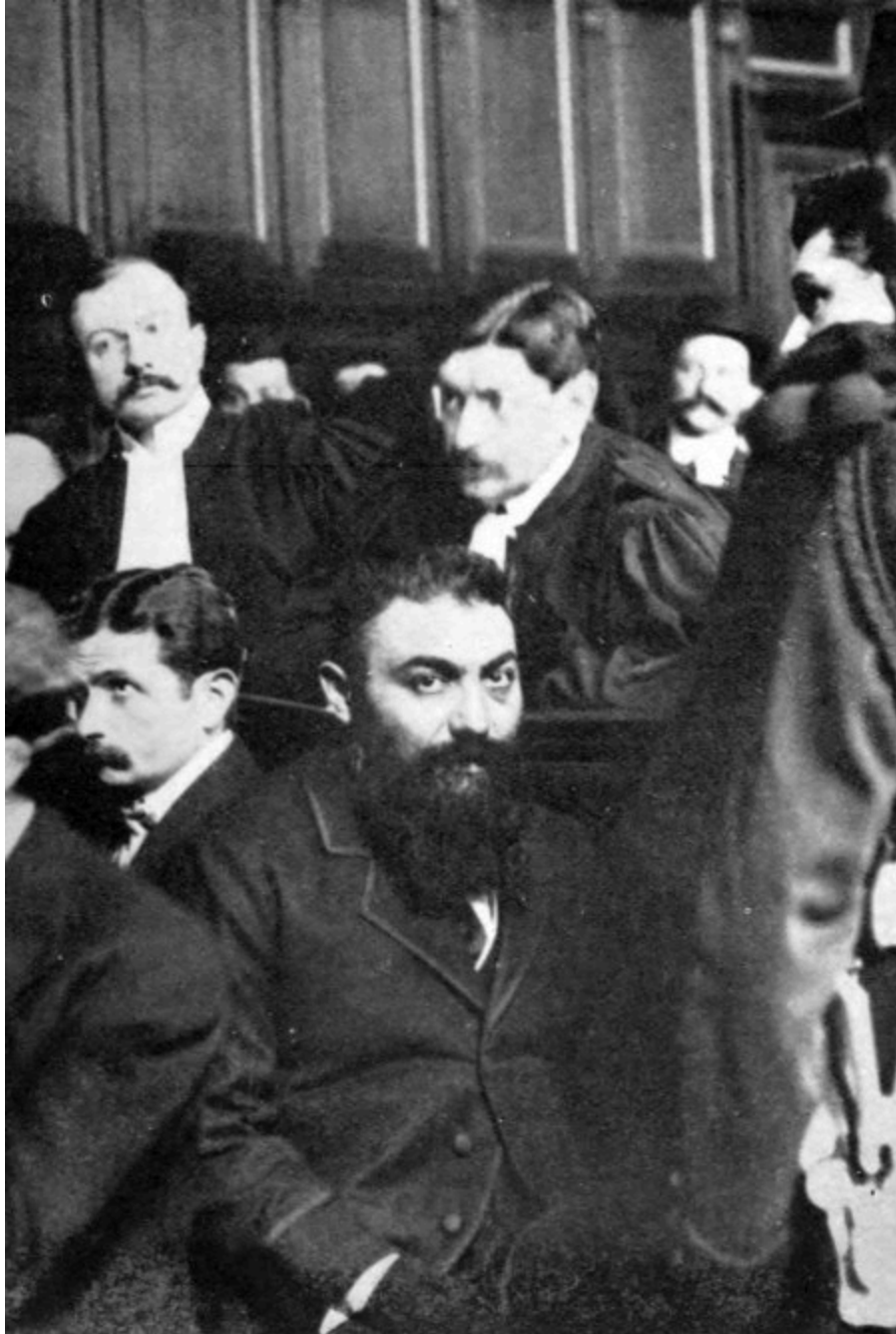
Rochette was the son of country farmers, or field labourers—people at all events in poor circumstances. His early years are wrapped in mystery, for although it is currently believed that he was an errand boy and afterwards a waiter in a small café in a little town near Fontainebleau, Rochette himself has always denied this. What is certain about him is that in 1903 or 1904, nine or ten years ago, Rochette, who had just finished his military service and who was therefore twenty-three or twenty-four years old at the most, came to Paris and became a bank clerk. He had a little money even then, which he himself says he inherited and which was £2000 or £2500 at the most. He used this money to launch several financial enterprises, and succeeded in obtaining an incredible amount of credit for them with incredible rapidity.

This young man, whether he be a swindler or not, and even now that is an open question, is undoubtedly a financial genius with a wonderful charm of manner. He made use of these two assets to start several companies, the first of which were the Banque Franco-Espagnole, the Crédit Minier, the Société des Mines de la Nerva, the Laviana, the Val d'Aran, the Paral Mexico, the Union Franco-Belge, the Syndicat Minier, the Mines de Liat, the Buisson Hella and the Manchon Hella.

The flotation of nearly all these companies of different kinds, for the exploitation of banks, mines, electric lamps and incandescent gas mantles, was an immediate success, and hundreds of thousands of pounds flowed into the coffers of this young financier. The Crédit Minier in Paris, which was his headquarters, employed an enormous staff of clerks, had gorgeous offices, and very shortly after its foundation bore the appearance of a prosperous bank doing an enormous business. As a matter of fact the Crédit Minier and Rochette really did an enormous business, for not only from Paris, but from the provinces, where he had branches everywhere, Rochette reaped a harvest of gold which flowed in like Pactolus from the pockets of small investors who believed in him. At the very beginning their belief was well justified, for everything Rochette touched turned to gold.

Very soon after his establishment in Paris Rochette was said to be worth somewhere between three and four million pounds sterling. Of course most of this money was employed in his financial enterprises, but these were successful beyond the dreams of avarice, and the prices of shares in the Rochette flotations rose and rose continuously. To mention one only among the number, shares of the Hella Gas Mantle Company which had been issued at £4 a share ran up in the course of a very few months to nearly £21 (518 frcs. was the exact figure) a share. Some idea may be formed of the confidence inspired by Rochette from the fact that when, in 1908, five years after his first appearance on the Paris market, the financier was arrested, ten thousand shareholders of his companies signed a petition for his immediate release, and sent it to the Chamber of Deputies.

At the time of his arrest there were many more people than these ten thousand shareholders who pinned their faith to Rochette and his enterprises, and who maintain even now that his downfall was due to a conspiracy against him by financiers who were interested in the fall of his shares. To a certain extent this contention was true, as we shall see later on by some of the evidence given on oath before the Commission of Inquiry. A number of charges were formally made against Rochette by a number of people who had lost money and considered him responsible for the loss. These charges became so many that the Public Prosecutor, after consulting the Minister of Justice sent for Monsieur Rochette one day, and asked him, in view of the fact that a number of the actions brought against him had been amicably arranged between the parties while others of a graver nature charging him with fraud had resulted in acquittal, whether he would consent to a friendly though judicial examination of his books. This examination took place, took place it may be remarked at the expense of Rochette himself, who was perfectly willing to pay for it, and the accountants' verdict was by no means altogether unfavourable to the young financier. Rochette, having triumphed, continued his issues of companies, and general opinion began to rank him with the Rothschilds and the other overlords of high finance.



Agence Nouvelle—Photo, Paris

ROCHETTE IN COURT

(Rochette is the central figure with the black beard)

France rejoices, however, in the possession of a succession of more or less avowedly Socialist Governments which govern or try to govern the country on fatherly lines, and the French Government on the one hand, and

the judicial authorities on the other, began to look with suspicion and alarm on Rochette's increasing prosperity. The Bourse, too, began to become suspicious of Rochette's success, and an opinion began to gain ground that sooner or later his rocket-like flight into the regions of high finance would be followed by one of those crashing stick-like falls, by one of those disastrous *krachs* of which so many have been chronicled during the last century in all great capitals. It was towards the end of February or the beginning of March 1908, that Rochette made his big mistake. He attacked the *Petit Journal*, one of the biggest and most influential newspapers in France. Rochette made this attack on the *Petit Journal* and on its managing director Monsieur Prevet, a member of the Senate, because he had a very definite object in view. Rochette's companies appealed to the imagination and to the pockets of the small investor, and the small investor in France is not a regular reader of financial newspapers, which he neither trusts nor understands.

These small financial newspapers are legion, but although Rochette undoubtedly had numbers of them at his disposal he realized that a paper more generally read and appealing more directly to the people he wanted to touch was necessary to his ambitions, and to the greater and wider success for which he was working. He made up his mind, therefore, to obtain control of the *Petit Journal*, a newspaper which is sold all over France in every town, in every village, and in every hamlet, and which, though it no longer enjoys the largest circulation of any newspaper in France, was one of the two newspapers most suitable for his purpose and the only one of the two which he had any chance at all of getting. In order to obtain control of the *Petit Journal*, Rochette set to work with tactics which were characteristic of the astuteness and the utter lack of scruple of the man. He issued circulars which he had printed in enormous quantities, forwarded them to every shareholder of the *Petit Journal*, and scattered them broadcast, elsewhere. In this circular, which was issued in view of the next general meeting of the shareholders of the paper, a meeting which was to be held on April 5, 1908, Rochette painted the financial position of the *Petit Journal* in the blackest possible colours, stating without the slightest reference to truth, that the paper as a property was in a very bad way, and advising shareholders to sell their shares.

The managing director of the *Petit Journal*, the powerful member of the Senate, Monsieur Prevet, was naturally very much annoyed and somewhat alarmed by these manœuvres, and took legal action to put a stop to them. He commenced a prosecution against a “person or persons unknown,” by which euphemism of course Rochette was indicated, for the purpose of putting a stop to the disloyal manœuvres by which Monsieur Rochette was rapidly obtaining a large number of shares and powers of attorney from discontented shareholders.

Monsieur Prevet realized that unless some such immediate action were taken it was more than possible that at the general meeting of the *Petit Journal* Company on April 5, 1908, the discontented shareholders either in person or by proxy would oust him, Monsieur Prevet, from his position as managing director of the *Petit Journal*, and would hand over the control of this newspaper with its enormous influence and immense phalanx of readers to the financier Rochette. Monsieur Prevet occupied a very high position. He was not only the managing director of the *Petit Journal*, he was not only a member of the Senate, but he was actually, at that time, the “rapporteur” or advisory summariser for the Senate on the big question of the purchase by the State of the Western Railway.

It is a curious sidelight on the Rochette affair that this financier who had begun his career five years before with a capital of £2000 was the principal mover in the immense agitation against the acquisition by the State of the Western Railway of France. That he moved in this matter on purely personal grounds is of far less importance than the fact that if he had succeeded in overthrowing Senator Prevet the French nation would undoubtedly have been spared a very heavy money loss, for the acquisition by the State of the Western Railway has been a disastrous undertaking from a money point of view, and has cost and will continue to cost French taxpayers a large sum of money every year till the railway begins, if it ever does begin, to pay. Rochette’s attacks on Monsieur Prevet, and his obvious intentions on the *Petit Journal* created a storm of antagonism against him in the French Press.

In spite of the persistent and unfailing confidence of his shareholders public opinion began to make itself felt, and as always happens in France when public opinion is roused, a great deal of mud began to be flung and accusations of corruption became very frequent and were directed against

the highest in the land. The Government was hotly accused of laxity, and Monsieur Georges Clemenceau, who was Prime Minister in 1908, was accused of moral complicity with the financier Rochette. It is a curious proof of the poetical justice, which comes to its own even in financial questions, that these accusations against Monsieur Clemenceau did more to cause the eventual downfall of Rochette than anything which had happened before. They made “the tiger” angry, and when Monsieur Clemenceau grew angry with Rochette, the day of Rochette’s wane had dawned. Accusations were launched against the high magistrates, who were accused of weakness and of being afraid to take action. Members of Parliament were directly accused in the public Press of protecting Rochette and his enterprises, and of taking money for so doing. No day passed without the launching of an accusation against some member of the Chamber or the Senate of having accepted heavy bribes to cover Monsieur Rochette, or to back him up, and the names of numbers of well-known men who are now more or less indirectly connected with the Caillaux drama were constantly mentioned at the time in connexion with Rochette, the financier.

The connexion between the two cases, the case of Rochette and the Caillaux drama which followed the attack in the *Figaro* on Monsieur Caillaux’s conduct in connexion with it, is curiously close. There have been two Parliamentary inquiries into the Rochette affair. In the first one in 1911, among the members of the Parliamentary Commission we find the names of Monsieur Caillaux himself (he very nearly, in fact, was the president) and of Monsieur Ceccaldi, who was approached by Monsieur Caillaux on the afternoon of the crime, and to whom the Minister of Finance confided his uneasiness with regard to his wife. In the list of the second Commission Monsieur Ceccaldi’s name and others closely connected with the Caillaux drama appear once more. But there was no question, yet, in 1908, of a Rochette inquiry, for the *affaire Rochette* was only just beginning. Monsieur Clemenceau fired the first shot, as Monsieur Clemenceau was bound to do. There had been talk on the Bourse, there had been talk in the newspapers, Monsieur Clemenceau had been accused of slackness, and he had made up his mind that he would not justify the accusation.

On Friday (it is quite a curious coincidence that so many important dates of the Caillaux, Agadir, and Rochette affairs should have fallen on a Friday)—on Friday, March 20, 1908, at exactly twenty minutes to twelve in

the forenoon, Monsieur Clemenceau, the Prime Minister, sent for Monsieur Lépine, who was then Prefect of Police, and ordered him to take measures for a judicial inquiry into Rochette's financial transactions. Monsieur Lépine spent exactly a quarter of an hour with Monsieur Clemenceau in his room at the Home Office in the Place Beauvau, and at five minutes to twelve he returned to the Police Prefecture, sent for Monsieur Mouquin, the head of the Research Department of the Paris police, and for Monsieur Yves Durand, his chef de Cabinet, and told them what Monsieur Clemenceau had said to him.

Now the French have a way of their own of conducting these matters. The State does not prosecute for fraud. Monsieur Lépine's orders were to find a plaintiff who would bring a charge against Rochette, who would show proof that Rochette had damaged his pocket, and who would be willing to pay the caution which the French courts require from such a plaintiff before legal action begins. Monsieur Yves Durand was ordered by Monsieur Lépine to go out and find such a plaintiff. Monsieur Lépine, in his examination by the Parliamentary Commission on July 26, 1911, was very explicit with regard to his own opinion and the opinions he had heard expressed on Rochette's financial undertakings. He alluded to them as "a house of cards built on puffs of hot air, kept afloat by public credulity and bound to fall to pieces at the first breath of suspicion."

Monsieur Lépine had urged the judicial authorities to take action in the Rochette case long before action was taken, and he alluded with some bitterness to the difficulty in getting a serious charge brought against any financier suspected of fraud who was rich enough to make it worth the while of his creditors to withdraw such charges. There had been several charges made against Rochette, and they had all fallen through because the plaintiffs got their money or got money enough to induce them to withdraw.

When, therefore, Monsieur Lépine told Monsieur Yves Durand, his chef de Cabinet, that he must go out and find him a plaintiff, he added that he himself knew of nobody who was likely to assume the rôle. The French law gives no greater claim on the assets in such a case to the man who goes to the expense of prosecuting than it affords to all the other creditors, and as he has to put up funds for the prosecution, it is often, as Monsieur Lépine explained, more than difficult to find a victim ready to fleece himself after he has been fleeced. But Monsieur Yves Durand happened to have heard

that Monsieur Prevet was a likely man to undertake the prosecution, and he called on him immediately. He went first to his private house, failed to find him there, and found him eventually at his office in the *Petit Journal* building in the Rue Lafayette. Monsieur Prevet told Monsieur Yves Durand that a banker named Gaudrion was perfectly ready to prosecute Rochette, and that he had mentioned his willingness to him. Monsieur Yves Durand and Monsieur Prevet drove together immediately to the Rue de la Chaussée d'Antin, where Monsieur Gaudrion had his office. They found Monsieur Gaudrion there and he told them that although he was not ready to prosecute Rochette himself, a friend of his, Monsieur Pichereau, whom he described as a man of property living at Corbeil, was ready to prosecute and would do so. Monsieur Pichereau, Monsieur Gaudrion declared, had put £6000 into some of Rochette's financial enterprises, the Nerva Mines and Hella Gas Mantle Co. among others, had lost a good deal of his money, and was ready to do everything possible to get some of it back again.

At a quarter past two that afternoon, the afternoon of Friday, March 20, 1908, Monsieur Yves Durand returned to the Police Prefecture and told Monsieur Lépine what he had done. Monsieur Lépine sent Monsieur Yves Durand to the Procureur de la République, Monsieur Monier (Monsieur Monier has been promoted since and is the high legal authority whom Madame Caillaux consulted on the morning of the day she shot Monsieur Calmette, as to the means of putting a stop to his campaign against her husband), whom he was to advise of the existence of a plaintiff ready to prosecute Rochette.

Monsieur Lépine, in his evidence before the Parliamentary Commission of Inquiry, explained that he had hoped to get the whole matter settled that same day, or at all events between the closing of one Bourse and the opening of the next, so as to avoid news of the prosecution being allowed to leak out and to be used as a basis for speculation. However, Monsieur Monier told Monsieur Yves Durand that he would see Monsieur Pichereau on the next day, Saturday, at two o'clock, and he informed the Procureur Général and the Minister of Justice that a charge in due form was to be laid against Rochette on the morrow. At ten o'clock the next morning, Saturday, March 21, Monsieur Yves Durand went to Monsieur Gaudrion at his office and told him that the Procureur de la République would receive Monsieur Pichereau's charge at two o'clock that afternoon at the Palace of Justice.

Monsieur Pichereau was in Monsieur Gaudrion's office, and had drawn up and signed his accusation against Rochette. Monsieur Gaudrion read it through to Monsieur Yves Durand, who was not in the least aware that Monsieur Pichereau was not the proprietor of Nerva shares and Hella Gas Mantle shares as he stated himself to be in his accusation, but that Monsieur Gaudrion was really the shareholder, and that Pichereau was only a man of straw. Gaudrion was a speculator. He had sold shares "short" in the Rochette enterprises, and seeing his way to a Bourse *coup* he had coached Pichereau in the part he was to play, given him a few shares of his own with which to play it, and paid him a thousand pounds so that he should be able to make the necessary guarantee on bringing his action and have something over for himself.

Monsieur Yves Durand, who got himself into terribly hot water over these preliminaries when the whole matter came to light, and who was openly accused of speculating himself on the fall of Rochette shares, declared that he was quite unaware of this dishonest combination, and that he had been misled by Monsieur Prevet, who had told him that he knew all about Gaudrion and about Pichereau as well. At a quarter-past two that afternoon Pichereau laid his formal charge against Rochette at the Palace of Justice, deposited £80 by way of guarantee for costs, and signed a request to be a civil party to the action. The matter was placed in the hands of the examining magistrate, Monsieur Berr, for his immediate attention, and poor Monsieur Berr sat up all Saturday night and all Sunday night, and worked through all day on Sunday at the Rochette *dossier*. At ten o'clock on Monday morning, March 23, 1908, Rochette was arrested.

Of course the arrest of Rochette created an immense sensation, and equally of course it occasioned the downfall of the shares of the companies in which he was interested. But while these shares tumbled headlong, an immense wave of public indignation swelled against the financier's arrest, for so far from finding empty coffers at the offices of the Crédit Minier, the authorities admitted that there were, in cash, £240,000 at this office, and £160,000 more at the Banque Franco-Espagnole, a sister enterprise of Rochette's. Rochette had been arrested and sent to the Santé prison on Monday, March 23, 1908. On Wednesday he wrote a letter to the examining magistrate, Monsieur Berr, in which he protested with some appearance of justice against his arrest and the situation created by it for the shareholders

of his companies. "It is my duty," wrote Monsieur Rochette, "to declare that on the day of my arrest I left the industrial and financial companies under my control in an excellent situation. There were about £240,000 in cash in the safe of the Crédit Minier, and £160,000 in the safe of the Banque Franco-Espagnole. This makes a total of £400,000. If I were a malefactor, as attempts are being made to prove me, it would have been easy for me to get out of my difficulties. I was advised from all sides of the intrigues which were in course against me under the leadership of a few men who considered that the growing prosperity of my companies threatened the enterprises of which they were at the head. It was these men who put up the plaintiff Pichereau. It was these men who managed to get you to take action, and who are really responsible for the exceptional measures which have been taken against me and the establishments which I control. You have put me in prison, sir, and you have refused to allow me to communicate with anybody except yourself outside the prison. You have given orders for the dismissal of all the clerks of the Crédit Minier and the Banque Franco-Espagnole. You have closed these establishments. You have given orders for the closing of all the provincial branches. You have struck a terrible blow at these companies, without having heard what I have to say, without having questioned me, without any preliminary examination by accountants of the financial condition of my banks, without the slightest concern for the shareholders or the other people interested. Do you know of any bank, of any financial institution however powerful that would be capable of withstanding such a blow? And for whom, why, on whose account, have you done all this? For Pichereau! On account of one single plaintiff at whose request a judicial examination was ordered, and of whom after four days imprisonment I know nothing at all, for I know neither the man himself nor the charge he has made against me."

The examining magistrate, on receipt of this letter, confronted Monsieur Rochette with Monsieur Pichereau, and told the financier the exact terms of Monsieur Pichereau's claim. Monsieur Pichereau claimed to have bought Nerva Copper Mines of the B series, which proved to be unnegotiable, and he put in nine documents to prove it. Rochette declared that the nine documents proved nothing, that before his arrest an attempt had been made to blackmail him, that these same documents had been offered him on that occasion for £3200, and that he had refused the offer. In proof of this, he

stated that copies of Monsieur Pichereau's nine documents would be found among his (Rochette's) papers in the private desk in his office.

In connexion with these statements, it was proved that a number of attempts *had* been made to blackmail Rochette, and that he had always refused any advances of the kind. It is needless to say that the arrest of this man and the closing of the banks and shutting down of mines and other enterprises in which he was interested had a disastrous effect on the market. All the money, and there was a great deal of money in Rochette's safes, had been sequestered by the legal authorities, and therefore of course no payments could be made. To put one case only, eighteen hundred men and women in the employ of the Syndicat Minier were clamouring for wages which could not be given them.

Eventually the court decided that liquidators should be appointed who should pay out money from a reserve fund of £110,000 which the Crédit Minier placed in the liquidator's hands for this purpose. In July 1908, Rochette was declared a bankrupt. He resisted vigorously, and even now many people are inclined to doubt whether the declaration of his bankruptcy was legally justifiable. But the whole matter of Rochette's financial position soon became involved in such a tangle of legal procedure that it is quite impossible to say whether Rochette could have got out of his difficulties if he had been left alone, or whether he could not. It is noteworthy at all events that a very large percentage was paid to his creditors. On the other hand, the Rochette enterprises were wildly speculative, and new flotations were frequently used to fill up financial gaps in former enterprises which were unsuccessful. One thing is very certain, and was proved during the parliamentary inquiry into the beginnings of the Rochette affair. A large number of people, Monsieur Gaudrion among them, had been keenly interested in the downfall of Rochette and had sold quantities of the shares in his companies for a fall some time before it came. Most of them had lost money. Gaudrion, on March 16, that is to say a week before Rochette's arrest, had been severely bitten by a sudden upward jump, or "bear squeeze," as it is called, on the Bourse, and was forced by the rapid rise of Rochette's shares to buy back with a loss of nearly £5000.

Rochette was tried, and the case went against him, but again there were illegalities in the trial. Information was communicated to the court which was not, as the French law insists that it should be, communicated first of

all to the defendant or his lawyer. In the course of the trial the liquidator, who had been officially appointed, announced that he had distributed 50 per cent. to the creditors of Rochette, and that he would be able to pay the 50 per cent. balance integrally. Rochette lodged an appeal against the verdict, and at the same time took legal action against Pichereau for making a false declaration. His appeal was heard, dismissed, and judgment rendered, by the Tenth Correctional Chamber of the Seine Tribunal on July 27, 1910—two years after his original arrest. The case was a long one, very complicated, and proceedings had been obstructed legally, whenever and wherever Rochette and his lawyers could obstruct them. The case, however, provoked considerable scandal. Charges of illegality were made by Rochette and his lawyer, Maître Maurice Bernard, in court and before the case came to court, the Press took hold of the matter, and on July 10 Monsieur Yves Durand resigned and left the employ of the Prefecture of Police. It was proved that this chef de Cabinet of Monsieur Lépine was a sleeping partner in a stock-broking firm which had made a lot of money by dealing in the shares of Rochette companies at the time of his arrest, and though Monsieur Durand was not actually proved to have profited by these transactions, grave suspicion rested on him and made his official position untenable. On July 11, 1910, Monsieur Jaurès brought the question of Rochette's arrest before the Chamber, and accused Monsieur Clemenceau in clear terms of having proceeded illegally against the man, irrespective of his guilt or innocence.

It is worth noticing that the Rochette question had now become, as almost everything becomes in France, a political matter, and that the Socialists, with Monsieur Jaurès at their head, affected to consider Rochette a victim of arbitrary treatment by vested authority. A Parliamentary Commission of Inquiry was appointed on July 12 to examine the question. Monsieur Caillaux was a member of this Commission, and if he had not just at that time taken Ministerial rank he would very probably have been its president. The first meeting of the Parliamentary Commission was held on July 15. The first witness called was Monsieur Yves Durand, who had been Monsieur Lépine's chef de Cabinet. His evidence has already been summarized in the last chapter, and need not therefore be repeated. Monsieur Monier, who was at that time Procureur de la République (a position which is more or less equivalent to that of Deputy Public Prosecutor), produced an immense budget of documents, all of which

accused Rochette of fraud. These accusations stated that the Nerva Mines Company, the Syndicat Minier, the Banque Franco-Espagnole, the Crédit Minier, Franco-Belgian Union, the Laviana Coal Company, the Liat and Val d'Aran Mines, the Hella Incandescent Mantle Company, and the Buisson Hella, nine companies in all, which Rochette had launched by public subscription, had been floated fraudulently and irregularly. The charge was that these companies had no reasonable prospect whatever of earning money by honourable means, and that there were no real commercial assets for exploitation behind them.

On July 26 Monsieur Lépine was examined by the Commission. He began by affirming that the arrest of Rochette had been perfectly justified, and while admitting that Monsieur Yves Durand had perhaps not been prudent enough in arranging the preliminaries and checking the information he received, he acquitted him of all personal action of a dishonourable nature. He defended the arrest of Rochette, and declared that its consequence had been to put a brake on the wild speculation which Rochette's issues had created. "I consider," said Monsieur Lépine, "that the arrest of Rochette turned off the tap and prevented him from making new issues of shares. This preventive measure was a public benefit. Some people lost money undoubtedly, but they deserved to lose it. The speculation mania had been enormous and widely spread. It had been crazy. There were shares which were worth £4 one morning and which were run up to £22 before the same evening. If matters had been allowed to go on like this, financial catastrophe would surely have followed."

In the deposition on November 16 made before the Commission d'Enquête by Monsieur Georges Clemenceau, the ex-Premier, after declaring that he himself had no personal knowledge of Rochette, described with characteristic brevity the conversation which he had with Monsieur Lépine just before Rochette's arrest. "This has got to be finished off promptly," I told him. "Do you believe Rochette to be an innocent man against whom calumniators are at work?" Monsieur Lépine replied: "Rochette is a scoundrel. He is a serious danger to the small investor, and if he is allowed to go on as he has begun we shall have a catastrophe one of these days." "I told Monsieur Lépine to go and see the magistrates and make arrangements," said Monsieur Clemenceau. "If I had to begin it all over again I would do again exactly what I did before, and I am quite

certain that if I had allowed Rochette to get clear away with his millions out of private people's pockets then, there would be a Commission of Inquiry at work now asking me to explain my complicity with the man."

Monsieur Lépine was called before the Commission of Inquiry again on November 18, and once more affirmed his conviction that Rochette's arrest had been necessary. He gave a few significant details of Rochette's methods. Rochette had bought properties for £8000 and floated them as a company for £32,000. He had bought the Aratra Mines for £9000, and floated them with a capital of £200,000. Patents for which Rochette had paid £1200, and which, Monsieur Lépine declared, were really not worth four shillings, were valued in the prospectus of the company, which asked for, and obtained, subscriptions, at £480,000. There were fictitious dividends declared, fraudulent balance sheets concocted, prices inflated to figures which had no real existence except by Rochette's will. Rochette paid enormous sums for advertising. One newspaper alone cost him £14,000. His advertising adviser drew a salary of nearly £2000 a year. On one deal he spent £52,000, for advertisement alone, in twelve months, and he spent £24,000 on advertisement in the ten weeks before he was arrested. In three years he created fifteen companies, issued £4,800,000 worth of shares, and bought over £3,000,000 worth of his own shares at prices above the price of issue to inflate and to keep prices up. He had then about a million and a half sterling in cash to play with.

On July 27, 1910, Rochette was sentenced to two years' imprisonment and a fine of £120, by the Tenth Correctional Tribunal of the Seine Department. The verdict, with its "attendu," or reasons, took two and a half hours to read aloud, though it was read with the extraordinary volubility of which only a French clerk of the court possesses the secret. I have this verdict before me in its printed form. It is printed in very small print by the official printing works of the Chamber of Deputies, for the copy I possess was printed for the use of the Commission of Inquiry. The verdict, which is, as I have said, very closely printed, fills forty large quarto sheets of paper. Against this verdict Monsieur Rochette appealed again, and in the meanwhile the Commission of Inquiry spent many full days discussing the questions as to whether Monsieur Clemenceau had really ordered Monsieur Lépine to find a prosecutor against Rochette, whether Monsieur Lépine had really said that Monsieur Clemenceau had given him these orders, whether

orders had been given or whether suggestions had been made—the usual waste of time and the usual mass of irrelevant detail which appears to be inseparable from the work of a parliamentary inquiry into any question in any country.

Ultimately, after long, long days of verbiage which appear curiously useless now, Rochette himself was asked to give evidence before the Parliamentary Commission of Inquiry. He was delighted to attend, for he had nothing to lose and he had everything to gain by his attendance. He also had a great deal to say, and said it very well, for Rochette is a born orator. Naturally enough, he took the opportunity of pleading his own case from A to Z once more, and of denouncing the illegality of his arrest in March 1908. He launched accusations against the police, he launched accusations against members of Parliament, he was very rude indeed to financiers of repute. Above all, he was always interesting, and often amusing, and he certainly made his case appear clearer than it had ever appeared before.

His evidence is well worthy of consideration in detail, for it must not be forgotten that one of the men before whom he gave it was Monsieur Joseph Caillaux, and that he gave this evidence on November 25, 1910. A few months later, in March 1911, Monsieur Caillaux, who no doubt had been impressed by Rochette's powers of oratory, advised his colleague, Monsieur Monis, of the dangers that might be incurred, politically speaking, if pressure were not brought to bear on the legal authorities for the postponement of Rochette's trial, in accordance with the wishes of this extraordinary expert in legal obstruction. It is fair to infer, I think, that Rochette's attitude before the Commission of Inquiry had impressed Monsieur Caillaux considerably, but Monsieur Caillaux's political enemies ascribed his attitude to motives of another kind. Rochette's evidence, if evidence it can be called, occupies twenty-five closely printed pages in quarto in the transcription printed for the Commission of Inquiry of the shorthand notes which were taken. One of the first points Rochette made was on the question of the money which he spent on advertising his various enterprises. He admitted that the figures quoted against him were very largely correct, that for instance, he really had spent as much as £2500 a week for ten weeks on advertising, "but," he said, "it is only a question of proportion after all. The Bon Marché, the Louvre, or the Printemps can spend thousands on advertising where it would be criminally foolish of a

small grocer to spend hundreds. I am not a small grocer. During the period from January 1 to March 23, 1908, in which my publicity bill was £24,000, I did nearly half a million sterling of business.”

Rochette then made a vicious attack on Monsieur Prevet and the *Petit Journal*, but vicious though his attack was, it was distinctly plausible. “A shareholder of the *Petit Journal* called on me,” he said. “He brought some very interesting figures with him. These figures showed that in 1901 the shareholders of the *Petit Journal* got £2 dividend and the shares were worth £44 to £48. In 1902,” he said “Monsieur Prevet became director and six years afterwards, at the beginning of 1908, the shares were worth from £10 to £12 and the dividend was only sixteen shillings! This drop in value was not due to a general slump in the newspaper industry, for the *Petit Parisien*, the *Journal*, and the *Matin*, all of them halfpenny morning papers, had increased the value of their respective properties enormously.” Rochette’s visitor maintained, Rochette declared to the Commission, that if Monsieur Prevet’s management was disastrous to the *Petit Journal* shareholders, the fact was largely due to Monsieur Prevet’s need of money, which was notorious. Rochette went, he said, into the question of the *Petit Journal*’s next dividend. He saw, he declared, that it was problematical, and he therefore “inspired,” though he did not write, the circular which had been sent to the *Petit Journal*’s shareholders. “With regard to Monsieur Prevet’s action at this time,” says Rochette, “if he really wanted to protect the interests of his shareholders and not his own, all he had to do would have been to send out a private circular of his own to the shareholders, a list of whose names was in his possession, and convince them that my statements were wrong. He couldn’t, of course, do this, because my statements were right, and that is why he was afraid that I should take his position on the paper from him at the next general meeting. That is also why I was arrested just before that general meeting. The shares had to be deposited at the office of the *Petit Journal* for voting purposes about March 19. Monsieur Prevet was able to convince himself that his authority with the shareholders had dwindled, and he thought it safer for himself to get rid of me.”

Several attempts were made, according to Rochette, during the month of March 1908, to induce him to fall into cleverly laid traps which would make his arrest easy. “These traps were laid cleverly, but not cleverly enough,” Rochette declared, “and I was too astute to allow myself to be

caught in them. That was why,” he added, “I was arrested on Pichereau’s disgracefully vamped-up charge.” Rochette was convinced, he told the members of the Parliamentary Commission of Inquiry, that the anonymous letters and anonymous telephone calls warning him that his arrest was imminent with which he was bombarded between March 8 and 21 were police tactics for the purpose of persuading him to take flight and so to make matters easy for everybody. “I did not take flight,” said Rochette proudly, “and when I was arrested there were £440,000 in my safe. I could have taken this money out at any time. I did not take it.” Rochette declared that the examining magistrate, Monsieur Berr, had shown unfair prejudice against him from the moment of his arrest, and that this was so apparent that his lawyer, Maître Maurice Bernard, had made this accusation to the examining magistrate’s face: “I know that my client’s arrest was arranged, ‘worked’ if you will, by three men, Monsieur Lépine, Monsieur Prevet, and yourself!” And the examining magistrate made no reply. “Ten thousand shareholders in my companies signed a petition against my arrest and forwarded it to the Chamber of Deputies,” was one of Rochette’s points. “In this petition they stated that my arrest had been caused by Monsieur Prevet with the complicity of Monsieur Gaudrion and Monsieur Pichereau. In February 1909,” Rochette declared, “one of the experts who was examining my books walked into Monsieur Berr’s room in the Palace of Justice. I was in the little room next door, and I heard Monsieur Blanc, the expert in question, who had not seen me, ask the examining magistrate whether my case would come on for trial before the Correctional Court before Easter or not. This was proof that the experts and everybody else knew at this time that I was to be sent for trial, and that the pretence of examining my books was only a pretence and nothing more. The examining magistrate had made his mind up to send me for trial directly he had me under arrest. The Crédit Minier,” Rochette declared, “ought never to have been put into bankruptcy. None of my societies ought to have been declared bankrupt, for every creditor was paid 100 per cent. The only money that was lost was about £160,000, and that loss was due to the disgraceful “bearing” of my shares by speculators. It is not fair to say that I caused this loss of £160,000 to investors. The truth is that people who were too well informed were allowed to make £160,000 at the expense of the public. I have done nothing to be ashamed of. I have committed no fault. Surely the success of the Crédit Minier is not a fault. It had twenty-five customers when I started it,

and five years later there were fifty thousand of them. I wish to point out,” said Rochette, “that my enterprises existed and did well before my arrest, and continue to exist after it and in spite of it. I venture to state positively that very few financiers who suffered as I have could make the same statement. The net result of my arrest was the heavy drop of the shares of my enterprises, a loss of £240,000 by the Crédit Minier, and the ruin of shareholders whom the *krach* caught unawares. Of the £240,000 which the Crédit Minier lost, certain speculators made £160,000, and £80,000 went to the expenses of the bankruptcy. The liquidator alone was paid between £12,000 and £16,000.”

Rochette told the Commission of Inquiry that he had intended taking charge of the *Petit Journal*, as he had taken control in the *krach* of the Say sugar refinery. He was, at that time, endeavouring to get hold of the concession of the Paris Omnibus Company and was backing up the Darracq group with money so that Monsieur Darracq could obtain the concession from the Municipal Council. Monsieur Rochette, questioned very closely by the members of the Commission, was forced to admit that one of his lawyers, Monsieur Rabier (one of the stalwarts of the Caillaux party in Parliament), drew about £500 a year for legal advice, and on other occasions received sums varying from £2800 to £3200. The members of the Commission expressed doubt about these figures, and a curious story was told by a former clerk of Rochette’s with regard to his book-keeping methods.

From this story it appeared that efforts were usually made by Rochette to conceal the real amounts which were paid for their services to newspapers and to those lawyers in the employ of the financier who happened to be members of Parliament or political personages. Curiously enough most of Rochette’s lawyers happened to be political personages, and one of the lawyers of the Crédit Minier was Monsieur René Renoult, who is a member of the present Cabinet. In many ways the examination of Rochette by the Parliamentary Commission was an eye-opener to the public. Accusations of venality on the part of public men are so common in France, owing to the licence allowed in the Press, that such words as “corruption,” “theft,” “lying” and the like have almost lost their force when applied to men in the van of politics. But the details of the manner in which

Rochette conducted his business impressed and alarmed the public by their unpleasant likeness to the unsavoury details of the Panama case.

One of the members of the Commission, Monsieur Jules Delahaye, who throughout the inquiry acted very much like a counsel for the prosecution of every political man who was mixed up in the Rochette affair, pointed out this unsavoury resemblance. "I consider Monsieur Rochette to be a great corrupter of public morals," he said. "I am not at all content with his explanations. They do not satisfy me. There are matters of far greater gravity behind his methods than he would have us suppose, and I would ask my colleagues to concentrate their attention on the items of Rochette's expenditure for publicity with the same intensity as the attention of the Parliamentary Commission had at the time to be concentrated, with the results which you remember, on the publicity accounts of the Panama Canal. In this case, as in the case of Panama, public morals have been corrupted. Millions ("of francs" is meant, of course) have been employed, not only to buy publicity in the newspapers, but, as the Prefect of Police has told us, to corrupt the moral and financial rectitude of people of all ranks and all stations in Paris, in the provinces, all over France. I will go so far as to say that the taint actually extended to the Church. That is a characteristic of the affair." (Page 547 of the official shorthand reports of the Parliamentary Commission.)

Rochette paid, in many ways, on the plea of publicity. He was in the habit, when he wanted to pay and to preserve secrecy for the payment, of sending a note down to the cashier of the Crédit Minier with his initials "H.R." and a little cross marked on it next to the amount. These little crosses were used in the books, it is suggested, to signify that the amounts entered against certain names were not the real amounts paid, which were much larger. The payments were made directly from hand to hand by Monsieur Rochette to his political friends and helpers, and no receipts passed. I do not propose to go very much into detail on this uncomfortable question. The evidence of Monsieur Duret, who acted as Rochette's private secretary, and that of Monsieur Yenck, a clerk in the Crédit Minier, leaves a very uncomfortable taste in the mouth. Monsieur Yenck declared that Monsieur Duret's sole business was to act as intermediary between political men and Rochette. He used to speak in very familiar terms of many well-known politicians, and was on the friendliest terms with Rochette himself.

He always called Rochette by his first name, "Henri," and was in the habit of alluding to Monsieur Rabier as "Rab." It was Duret who, according to Yenck, secured, by political influence, the decoration of the Legion of Honour for Henri Rochette. Yenck declared that Duret had on one occasion made erasures in the private books of the Crédit Minier, so as to avoid scandal. He told the Commission that Duret, whom he had seen with a scratcher in his hand, and one of the Crédit Minier's private books in front of him, had explained what he was doing by the remark: "I am very much afraid that Henri is going to be arrested, and I don't want the name of 'Rab' to be found in the books." (Page 566 of the official shorthand reports of the Parliamentary Commission.)

On February 1, 1912, the judgment against Rochette was annulled on grounds of technical irregularity, by the Court of Correctional Appeal, and the conclusions of the Parliamentary Inquiry Commission were laid on the table of the Chamber of Deputies. It will be remembered that according to the statement made by the Procureur Général, Monsieur Victor Fabre, the Prime Minister, Monsieur Monis, had brought influence to bear on him for the postponement of the Rochette trial on appeal from the judgment of July 1910. Monsieur Jaurès, the President of the Committee of Inquiry, on March 20, 1912, told the Chamber the history of the Rochette case as he knew it, and he knows it perhaps better than any other Frenchman living except Rochette himself. He told the story of the strangely illegal manner in which the police had had Rochette arrested. He pointed out that the police and the lawyers had been at loggerheads as to the procedure to be employed. The police acted in one way, the Parquet (that is to say the legal authorities) acted in another, and by their ill-considered lack of unity of action with the Parquet, the police had undoubtedly served the interests of a number of men who had speculated and had made money on the downfall of Rochette. It was, said Monsieur Jaurès, a curious fact that while the arrest of Rochette could not be effected for the mere purpose of protecting the small investor, it was effected by means of a conspiracy between a banker, Monsieur Gaudrion, who had sold Rochette shares for the fall, and Monsieur Prevet, the director of a newspaper, who was anxious to throttle a competitor.

In this conspiracy Monsieur Gaudrion furnished the prosecutor and Monsieur Prevet supplied the influence. Monsieur Gaudrion did not,

himself, prosecute. He could not do so because he had been in trouble with the laws of his country. He found a man of straw to act as prosecutor in his stead, a man named Pichereau, and gave him shares and money to act against Rochette. "When we examined Monsieur Gaudrion before the Commission of Inquiry, I said to him," said Monsieur Jaurès, "I can understand that you, who were gambling for the fall of Rochette shares should be anxious for the arrest of Rochette, but why did Pichereau ruin himself by bringing an action which made the shares in which he had invested his whole fortune perfectly valueless?" "Gaudrion answered," said Monsieur Jaurès, "'The shares did not belong to Pichereau'," and this was the truth. Monsieur Jaurès suggested that the conspiracy had gone even further. Monsieur Clemenceau, who was Prime Minister, told us that he intervened because he was anxious to scotch the legend that the Government were protecting Rochette. "I told him to be careful," said Monsieur Jaurès. Monsieur Prevet had told the Commission that Gaudrion had advised him on March 19 or early on the morning of the 20th, of the readiness of Pichereau to prosecute.

At half-past eleven on the morning of March 20, Monsieur Clemenceau telephoned for Monsieur Lépine and told him to find a prosecutor. Monsieur Lépine spoke to Monsieur Yves Durand, and Monsieur Yves Durand went straight to Monsieur Prevet. "When I pointed out," said Monsieur Jaurès, "the significance of these dates, Monsieur Clemenceau exclaimed. 'It is a coincidence.' Monsieur Lépine also said, 'It is a coincidence,' and I can say no more than 'It is a coincidence' to the Chamber to-day."

Here in a few words we have the real origin of the *affaire Rochette*, and the "coincidence" which Monsieur Jaurès pointed out to the Chamber is a painfully suggestive one. Rochette, after his first sentence, was allowed to drag proceedings out for many months, from July 27 of one year to April 29 of the next, though the courts always found against him except in very minor subsidiary actions. He then secured a further postponement from April 29, 1911, till January 12, 1912. During all this time Rochette had been a free man, and he was able to continue his financial operations. His reasons for spending immense sums of money on securing these postponements of his trial were self-evident. Monsieur Jaurès pointed out these reasons to the Chamber. Rochette said to himself, Monsieur Jaurès explained, that the

more business he did, the more chance he had of ultimate escape. If during these months of delay he succeeded in bringing off one substantial *coup* he would cease to be the adventurer who was a danger to the small investor, and would be considered as the clever and successful financier who had triumphed over the illegality of his arrest in the first place.

In this speech before the Chamber, Monsieur Jaurès referred to the contradictions in the evidence of the Procureur Général Monsieur Fabre, the Prime Minister Monsieur Monis, and Judge Bidault de L'Isle, with reference to the last and longest postponement of the Rochette trial from April 29, 1911, to January 12, 1912. He alluded to the rumour which was gaining ground that political influence had been brought to bear on the judicial authorities for the postponement of the trial. He expressed the regret that these rumours had not been probed until after the truth was made clear and he declared that Monsieur Fabre had said either too much or too little before the Parliamentary Commission. We know the truth now. We know that political influence was brought to bear for the postponement of the Rochette trial, we know who brought that influence to bear, and the truckling with the truth on the part of those concerned in the postponement must be the subject of the next chapter of this book, for this one is, I fear, too long already.

X

“THE TRUTH, THE WHOLE TRUTH

...”

THE first Commission of Inquiry closed its labours on March 20, 1912, with the hearing of three witnesses of importance. These three witnesses were the Procureur Général, Monsieur Victor Fabre, the ex-Prime Minister, Monsieur Monis, and the presiding judge of the Chamber of Correctional Appeal, Monsieur Bidault de L’Isle. All three men were questioned on the rumours of the bringing of political influence to bear in March 1911 for the postponement of the Rochette trial. Two years later day for day, on March 20, 1914, these three men and Monsieur Joseph Caillaux were heard again by the Parliamentary Commission of Inquiry. A comparison of what they said in 1912 and what they were obliged to say in 1914 is enough to move any lover of France to tears. I am anxious to comment on what happened as little as possible. I am anxious to let these men exhibit their own shame in their own words. I shall therefore resume their evidence from the official shorthand notes which remain as its record, and the public and their own consciences may be their judges.

“On July 27, 1910,” said Monsieur Victor Fabre, “the Correctional Court rendered judgment in the Rochette case and Rochette appealed. Rochette from the very beginning of his case did everything in his power, and his power was enormous, to hamper the course of legal proceedings, and to drag them out. Unfortunately the French criminal code plays into the hands of a man like this,” said Monsieur Fabre, “and it is not too much to say that when a rich man—for he must be rich—is accused and wishes to drag out legal proceedings so as not to be judged, it is perfectly possible for him to effect his object. He has the right to make proceedings drag and drag, and to obstruct them, and his judges can do nothing to prevent him,

for it is his right—if he can pay the cost—by the French legal code. Rochette abused this right. He hampered the course of justice with immense skill, and even before the final postponement he had succeeded in making the courts play into his hands. Even on July 27, 1910, you may say,” said Monsieur Fabre to the Commission, “the affair might have been called on appeal sooner than April 29, 1911. But there were several reasons against this. The first, the primary reason, was the long vacation. The courts were not to meet again until October 15, and before the trial could take place the President of the Correctional Chamber, the Conseiller Rapporteur, and the Avocat Général, had to be given an opportunity of absorbing the facts of the case. This meant several long weeks’ study.”

“Another reason for the postponement of the trial till April, was the inquiry which had been ordered into the speculation on the Bourse and elsewhere in connexion with the Rochette affair. On April 29, 1911, the trial was postponed till January 11, 1912,” said Monsieur Victor Fabre. *“The postponement was granted at the request of Monsieur Maurice Bernard. Monsieur Bernard invoked reasons of health. He wrote to the presiding judge of the Chamber of Correctional Appeal a letter which I have seen, in which he declares that his state of health will not allow him to plead the Rochette case before the holidays, and asks for a postponement. Astonishing as this may seem at first I could not oppose this request. I assure you that it was most disagreeable to me not to refuse it, that I was much annoyed at not being able to oppose Maître Bernard’s request. My wish in this affair was to arrive at a solution as promptly as possible. But I was unable to make any opposition to Maître Maurice Bernard’s request, much as I should have liked to do so. Maître Bernard said that he was ill, and worn out. In consequence, following the traditions which have always prevailed in the relations between the court and the Bar I could not oppose a refusal to such a request. CERTAIN NEWSPAPERS HAVE STATED THAT POWERFUL INTERVENTION INFLUENCED MY DECISION, AND THAT MORAL PRESSURE WAS BROUGHT TO BEAR ON ME. I HAVE NO EXPLANATION TO GIVE ON THIS POINT. IF I HAD ANY INTERVIEW ON THE ROCHETTE AFFAIR WITH A FORMER PRIME MINISTER I CONSIDER THAT I SHOULD BE FAILING IN ALL MY DUTY IF I WERE TO TELL YOU WHAT TOOK PLACE AT SUCH AN INTERVIEW.”* Monsieur Fabre was questioned and cross-questioned on this statement. He declared that the last part of it, the part in which he refers

to Monsieur Monis, was purely hypothetical. The President of the Commission of Inquiry pointed out to him that everybody would take it to be a statement of fact. Monsieur Fabre refused to say anything more, but maintained, under cross-examination, his original statement that Maître Bernard's plea of ill-health, and nothing else, had been responsible for the postponement, for seven long months, of the trial of Rochette.

And then occurred one of those delightful little interludes which have a way of lightening the most serious and solemn of France's bitter moments. The Parliamentary Commission had called Monsieur Monis to appear before it. Everybody knew, Monsieur Monis as well as everybody else, the reason of the summons. Everybody knew the seriousness of the accusation, implied if unformulated, which lay behind it. Everybody knew, Monsieur Jaurès as well as Monsieur Monis, that the ex-Prime Minister would be asked whether or not it were true that he had brought undue pressure to bear on Monsieur Victor Fabre, in order to secure, for political and not altogether avowable reasons, a postponement of the Rochette case.

In spite of this knowledge, here is the letter in which the President of the Commission of Inquiry summoned Monsieur Monis. It reads like an invitation to lunch.

MONSIEUR LE PRÉSIDENT, A la suite des déclarations faites par le Procureur Général, Monsieur Fabre, la commission de l'affaire Rochette m'a chargé de vous prier de vouloir bien vous entretenir avec elle demain matin, mercredi, a dix heures et demie. Veuillez agréer mes sentiments respectueusement dévoués.

(Signed) JEAN JAURÈS.

Monsieur Monis in acknowledging receipt of this invitation when he appeared before the Parliamentary Commission, described it as "an exquisite little note." "I wanted to be polite," he said, "in return for your politeness, and here I am." Monsieur Monis then went on to say that politeness was the only reason for his presence, politeness, and the wish to protest. "I wish to protest energetically, with all my energy," said Monsieur Monis. "If you wish to cover this country with a fresh crop of scandal you really must not count on my help. I will be the victim if you like of your

injustice, but I will be a proud and silent victim.” And Monsieur Monis carried impudence to the extent of forcing the Commission, out of sheer politeness, to admit that he had been summoned without the least tinge of suspicion that he had done anything to be ashamed of, and his last words to the Commission as he left them were, “Respect and confidence.”

There was not quite so much politeness on either side, when, two years later, Monsieur Monis gave evidence a second time before the Commission of Inquiry. It was a Friday, of course, Friday, March 20, 1914. This time he was forced to admit the truth of the facts he had denied so lightly and so comfortably two years before. This time he was forced to admit that for political reasons and on the advice of Monsieur Caillaux he had brought pressure to bear on Monsieur Victor Fabre to postpone the Rochette trial. In other words Monsieur Monis, who had been Prime Minister of France in 1911, who had been forced to resign his position in the Cabinet now in 1914 because of the revelations contained in the Fabre statement which Monsieur Barthou had read in the Chamber of Deputies, was forced to stand before the Parliamentary Commission which he had hoodwinked with such extraordinary cynicism in 1912, admit that he had hoodwinked them, admit that he had lied.

The next witness after the Monis interlude, in March 1912, was the presiding judge of the Chamber of Correctional Appeal, Monsieur Bidault de L’Isle. He too declared that he was “rather surprised” at having been called before the Commission of Inquiry, he too explained that deference for the Commission had been the sole reason of his coming. He had received a letter from Maître Maurice Bernard, he said, in which Rochette’s defending lawyer asked him to have the case postponed. Maître Bernard said he was very busy, that he had several important cases coming on, that his doctor told him that he would be ill if he went on working so hard, and that he really couldn’t plead the Rochette case for some months. “We never refuse an appeal of this kind from a member of the Bar,” said Judge Bidault de L’Isle, “so I wrote to Maître Maurice Bernard that the postponement would be granted. *I wish to affirm in the most formal way,*” said Judge Bidault de L’Isle, “*that the question of politics played no part whatever in the decision of postponement.*” Monsieur Jaurès tried very hard, and other members of the Commission helped as best they could to get the truth from Judge Bidault de L’Isle, but he repeated the statement quoted above “on his

soul and on his conscience.” On March 20, 1914, exactly two years after this statement, Monsieur Bidault de L’Isle, who had denied two years before that Monsieur Fabre, the Procureur Général, had told him that the Rochette case must be postponed for political reasons, who in March 1912 had declared that the only reason for the adjournment was that Maître Bernard had asked for it, ate his words without enjoyment, as Monsieur Monis and Monsieur Fabre had eaten theirs. Three men, a Prime Minister of France, the judge of one of the highest courts in the country, and the Public Prosecutor, lied, and admitted under pressure, when further denial was impossible, that they had trifled, deliberately, with the truth.

Of these three men who lied and were forced to admit it, the most pitiful figure is that of the Procureur Général, Monsieur Victor Fabre, for he was the victim of a system. Professional secrecy in France has become such a fetish that it has developed, from a means of preventing doctors, lawyers, and professional men generally from revealing unduly the secrets of those who have confided in them, into a kind of Mumbo-Jumbo idol which protects and cloaks untruth. Now that we know that Monsieur Victor Fabre told a deliberate lie and made a misleading half-disclosure of the truth to the Parliamentary Commission which examined him in 1912, we can only be sorry for the man and amazed at the system which made such juggling with the truth seem justifiable to him. In March 1911 Monsieur Fabre, under pressure from the Prime Minister, Monsieur Monis, had ordered Judge Bidault de L’Isle to postpone the trial of Rochette. In 1912 either just before or just after his examination by the Parliamentary Commission, Monsieur Victor Fabre had handed to the Minister of Justice, who was then Monsieur Aristide Briand, the written statement which Monsieur Barthou read in the Chamber of Deputies immediately after the murder of Monsieur Gaston Calmette in 1914. This statement told the truth which he concealed from the Commission of Inquiry two years before. Monsieur Fabre had written his statement immediately after political pressure was brought to bear on him; he knew, of course, of its existence when he was examined in 1912. And this is how he spoke of it when he was re-examined in 1914. “I was surprised and afflicted when I learned that a journalist, two years after I had handed my statement to Monsieur Briand, had boasted of its possession and proposed to publish it. I didn’t believe this. I thought that it was quite impossible that he should be in possession of my statement, that he could publish it, because I did not even know Monsieur Calmette by sight,

because I had not given it to him, because I considered the fact that the Minister of Justice had this statement in his possession rendered it inviolable. MY CONVICTION ON THIS POINT WAS SO STRONG THAT WHENEVER THIS DOCUMENT WAS MENTIONED TO ME I INVARIABLY STATED THAT IT DID NOT EXIST, AND THAT THERE WAS NO FEAR OF ITS PUBLICATION.” In plain English, Monsieur Victor Fabre admitted that he had suppressed the truth, because he was convinced that the truth would not be known. “I made this declaration to Monsieur Caillaux, who appeared very uneasy at the thought that this document might be published. I consider that I HAVE THE RIGHT AND THAT IT WAS MY DUTY TO SAY WHAT I DID. I CONSIDER THAT I HAD NO RIGHT TO GIVE UP MY SECRET, FOR THIS DOCUMENT WAS MINE, I COULD DO WHAT I LIKED WITH IT, I COULD SUPPRESS IT OR TEAR IT UP. TO EVERYBODY BUT MYSELF THE DOCUMENT WAS NONEXISTENT.”



Agence Nouvelle—Photo, Paris

MONSIEUR BARTHOU

After this pitiful confession Monsieur Fabre, as a weak man will, accused everybody he could think of of breaking faith with him. “Unfortunately,” he said, “everybody had not the same reserve (this is an exquisite word to have chosen) that I had. I do not know how my statement passed from Monsieur Briand’s hands into other hands. I do know that the use which was made of it was a deplorable abuse.” It was indeed.

We know now how Monsieur Fabre's written statement came to be read in the Chamber of Deputies, and we can guess how Monsieur Calmette and other journalists knew of its existence, and of its contents. Monsieur Briand had kept the damning document while he was Minister of Justice. When he resigned, Monsieur Briand, as his duty was, passed the document on to the new Minister of Justice, Monsieur Barthou. Monsieur Barthou, realizing what a political weapon the statement might become, kept it and used it. Whether he showed it to journalists, I do not know, but we know from the evidence of Monsieur Fabre as far as faith can be placed in this evidence after his own confession, that only two copies of the document were in existence. The one Monsieur Fabre kept in his own possession until he handed it over on March 20, 1914, to the President of the Commission of Inquiry, the other, on which he wrote "Copy for the Minister of Justice," he copied out in his own handwriting and handed over to Monsieur Briand. With regard to the contents of the document nobody now denies that they were true.

On March 20, 1914, Monsieur Fabre no longer pleaded professional secrecy, no longer hesitated, but made this direct statement: "It is perfectly correct that I received an order from the Prime Minister, Monsieur Monis, to secure the postponement of the Rochette case until after the holidays. It is perfectly true that I insisted on Judge Bidault de L'Isle postponing the case. It is perfectly true that I told him why. If I had gone to Judge Bidault de L'Isle and said, 'Maître Maurice Bernard is not very well. Put the case off for a year,' Judge Bidault de L'Isle would have told me that there was insufficient reason for the postponement. I sent for Judge Bidault de L'Isle, I told him of the interview which I had had with the Prime Minister, and of the order which had been given me. I explained the situation to him, I adjured him if he had any affection for me to grant what I asked. He ended by giving way." Then this unfortunate man, whose chief fault is weakness, who trembled for his position, and who allowed the Prime Minister to dictate to him in consequence, attempted to explain his act away. He said that even if the case were postponed, even if, as duly happened, all legal procedure against Rochette were cancelled, Rochette would not enjoy impunity. At present he is certainly enjoying it, and he has answered this statement of poor Monsieur Fabre more simply and conclusively than anybody else can do. Monsieur Fabre had instructions and carried them out against his own wish, he said. He believed, and he believes now, that he

was obliged to obey them. Under examination he was asked why he took the Prime Minister's orders, why he did not go to his direct superior, the Minister of Justice, Monsieur Perrier. His answer shows the curiously direct influence of personality in the government of France. It shows that Monsieur Fabre considered that the Prime Minister's order overrode anything that the Minister of Justice might or might not find to say. And as we know now that Monsieur Monis gave this order for the postponement of the Rochette trial because Monsieur Caillaux told him to, as we know that Monsieur Caillaux told him to give it because Rochette's lawyer, Maître Bernard, might say things in court which would be disagreeable to the Government, might make disclosures which would get the Government, and more especially Monsieur Caillaux himself, into trouble, we realize that the real ruler of France on March 2, 1911, was Henri Rochette, who fled the country under sentence for fraud.

Monsieur Caillaux himself had an interview, or rather two interviews, with Monsieur Fabre, who called on him on January 14, 1914, at seven o'clock in the evening. They spoke of the Rochette affair, and (this was the second interview) Monsieur Caillaux mentioned the order which Monsieur Fabre had received. "He asked me," Monsieur Fabre said to the Commission of Inquiry (and he had asked me the same question on the occasion of my former visit), "whether it were true that a copy of my statement of my interview with Monsieur Monis existed and could be published. *I replied in the negative.* He insisted. He told me that he had information that a journalist was in possession of this document, and that he was afraid that it would be published. I told him that this was not possible, *that he need not be afraid of the publication of a document which did not exist.* I said this because I was convinced, as I was convinced up to the last minute, that this document would never be published and could not be published. I preferred not to reveal my secret so as not to upset Monsieur Caillaux (*'ne pas attrister d'avantage Monsieur Caillaux'*), who was quite upset enough by the campaign against him. I had the right to speak as I did because this document was my property, and because it was useless for me to reveal its existence as it was not to be published."

But the further evidence of Monsieur Victor Fabre, when, in March 1914, he told the whole truth at last, shows that the orders he received really did come from Rochette and came almost directly from him. After his

interview with Monsieur Monis, the Procureur-Général had a conversation with his assistant, Monsieur Bloch-Laroque, whose title (Substitut) does not exist in England. Monsieur Bloch-Laroque and Monsieur Fabre talked over the fact that Monsieur Maurice Bernard had deliberately threatened Monsieur Fabre, that he had said, before leaving the room and banging the door behind him, that “if Monsieur Fabre did not obey, it would be the worse for him.” It is surely unheard of, that Rochette’s lawyer should be able to have terrorized the French Procureur-Général with such language, but Monsieur le Procureur-Général Victor Fabre told the Commission of Inquiry, “I was well aware of the influence and knew the friends of Maître Maurice Bernard, and I knew that he did not say what he said without knowing that his words would receive sanction in high places.” Maître Maurice Bernard is an intimate friend of Monsieur Caillaux, and was his lawyer in his divorce case.

We may resume this inner history of a series of disgraceful happenings in the history of France in comparatively few words. Rochette has made enormous sums of money in a very few years, and the French authorities believe that he has swindled and is swindling the public. There are difficulties in the way of proving this immediately. The authorities connive at the substitution of a man of straw for a proper prosecutor so as not to allow Rochette to slip through their fingers, and he is arrested. By every means in his power, and the French legal code gives him many opportunities, Rochette drags the case against him from court to court, and succeeds in avoiding final judgment for over two years and six months. Then, when a definite trial appears inevitable, the Prime Minister, acting under advice from the Minister of Finance, who has allowed himself to be terrorized by Rochette—to put the mildest possible construction on the reason for his conduct—brings influence to bear on the magistrature, and postpones the trial again. Rochette in the meanwhile has left France, and has continued to prosecute his financial schemes. There we have the Rochette case in a nutshell. There also we have its intimate connexion with the Caillaux drama, for the Minister of Finance who, for more or less personal reasons, persuaded the Prime Minister to order the postponement of the trial, was Monsieur Joseph Caillaux.

How personal were Monsieur Caillaux’s reasons for advising Monsieur Monis to secure the postponement of the Rochette trial were shown in a

letter from Rochette himself, which he sent to the President of the Commission of Inquiry on March 27, 1914. The letter was a very long one. In it Monsieur Rochette told the story of how he had terrorized the Minister of Finance, Monsieur Caillaux, into working for him. Rochette had compiled a volume of 120 pages on the history of financial issues made in France and floated on the market from 1890 to 1910. In these tables it was shown that French investors had had heavy losses amounting in all to four hundred million pounds sterling. The book was likely to create very serious difficulties for Monsieur Caillaux, the Finance Minister, who had been responsible for permitting many of these issues of stock, and it was Rochette's determination that his lawyer should read these figures in court on the plea of showing that if some of his issues had brought losses to the French investor other issues under higher authority than his own had done the same thing on a larger scale. The importance which Monsieur Caillaux attributed to this book is proved by the fact that he spoke of it to Monsieur Monis as a political reason for doing what Rochette wished, and postponing the trial. It is interesting to note that there are actually thirty-eight prosecutions waiting Rochette's return to France.

The history of the Rochette case shows unfortunately that Madame Caillaux's revolver shot was not the only crime in the full story of the Caillaux drama. There is another criminal whom a higher court must try than the Paris Court of Assizes, there is another victim besides Gaston Calmette. The criminal is expediency, expediency which allows men in the positions of Prime Minister, of judge, of Public Prosecutor to tamper with fact, to mislead and to lie in the belief that they "have the right" to do so. The victim whom they murdered is The Truth.

XI

ABOUT FRENCH POLITICS

PERHAPS the most difficult part of the life of France for an Englishman to understand is her politics. To give with any thoroughness at all even a slight idea of the French political parties and the opinions for which these parties fight, would require another volume quite as big as this one. But the object of this chapter is not an essay on the intricacies of party politics in France, nor do I propose to attempt a detailed explanation of the differences of opinion which divide the parties. My object is rather to give the reader some insight into the clockwork as it were of the inner political life of France, so as to throw more light, within the measure of my power with the lamp, on the Caillaux drama, which is such a salad of passion, politics, and finance.

It is, as I have said, extremely difficult for an English reader to realize what French political life really is, for it is so very different from political life at home, and though it might more easily be compared perhaps to the political life of the United States it differs in many ways and in many essentials from that also. But French political life does resemble the political life of America in one way, in contrast to the political life of England. Its very foundation is familiarity, and the French politician is not generally respected by his compatriots as one who knows more than themselves. He is admired as one who has more cunning. The French used to take pride in the familiarity with which they treat their politicians, for familiarity such as is the mainspring of France's politics used to be called *Egalité*, and is still one of the words, in this disguise, with which the French politician loves to conjure, and succeeds in conjuring, votes out of an empty hat.

If I were asked to name the most powerful political class in modern France I should plump for the *marchand de vin*. The *marchand de vin*, the keeper of the little wineshop, with the zinc counter and the little tables with

their stone tops beyond it, which is the equivalent of the English public house, is quite the most powerful electoral agent existing in France, and he is recognized as such by every French politician. At election times, or for that matter, at any time, no French politician can afford to neglect him, and he controls votes without number in every town, every village, and every district throughout the length and breadth of the country.

So true is this that every Government is obliged to recognize the fact of the *marchand de vin*'s importance, and each succeeding Government is put in the curious position, as it succeeds the Government before it, of being obliged, on the score of public morality, public health, and public well-being to discourage the consumption of strong drink in words, and to encourage it in act. There are laws in France which permit certain people to make and to sell alcohol. Governments from time to time have endeavoured to remove or to restrict the privileges which these manufacturers of alcohol enjoy, but they have never succeeded because the *bouilleurs du cru* as they are called, are much too strong for them and much too strongly backed. Each succeeding Government knows, or if it does not recognize the fact at first, the fact is very soon made clear, that everybody connected with the wine and spirit industry must be conciliated if votes are to be obtained, and retained, and although France has for a good many years now called herself a republic she is really a monarchy under the thumb of a despot, whose name is King Marchand de Vin, and who is only nominally under the control of Parliament. Parliament controls the *marchand de vin* nominally, perhaps, in France, but as the *marchand de vin* elects the members who form Parliament, as the *marchand de vin* controls and regulates the votes of the many-headed, the *marchand de vin* reigns, and will continue to reign supreme, for France will not stop drinking wine till England abjures beer.

To the observer who has the advantage of aloofness as his point of view, the thing which impresses more than anything else as the principal characteristic of French politics is their selfishness. This peculiarity is almost as remarkable, perhaps even more remarkable, than the curious complications of the many political parties. To begin with, in studying the parties the first thing which strikes one in addition to their number is the fact that they are all, with the exception of the Royalists and Imperialists who call themselves Conservatives, as advanced or more advanced than any party at all in either England or in Germany. The German Socialist, for

instance, of the reddest type, has tenets which, if he were a Frenchman, would probably make him vote with the very moderate Left, and Monsieur Millerand, who used to be looked upon as such a dangerous Socialist not very long ago is now considered by the Socialists themselves old-fashioned and reactionary, while Monsieur Briand is in French eyes a very moderate reformer, if he be considered a reformer at all.

But here I am beginning the impossible task of attempting to divide French politicians into parties, and explaining the views of these parties in plain language. I must not allow myself to be led away, by the Chinese puzzle fascination French party politics invariably exercise, to attempt this task. I could not succeed, for by the time this book is on the market French parties will no doubt have changed and shaken down again into other and different shapes, for French political combinations hold together as cohesive forces with little more certainty than the bits of coloured glass in the kaleidoscope. Every time a question of the least importance gives a turn to the handle, the parties of the day, the week, or the month before disintegrate and fall into other combinations of infinite shades of colour.

But we may talk of the selfishness of French politics, for this, unfortunately, does not change. In a country where politics are so mixed that the elector understands very little about them, it is not difficult to catch votes by arguments of another kind. Our business just now being with the Caillaux drama, it may not be a bad method of explaining how French politicians gain the authority to govern, by some sidelights on the election at Mamers of Monsieur Joseph Caillaux. Immediately after Madame Caillaux had shot the editor of the *Figaro* dead her husband resigned office. He was of course obliged to do this. Immediately after his resignation he announced that he intended to retire from public life entirely, and would take no part in politics in the immediate future. He had hardly made this announcement, which I mentioned on page 79, before he changed his mind, and announced that owing to the insistence of his constituents he would be a candidate for re-election when the general election took place, but that he would not canvass, and that his friend Monsieur D'Estournelles de Constant would canvass for him, while he himself would remain in the retirement demanded by the situation of his wife. A very few days after this second change of plans Monsieur Caillaux changed his mind once more and

determined to canvass Mamers. He has been re-elected. It is not uninteresting to glance at the reason why.

Any foreigner might have imagined that there was no possible chance for any body of electors to re-elect Monsieur Joseph Caillaux as their representative. The fierce light which played so recently and so unsparingly on his political career had scarcely shown him to be a desirable member of Parliament. It would be difficult, one would think, for Frenchmen to vote for the man who had made such a number of mistakes, and who had been connected, as Monsieur Caillaux was connected, with the negotiations disclosed in the chapters in this volume on Agadir and the *affaire* Rochette. But the foreigner would not realize, and Monsieur Caillaux realized, very conclusively, that the peasants of the Sarthe district cared little or nothing for the revelations in the Paris Press, and cared a great deal for Monsieur Caillaux's personality.

To anybody who has not lived among them, the ignorance of the French peasant in the country districts on the affairs of his country must be incredible. How crass this ignorance can be may be imagined from the absolute fact that in many parts of Monsieur Caillaux's constituency the electors, who have returned him to the Chamber of Deputies again, are absolutely convinced that Monsieur Calmette is not dead at all, and that the story of his murder by Madame Caillaux has been put about by Paris journalists merely to do Monsieur Caillaux harm. The peasants of the Sarthe believe, in many cases, that Monsieur Calmette is still alive, and is keeping out of the way, in hiding somewhere. "Tout ça, c'est des histoires de Parisiens" is the popular view. The distrust of the townsman in general, and of the Parisian in particular, which prevails in many French country districts and in Normandy and Brittany even more than elsewhere, was a remarkable asset for Monsieur Caillaux when he asked for the suffrage of the Sarthe peasantry.

Some idea of this asset and the way in which he used it can be obtained from his letter to his constituents in which he thanks them for electing him. The letter, which is dated "Mamers, May the 1st," has been posted on the walls all over the constituency. "My dear friends," writes Monsieur Caillaux, "How can I express my gratitude, and my emotion? In spite of the pressure exerted by the whole strength of the reactionary parties, in spite of the money which flowed like water, in spite of an unqualifiable campaign of

calumny and of lying, the constituency of Mamers has given me a majority of nearly 1500 votes over my opponent.”

“You have avenged your deputy for the odious attacks and the defamation of which he has been the object. You know that their origin was his love of peace, which was made clear in the treaty of November 4, 1911 (this is the Agadir treaty), and his wish to make rich men contribute more freely to the expenses of the country.

“Once more I thank you from my whole heart. More than ever I will be the untiring defender of your rights and of your interests. More than ever I will do my utmost to ensure to France and the Republic order, stability, and reform. Believe, my dear friends, in my affectionate devotion to your interests.

“J. CAILLAUX.”

Does not this letter breathe with surprising clarity humbug of the broadest? Whatever one may think of Monsieur Caillaux, no one has yet accused him of poverty, and his opponent in the Sarthe was quixotic enough to refrain from much mention of the Caillaux drama at election time, so that the campaign of calumny was purely imaginary. And, to top everything, when he did mention it and the Rochette case in a final poster, Monsieur Caillaux challenged him to a duel, for “maligning the electors of Mamers!” The duel was “fought” before journalists, photographers and the cinematograph. The snapshots show that Monsieur Caillaux fired in the air, and his opponent fired into the ground. So everybody laughed, and “honour was satisfied.” But Monsieur Joseph Caillaux is looked upon *as a victim* in the Sarthe! The peasants there understand nothing and care less about foreign politics. They approve Monsieur Caillaux’s opposition to three years’ military service, because Germany is far away and is only a name to them, and they prefer their sons to be called away from the land for two years instead of three. They approve Monsieur Caillaux’s suggestion of taxing the rich, because they have never troubled to understand it, and it sounds good to them, and most of all, and above all, they approve of Monsieur Caillaux because he is rich, powerful, and generous in his constituency.

It must be understood that I am using Monsieur Caillaux and the Sarthe as an example of the conditions which prevail in many parts of France. The French elector in many of the country districts is decidedly more ignorant than one could believe possible, and in almost all parts of the country he is selfish. Here, again, I may be allowed to quote some of the electioneering literature of the Sarthe to show the kind of benefits which appeal to French electors. Political considerations, benefits to the nation, national defence, big projects—"Tout ça c'est des balivernes"—is the French peasant's verdict. A candidate who is wise will, if he wants to gain favour in a constituency, tell his constituents as little as possible about political measures and as much as possible of the things concerning them directly which he has done in the past, and which he hopes to do in the future. The drainage of a village will gain more votes than the most important law imaginable for the benefit of France. Monsieur Caillaux, or rather his friends, reminded the people of the Sarthe that Monsieur Caillaux had obtained for them heavy subventions from the Pari-Mutuel for the support of a hospital, that in the last few years he had secured over £4000 for them from the Government for local interests, that all kinds of institutions had been helped, that the nuns had been well treated (oh! Monsieur Caillaux!), that this village had a new pump, and that one a new road, in a word, that owing to the power of Monsieur Caillaux, and the cleverness of Monsieur Caillaux, and the influence of Monsieur Caillaux, the peasants of La Sarthe had obtained, and were likely to obtain, greater advantages than the peasantry of any other part of France as long as he remained their member.

These were the reasons which caused Monsieur Caillaux's re-election, and these are the reasons which militate above all others in France at election times. The natural result of elections conducted on the narrow-minded basis of selfish advantage is that the deputies, when they are elected, are as selfish as their constituents' reasons for electing them have been. I suppose every country has the government which it deserves. The French are very certainly governed by a body of men who do not neglect their own interests. I do not mean to imply that they do neglect those of their country, but I do say that the conservation of power and their own welfare take the first place in their minds, and that is so certain that "L'Assiette au Beurre," which expression we may translate "The Cream Jug" is dipped into very freely by members of all parties who have access to it, in every French Parliament. The principal vice of the government of

France, to my mind, is the payment of deputies. The class of man is growing in France who serves his country because his country pays him six hundred pounds a year to do so, and because there are plenty of pickings over and above the annual stipend of £600. A French deputy makes very free use of his right of free travel on all the railways, supplies his family and friends with free stationery, economizes, through his influence, in countless little ways, money which the ordinary citizen has to spend from the fruits of his labours. The French politician is essentially a professional of politics, places party considerations above all others, because these keep him in power and allow him access to the “cream jug,” and is not in the least ashamed of using his influence for personal benefit either directly or indirectly.

I do not think it unfair criticism to point out that it is this mentality which makes for such corruption in French politics as we had to deplore at the time of the Panama scandal, for such corruption as was seriously suspected during the progress of the Rochette case, and for the undue use of influence which is considered quite natural on the part of individual members of the governing bodies of France, by which I mean not the Government alone, but also the Chamber and the Senate, which undue use of influence culminated in the shameful apotheosis of the scene in the room of the Prime Minister which resulted in the postponement, with its consequences, of the trial of the financier Rochette. The inner history of the Caillaux drama differs in details from the inner history of other French scandals, but it differs very little from them in essentials. In every case when one of these unsavoury ulcers on France’s fair name festers and bursts we find the same pus in it. The root of all the evil is the inherent selfishness of the French character, and I am not disinclined to believe that there is a great deal of inherent dishonesty too at the root of the evil. A Frenchman will often refuse to keep a promise in commercial matters because the man to whom he made it can produce no *written* proof that the promise was given. Business men will refuse business interviews without the presence of a witness. There are severe laws in France compelling, under severe penalties, the restoration to the unknown owner through the police authorities of anything of value found lying about. But ask anybody who has picked up money in the street what he would do with it if nobody saw him pick it up. The Frenchman is frank. He will laugh and will maintain his right to pocket this find, because if *he* loses anything he knows that the

person who finds it will pocket it if he dare. I have seen respectable Frenchmen swindle other respectable Frenchmen out of a halfpenny in a Paris omnibus. It is not the halfpenny that is important, it is the mentality which underlies the theft. It may seem a far cry from the theft of a halfpenny to the Rochette scandal, but you can trace the connexion very easily if you care to think the matter out. And if you think it out with care, you cannot fail to see that this basis of selfishness, permeating upwards through every vein of French private, public, and political life, has been directly responsible for the Caillaux drama and for the results which that drama has had and will have on the life of France in the future.

XII

BEFORE THE LAST ACT OF THE DRAMA

A FRENCH criminal trial is in every respect as unlike a criminal trial in England as can well be imagined. To begin with, if the Caillaux drama had been English, if the wife of an English Cabinet Minister were at the present moment in Brixton gaol awaiting her trial because she had walked into Printing House Square and shot the editor of the *Times*, this book, by the mere fact of its appearance, would send me and the publisher to prison for contempt of court. In France, not only is there no contempt of court in comment on a case sub judice, but the preliminaries of a great criminal trial are conducted in the open. Ever since the murder of Monsieur Gaston Calmette the Paris papers have contained long daily digests of the evidence collected on the details of the murder, and this evidence has been commented on every day, and with the utmost freedom, by the Paris newspapers. There is a special magistrate known as the *juge d'instruction*, whose duty it is, if I may put it so, to try the case before it comes into court, and to hand to the judge who presides over the trial his opinion on the prisoner's innocence or guilt, his full reasons for that opinion, and the evidence in résumé which he has collected to enable him to form it. In other words, directly a crime has been committed, whether the supposed criminal be arrested or not, a *juge d'instruction* or examining magistrate is appointed, and from the moment of his appointment he takes entire charge of the case. The prisoner is entirely in his hands. That is to say, he disposes of her while she is awaiting trial, under certain rules and regulations of course, as he thinks fit. He may question her as often or as seldom as he wishes, either in his room at the Palace of Justice or in her cell, the only proviso being that he is not allowed to question her without the presence of her lawyer, and that at each interrogatory his sworn clerk, known as the

greffier, must be present to take down his questions, and the prisoner's answers, and at the end of each interrogatory to obtain the prisoner's signature at their foot. The examining magistrate's work is of course by no means confined to his examination of the prisoner. As soon as he has digested the first details and circumstances of the crime he has full power to summon and to examine anybody and everybody whom he considers likely to have any evidence to give which may help him in his judgment on the case.

So wide are the powers of an examining magistrate, that he may if he wishes arrest not only presumable accomplices but any unwilling witness. It has happened before now that a witness has preferred to remain away from the room of a French examining magistrate and has been sent for by him and brought under arrest to him to give evidence, and a witness who has signed an untrue statement in the examining magistrate's office is not unfrequently, when convicted of perjury at the trial, where he has repeated this evidence on oath, arrested in court. It sometimes happens, too, that witnesses contradict in court the evidence which they have given to the examining magistrate. If they do so they enjoy impunity, unless, they are proved to commit perjury in their contradiction, for evidence to a *juge d'instruction* is not given on oath. It happens very frequently too, in fact it almost always happens, that numbers of people for whom the examining magistrate has never thought of sending write to him that they have evidence to give, and desire to be heard. The prisoner and the prisoner's lawyer, even the prisoner's friends, are encouraged also to give the names of any people from whom they wish the examining magistrate to collect evidence. Practically therefore in a French criminal case the criminal is tried twice over, once by the examining magistrate, and a second time in the court of assizes before a jury. And the first trial is the more important of the two, because of the influence of the examining magistrate's report on the minds of the judge and of the jury, at the assize court trial. The examining magistrate has the right to acquit a prisoner without sending him or her for trial at all if he finds that there is no case.

It happens, however, comparatively rarely in practice, that a *non-lieu*, as it is called, is pronounced by the examining magistrate, as it is a very bad mark against the name of any *juge d'instruction* to allow a prisoner to be set at liberty without very conclusive proof of innocence. If there be the

slightest doubt the prisoner is always sent for trial. The benefit of the doubt is practically non-existent in the conduct of a French criminal case in its preliminary stages, and it may be taken as a fact that whereas a prisoner in England is considered to be innocent until guilt has been proved, the reverse is the French method, and a prisoner in France is considered to be guilty until conclusive proof of innocence has been given and accepted.

Another feature of the preliminary stages of a French criminal trial is the manner in which the evidence which the examining magistrate collects is made public as he collects it. The examining magistrate receives members of the Press during the days, weeks, and often months of his preliminary examination of the evidence, and to all intents and purposes the evidence which has been laid before him is put at their disposal for publication. It is very rarely indeed that an examining magistrate in France withholds any of the evidence he collects from the newspapers, and as each item is usually laid before the public, commented on at length, and frequently distorted in accordance with the views of the staff of the newspaper which reproduces it, the public try a case while it is in process of trial, and the newspapers criticise the examining magistrate's conduct of the long examination and deliver a verdict of their own before the jury have an opportunity of doing so. These methods form part of the legal code of France, and as such, open to criticism though they may be, are never criticised. The methods of preliminary trial of a French criminal case present of course this grave disadvantage, that every one of the twelve jurymen and the two supplementary jurymen before whom the case is tried, practically hear or read all the evidence before they see the witnesses and hear them in court, and practically have tried and have judged the case in their own minds, however impartial they may try to be, before they come into court to try and to judge it.

I have already mentioned the freedom of action which the examining magistrate enjoys in France. This is unlimited. An examining magistrate is hampered by nothing at all in his examination of the prisoner, or of witnesses for and against, except by the dictates of his own conscience. As it is human nature for a man to shrink from the acknowledgment that he has been mistaken, it is obvious that a French examining magistrate who starts with the idea that his prisoner is a guilty man or woman will do everything in his power, and his power has no limit except his own conscience, to

prove the guilt of his prisoner. He may, and often does, use dramatic methods to force a confession. He may, and often does, lie to the prisoner for the purpose of extracting a confession. He may, and often does, misreport to the prisoner evidence which has been given him so as to entrap a guilty prisoner, whom he can manage to convince that the game is up, into a full confession of guilt. There have been many cases known of abuse of this power. It has happened before now that a prisoner, accused of a crime of which he or she is perfectly innocent, has actually confessed to the crime rather than endure the mental torture of the examining magistrate's persistent cross-examination.

And in the hands of an unscrupulous man, even when that man honestly believes in the guilt of the prisoner he is examining, mental torture is not the only form of torture which may be inflicted. Of course there are no thumbscrews, rack, or water torture in existence in France nowadays, but there are other and more refined methods of coercion which an examining magistrate may use, and often does use, against the prisoner whose case is under consideration. Pathetic mention of these methods was made, I remember, during the trial of the motor bandits by one of the prisoners whom the court afterwards acquitted. All the small comforts which a prisoner (a *prévenu* is the French expression) may enjoy while awaiting trial rest entirely on the good or ill will of the examining magistrate, and he is paramount to permit them or to remove them, as his will or his fancy dictates. During these preliminary stages of the trial nobody has any right to interfere with an examining magistrate or to question his decision on any matter whatsoever. The prisoner's lawyer or the prisoner may of course protest, and the protest must be registered by the clerk, who is always present. But it rests entirely with the examining magistrate how much severity and how much leniency are shown to the *prévenu* while the preliminary trial proceeds.

Another thing which remains entirely at the examining magistrate's discretion is the length of this preliminary trial. He is free to conclude his examination when he wills. As soon as he considers that the evidence he has collected is sufficient to allow him to send the case for trial, and to hand his opinion on it, with the reasons for his opinion, to the judges, the date of trial is fixed. He may send in this opinion in a few days, he may take many months over it if he wishes, and though the imprisonment of a prisoner

before trial ranks as part of the sentence after conviction, an examining magistrate who has taken a very long time over his preliminary examination may inflict very serious hardship on a prisoner whom the assize court acquits at the end.

In the case of Madame Caillaux it is probable that the trial will come on in July or possibly even after the holidays, in September. It is in everybody's interest that the trial should not be heard too soon. The judges need time to probe every tittle of the evidence, the Government—though the Government will hardly dare to interfere, I think—will prefer the case to be heard when Paris is comparatively empty, and the defence will find in a long detention in Saint Lazare pending her trial a useful argument for mercy to the prisoner.

The work of an examining magistrate in France is conducted with a curious absence of formality. The prisoner or the witnesses come to his room in the Palace of Justice, and in the case of a prisoner the guards withdraw. The magistrate collects his evidence in a very conversational way. He chats with the prisoner and with the witnesses whom he calls, he interrupts them, he bullies them if he thinks fit, he allows them to speak or he reads them a lecture, exactly as he likes, he makes statements, and takes note of contradictions, and he frequently calls three or four witnesses together and allows them to discuss points in the case while he listens to the discussion.

This method, I may remark, is often a very fruitful means of getting at the truth. The absence of formality has often proved to be a great help to the course of French justice. The French law and English laws have very different ideas on the subject of evidence. To give an idea of what is considered perfectly relevant and perfectly admissible evidence in France, Madame Caillaux, during the course of her preliminary examination by Monsieur Boucard, the examining magistrate in charge of her case, made the following extraordinary request to him. "I am informed," she said, "that, in the opinion of the great surgeon Dr. Doyen, the life of Monsieur Calmette might have been saved after I shot him if he had been treated differently." Madame Caillaux's contention was that the doctors who attended Monsieur Calmette after she had shot him might have treated him in such a way as to ensure his recovery, and she asked the examining magistrate to call Doctor Doyen, who, after reading the report of the autopsy made by the sworn

medical experts after Monsieur Calmette's death, was of the opinion that the surgeons who attended him might have saved his life. Evidence of an equally irrelevant nature is considered perfectly admissible in any French criminal trial, and evidence as to character and motive very frequently admits in France of an immense abuse of the examining magistrate's time. In the Caillaux case, for instance, friends of the murdered man have been prolific with evidence to the effect that from their knowledge of Monsieur Calmette they consider it most unlikely that he would ever have printed the letters which play so large a part in the evidence for the defence, and the publication of which Madame Caillaux feared and anticipated.

An immense amount of time has been taken up already with the hearing of witnesses who had nothing to say except to report that somebody had told them something of which knowledge had come to him from the report of somebody else, and friends of Monsieur and Madame Caillaux as well as friends of Madame Caillaux's victim have been allowed to spend hours in the examining magistrate's office at the Palace of Justice making speeches on behalf of the prisoner or against her which were sometimes interesting, which were more or less convincing, but which very rarely formed any real evidence such as evidence is understood in England. And all the while the collection of evidence goes on it is published in the newspapers day by day and commented on at will. More than this, witnesses, after their examination by the examining magistrate, are interviewed in the newspapers, and columns of what they have said, often with very little bearing on the case at all, often the mere expression of opinion, are published. Sometimes the publication of these interviews gives curious results. There have been cases where a witness has said little of interest in the examining magistrate's room, and has been so effusive to a journalist afterwards that another visit to the examining magistrate has become necessary, and has secured evidence of value.



Agence Nouvelle—Photo, Paris

MME. CAILLAUX IN THE DRESS SHE WAS TO WEAR AT THE
ITALIAN EMBASSY ON THE EVENING OF THE MURDER

The mass of work which the preliminary examination in a big criminal trial entails may be gathered from the fact that the examining magistrate's opinion on the case when written out and handed into court to be read at the beginning of the trial is frequently of such length that it forms a volume by

itself and takes many hours in the reading. The judge who presides over the case has of course read the examining magistrate's opinion, and digested it very carefully before the case comes into court, and in France it is the judge who conducts a trial rather than counsel for the defence and for the prosecution.

During the preliminary examination of the Caillaux case, which finished just before this volume went to press, several unanticipated points arose. The reader, who has studied with any care the employment, given in the first chapter of this book, of Madame Caillaux's time on March 16, 1914, will have noticed that some hours of the afternoon were unaccounted for. A very bitter discussion on the employment of those hours, a discussion in which Monsieur Caillaux, Madame Caillaux, Monsieur Caillaux's friends, the *Figaro*, the public bank clerks, the keeper of the registry office where Madame Caillaux engaged a cook, the cook herself, Madame Caillaux's servants, her English governess Miss Baxter—in which all kinds of people were allowed to take a hand, raged for several days. It came about in the simplest manner. Madame Caillaux said that she went to the registry office and engaged a cook early in the afternoon. The keeper of the registry office said that Madame Caillaux had engaged a cook late in the afternoon. The cook herself didn't remember exactly at what time she was engaged. Madame Caillaux's chauffeur remembered when he drove her to the registry office, but his evidence is not considered incontrovertible because he is in Madame Caillaux's employ. Matters were complicated by the fact that Madame Caillaux had been to the Crédit Lyonnais and to her safe there. The strong room of the Crédit Lyonnais is officered by certain clerks who hand each person who goes down to the strong boxes a ticket, duly numbered, which is stamped with a mechanical dating stamp marking the hour and minutes at which it is issued. Madame Caillaux's ticket was marked five o'clock. She maintained that she had been to the Crédit Lyonnais an hour earlier, between four and five minutes past, and that she had been home before she went there. For several days, argument went on in the papers, in which all sorts of people took part, to show that Madame Caillaux had told the truth or had lied about the employment of her afternoon before the murder. This argument was mainly for the purpose of proving or of disproving premeditation or its absence. After several days' newspaper discussion, an examination of the mechanical stamp at the Crédit

Lyonnais proved that it was very unreliable and its use has now been discontinued by the bank.

One of the great difficulties in the task of the examining magistrate in securing really relevant and really useful evidence in a crime of this kind, is the French insistence on the need of and the right to professional secrecy. As I have pointed out in another chapter, while professional secrecy is in some cases a necessity, it is often distinctly antagonistic to the search for the truth. It is not unlikely that there might never have been any Caillaux drama at all if professional secrecy had not been invoked on another occasion. During Monsieur Boucard's examination he was informed by two members of Parliament that each of them had been told that Monsieur Calmette had been in possession of the letters, the publication of which Madame Caillaux feared so much. The examining magistrate very naturally wanted to know who had supplied this information, and very naturally wanted to question the informant. One of the two honourable deputies had given his word of honour as a lawyer, the other had given his word of honour pure and simple not to disclose the source of his information, with the result that their evidence is no evidence at all, and that on the other hand even if it be valueless the public and everybody interested has been led to believe that there may be a good deal in it. But what impresses the impartial observer more than anything else in connexion with the preliminaries for a criminal trial in France is their unfairness—the unfairness of the system—to the person who is to be tried. For instance, after Monsieur Calmette's death, the report of the autopsy made by the two medical officers of health usually charged with this duty, Doctor Socquet and Doctor Charles Paul, was handed by them to the examining magistrate and was, immediately afterwards, published *in extenso* in the public press. The examining magistrate had also received the evidence of the armourer, Monsieur Gastinne-Renette, and his employees on Madame Caillaux's visit to the shooting gallery, and her trial of the revolver she bought there. An enterprising newspaper secured a figure from the shooting gallery, marked it with the trial shots as Madame Caillaux had shot them, and published this picture opposite another one representing Monsieur Calmette, which was marked with the wounds inflicted according to the autopsy. Does it not seem an unheard of and unallowable crime against common sense and common decency that the public should be offered such evidence of premeditation by a newspaper while the case is still unheard?

Some idea of the evidence which is inflicted on the examining magistrate in a case of this kind may be formed from that given voluntarily by a young man named Robert Philippeau. Monsieur Philippeau stated with some solemnity that he knew nothing about the drama, that he did not know Monsieur Caillaux and that he had not known Monsieur Calmette. He had been in the Nord Sud (a branch of the Paris Tube) in a first-class carriage, one afternoon in the course of last winter. Two ladies sat on the seat immediately behind him. One of them said in his hearing, "She browbeat me, she laughed at me, she took him from me, but I have four of his letters, and one of them is one which he does not know I possess. I have shown these letters to Barthou, I have told him that I am going to use them. He neither advised me to do so, nor advised me not to. I will wait till they get to the top of the tree and then I will pull them down headlong." Monsieur Philippeau said that he looked at the lady who had spoken. He did not know her by sight, but when he saw the picture of Madame Gueydan-Dupré in the newspapers he had no further doubt that it was she who had spoken, and that she alluded to the letters of which we have heard so much.

To anyone who has ever seen in a Paris daily newspaper the reproduction of the photograph of anyone he knows, the value of this "evidence" is obvious. Madame Gueydan had no difficulty whatever in proving by the evidence of several intimate friends that she had never been in the Nord Sud in her life. And even if Madame Gueydan had travelled every afternoon all through the winter in the first-class carriages of the Nord Sud she would hardly have been likely to talk to a friend in a loud voice of private affairs of such importance, or to mention Monsieur Barthou's name in connexion with them.

With regard to these letters, it is not yet certain that they will be read in court, but it is to be hoped that the examining magistrate may succeed in obtaining possession of them for this purpose, for on the probability of their publication in the *Figaro*, and on Madame Caillaux's belief that their publication might occur, rests one of the principal pleas for the defence. In her examination on the motive for her crime before the examining magistrate, Monsieur Boucard, the prisoner was asked why she was so afraid at the idea of the publication of the two letters which Monsieur Caillaux had written to her in 1909 when he was still the husband of Madame Gueydan, as Madame Caillaux at that time was already divorced

from her first husband, Monsieur Léo Claretie. “These letters,” said the prisoner, “were intimate in nature, and I resented and feared the possibility of their publication. My situation and my reputation could be attacked by the help of these letters.” “That being so,” said Monsieur Boucard, “why did you give them back to Monsieur Caillaux?” “When he wrote them to me,” said the prisoner, “I was staying in the country with friends. So that I shouldn’t lose them, Monsieur Caillaux asked me to send them back to him, addressed to him ‘Poste Restante’ at Le Mans. I did this, and that is how Madame Gueydan was able to steal them from the drawer of his writing-table. Now that the scandal has burst,” she added, “I should wish these two letters to be put in with the other evidence on my case.” Monsieur Boucard told her (it should be understood that the whole of this conversation in the magistrate’s private room at the Palais of Justice was reproduced in full, immediately after it took place, in the Paris newspapers of April 22) that he had asked Madame Gueydan on three separate occasions to give him the photographs of these letters—which photographs had been taken and which she had, she admitted, deposited in a safe place—and that she had refused to let him have them. “I hope you will be able to get them,” said Madame Caillaux to Monsieur Boucard. “Their publication will show that they are not the improper letters they have been described to be, and I wish to renew my statement that in going to the *Figaro* office I had no intention of killing Monsieur Calmette. My object was to obtain from him the promise that he would not make use of the letters which Monsieur Caillaux had written to me, and I had intended making a scandal in case Monsieur Calmette refused.” The magistrate’s answer to this statement was published, with the statement itself, by the Paris newspapers of April 22.



Agence Nouvelle—Photo, Paris

M. JOSEPH CAILLAUX

I quote his answer from the *Petit Parisien*, a paper which has made every effort to try the case in its columns with impartiality, and without political bias. I quote it as a sidelight on the inherent peculiarities of the conduct of a criminal trial in France, quite irrespective of the impropriety of its being published at all. “Do not let us go back to a discussion on this

point,” answered the magistrate. “You will make nobody believe that when you went to get your letters back or to obtain a promise that they should not be published you lost all power of speech, and lost your head at the same time, to the extent of saying nothing and using your revolver.” “Madame Caillaux had been in the magistrate’s office for six hours,” says the *Petit Parisien*. “She appeared very tired.”

Some weeks before this extract from the examination of Madame Caillaux had appeared *Excelsior* published (on March 25, 1914) an extract from the letter Madame Caillaux had written to her husband and left with Miss Baxter, her daughter’s English governess, to be given to her husband on the evening of March 16 in case she did not return home before him. In this letter Madame Caillaux is said to have written, in reference to her conversation with her husband that same morning, “you told me that you were going to smash his face. I do not want you to sacrifice yourself. France and the Republic need you. I will do it for you.”

The mere fact that such details of the examination of a prisoner by the magistrate appointed to instruct the court which is to try her should be made known in the public Press and should be free for comment weeks before, and even months before the trial of her case in the assize court, calls for no remark. It speaks for itself. A prisoner in France who has been accused of any crime is tried by the public before the trial of the case begins. The jury cannot possibly come into court with impartial minds owing to this system, they cannot listen with open minds to the evidence which is laid before them in the court room, for they have read it all before, they have thought over it, they have discussed it with their families and with their friends, and with the best will in the world they have been unable to help forming an opinion of one kind or another. And there is another vice of French procedure which is well worthy of note. In a sensational case such as the trial of Madame Caillaux, the jury is subjected to direct influence. After it has been empanelled at the beginning of the trial the members of the jury return to their homes every evening. They are therefore, during the actual hearing of the case, liable to outside influence. Even more than this, the names of the twelve jurymen and of the two supplementary jurymen will certainly be published in the French newspapers with details about the men themselves and their professions, before the trial begins, and this of itself forms an abuse which must inevitably react on the absolute impartiality of a

jury, which should be a first necessity of any criminal trial in any country, for numbers of newspapers will tell them what they ought to do and what their verdict ought to be.

The procedure of a French criminal trial in the court of assizes in Paris is attended with considerable pomp. In the Caillaux case as in the cases of a sensational nature which have preceded it, the rush for tickets of admission to the trial will be enormous. Response to this demand for tickets to hear and to witness the trial rests entirely in the hands of the judge who presides over the proceedings. He is able to admit, to standing room behind the bench, such friends of his own as he cares to admit, and he decides on the number of tickets of admission to the body of the court, which are distributed to the Press. The body of the court is supposed to be reserved for the Press and for the witnesses. In actual fact, as every barrister in robes is by reason of his profession entitled to admission to the court, barristers overflow from the seats reserved for the Bar and crowd the Press benches and the witnesses terribly, and far too many tickets are invariably distributed to members of the detective force in plain clothes who become “journalists” for the occasion. The public who have no particular privileges are admitted to a small space at the back of the court, through a small door in the Palace of Justice which is set apart for the purpose.

In the trial of Madame Steinheil long queues waited all night for admission to this small enclosure, although the hundreds who waited knew beforehand that very few of them would get in, and in the Caillaux case we are likely to see similar strings of well dressed society folk subjecting themselves to the hardships of waiting all night in the streets for a few hours’ sensation. The assize court is presided over by the President and two assistant judges. These three men in all the mediæval glories of their red robes and quaint brimless caps, trimmed with ermine, sit at a long table on a platform at the upper end. The court-room is a long parallelogram with beautiful dark oak panelling and ugly green paper above it. The top half of the room, which is reserved for the court, the table with the *pièces à conviction* (Madame Caillaux’s revolver, for instance), the jury, and the Bar, behind which is the dock, is divided from the lower half of the room where the witnesses, the Press, and the public sit or stand, by an oaken barrier with a gate in the middle of it. Immediately in front of this gate, plumb in the centre and facing the table at which the judges sit, is the bar to which

witnesses are called. Witnesses, after they have given evidence, go and sit on the seats beyond the barrier till the end of the trial. A witness stands facing the judge, and has on his immediate right the prisoner's lawyers and above them the dock in which the prisoner stands. This dock has no door leading into the body of the court. The only entrance to it or exit from it is a door leading out to a room and the passage which conducts to the stairway leading down to the *depôt* or prison in the Palace of Justice. To the witness's left is the box with the jury, and on a level with the judge's bench and with the jury's box is the desk occupied by the Public Prosecutor, who wears the same imposing red, ermine-trimmed robes as those worn by the judges, and who prosecutes on behalf of the Government of France. As a matter of fact, however, in every French criminal trial there are two prosecutors. The French criminal system considers this right, but to any foreigner who has been present at a trial in France it must appear anything but that. For the presiding judge in a French trial is really a prosecutor as well. Before the case comes into court he has spent many hours over the opinion provided for him, in a lengthy document with countless appendices of evidence, by the examining magistrate, and from the very start of the trial the presiding judge takes the lead in the examination of the prisoner.

I was present in the Paris Court of Assizes throughout the Steinheil trial, and I shall always remember the painful impression which was made on me then by the judge's methods. I remember now the picture I saw of the eager little woman, dressed in black, pleading, protesting, discussing, admitting and contradicting by turn, and of the man in his judge's robes who argued hotly with her, told her, downright, time after time that she was guilty of the crime for which she was on trial, thundered out accusations, tried to wheedle her into damaging admissions, and thundered out the statement that she was not telling the truth. The judge in a French trial is not only a prosecuting counsel—he is rather a brutal one at that. Any impartial onlooker, if he be not a Frenchman, and be not therefore accustomed to the methods of the French court, cannot help realizing that the judge uses his power and his prestige as Brennus used his sword, and frequently hurls it into the scales of justice to the detriment of the prisoner. On the other hand, a French judge, who is enjoined by law on his honour and his conscience to use his best efforts to bring out truth at the trial, undoubtedly does so within the limits of human possibility.

But the work which a French judge has to do at a criminal trial is more than any one man should be allowed to do, for no man can both judge and prosecute. To begin with, his own opinion has been prejudiced, must have been prejudiced, by the opinion of the examining magistrate, which, whether he will or not, has influenced him. He examines all the witnesses, he examines the prisoner, and he cross-examines them. On the other hand he is forbidden to discuss the arguments after the counsel's speeches, either for the prosecution or for the defence (if he did so the whole proceedings would be void), and he does not sum up as an English judge is allowed to sum up. But the French judge in a criminal trial sums up at the beginning of the trial instead of after it. He has made a complete study of the *dossier*, which is to all intents and purposes a complete study of the brief for the prosecution and of the brief for the defence, he tells the jury the whole story of the crime with which the prisoner is charged, and tells them the facts on which the prosecution and the defence rely. The judge tells the jury, before it is given, of the evidence which will be called in support of the prosecution, and of the evidence which will be called by the defence in answer to it. He goes the length of explaining why the prosecution believes the prisoner to be guilty, and explains the facts and deductions on which prisoner's counsel base their defence.

The amount of apparently irrelevant argument which is permitted in a French criminal trial is enormous. The code does not allow it, for by Article 270 the presiding judge is ordered to exclude from the hearing anything that will prolong the trial without adding to the certainty of the result. In any trial which has aroused general interest this article of the code usually becomes a dead letter. The judge himself, the Public Prosecutor, the prisoner's counsel, the prisoner and the witnesses are all allowed immense latitude, are all encouraged to say all that they care to say at enormous length. The only people in court who do not talk are the members of the jury, and from the very beginning of the trial these men go to their homes every night, discuss the case with their friends and their wives, and read the newspapers daily, and the newspaper comment on the case which they are trying. Jurymen are not necessarily possessed of legal minds, and under such circumstances how can twelve ordinary men, however honest, and however impartial they may wish to be, keep their minds entirely free from outside influence.

I don't know that I have ever heard of a case in which a member or members of the jury have been known to have talked to witnesses, but I do not know, either, that there is anything to prevent any member of the jury discussing the case at night during the progress of the trial with a witness outside the precincts of the court. No man is infallible, but justice ought to be. Jean Richepin put the whole case against the French criminal trial in a nutshell when he sang "Quel homme est assez Dieu pour rendre la Justice?" The conclusions of a *juge d'instruction*, however capable the man may be, need not of necessity be infallible. As he has the power to let the prisoner go, the power to say that there is no case for the jury, it stands to reason that, unless he states a doubt, the mere fact that he has sent the prisoner for trial means that he believes in the prisoner's guilt.

The judge therefore starts a trial with the conviction that the examining magistrate thinks that the prisoner is guilty. This conviction must influence his conduct of the case. "Quel homme est assez Dieu pour rendre la Justice" under these conditions? Many Frenchmen have been of the opinion for a long time that the procedure of a French criminal trial needs reformation. Many consider that the judge's preliminary interrogatory of the prisoner and of the witnesses should be entirely suppressed, and should give place to examination and cross-examination by prosecuting counsel and the counsel for the defence. Many people think too that the *juge d'instruction* should be made to justify his *dossier* in open court and on oath, that he should be called to justify it at the witness bar instead of the present system of a formal reading by a clerk of the court which takes a long time and is always so gabbled that it is merely a formality.

Another reform in French criminal procedure which many Frenchmen think necessary is the suppression of the freedom of the jury during the trial. There is a curious disregard of rules and regulations during the details of a big criminal trial in France. There are witnesses who, in response to the judge's remark after he has asked the witness to swear to tell the truth without fear and without hatred, and to state name, address, and age, in response to the three words "Make your deposition" which give the witness a free head, behave just like racehorses when the starting gate goes up. Lawyer witnesses particularly have been known to make long speeches for the defence or for the prosecution on the plea of giving evidence, and there are many other similar abuses. It often happens, too, that evidence which

the examining magistrate has collected is never sifted at the trial itself. When the trial is over, when the Public Prosecutor, the counsel for the defence, and, if the prisoner has anything to say, the prisoner, have addressed the court, the jury retires to consider the verdict. There is something oddly, picturesquely, emphatic and impressive in the mechanism of this retirement.

Somehow or another the French have a peculiar knack of stage-managing anything and everything. No visitor on his first visit to Paris fails to remark the wonderful stage-management (I suppose I ought to call it landscape gardening) of the city. Look at the Tuileries Gardens when dusk is just closing in towards the end of a fine day. The whole place breathes the history of the last days of the Empire, and has the gentle melancholy of a Turner picture. Stop in the Avenue des Champs Elysées where the Avenue Nicholas II. intersects it. Look up the Avenue and down it. The Arc de Triomphe and the Place de la Concorde, which, when it ceased to be the Place Royale, held the scaffold of a king of France. Look out across the Seine, then turn and look behind you. The bridge which is named after a murdered Czar of Russia and the Invalides beyond it. Behind you the Palace of the Elysée, the home of the President of the third Republic, facing Napoleon's Tomb. At every turn in Paris, north, east, west, or south, you get signs of this half-unconscious national gift of staging effects.

The jury in a criminal trial in Paris does not, as a London jury does, melt into disappearance before the final verdict. There are a few solemn words from the judge, there is a rustle as the lawyers gather up papers and sit back, and then fourteen very ordinary, very weary good men and true, whose faces we had only seen in profile until then, rise in their places. Their white and tired faces shine suddenly a pasty yellow in the electric lamplight. The good men of the jury show us their backs and walk slowly behind the desk of the Public Prosecutor to a little door which we had not noticed till then, and which has just been opened. Through this freshly opened door we stare across the court up a flight of narrow stairs with red and grey carpets on them. The verdict will come, presently, down that flight of narrow stairs. The small door closes, and we wait.

As a rule a big criminal trial finishes late in the evening. Everybody is sick of it. For the sake of the prisoner, for the sake of the judge, for the sake of the jury, for the sake of the lawyers, for the sake of the public, every one

wants to get it over. Nobody wants yet another adjournment. So it is usually at night that one sits and waits for the verdict in a big Paris criminal trial, and although I have seen exactly the same scene, and endured exactly the same sensations many times, the scene has never lost its dramatic force, and the sensations are always new. A sense of relief comes first. We have seen the prisoner, in a state of semi-collapse as a rule, going out through the door of the dock to the room behind it, where, on this last evening of the trial, the prisoner is allowed to wait for the verdict which is to be rendered before her return. We feel the relief that one feels when the fighting is over, mingled with suspense and with pity for the wretched creature who is waiting and is wondering. We realize that we are hungry, and rush off to get a little food. We dare not stay to eat it, and return with it to court again. The appearance of the court-room has changed during the few minutes of our scamper to the buffet down below for sandwiches. We have brought them back with us, and other people are munching food, too, in the dust, the heat, the squalor of this room from which the majesty of justice has departed with the red robed tribunal, the jury, and the prisoner. There is a hubbub of excited talk and much discussion. Municipal guards forget to keep order and chat with us and with the barristers of the probabilities and possibilities of the verdict. Every now and then there is a hubbub of excitement and a sudden deathly stillness. The little door, beyond which we can see those red and grey carpeted stairs, has opened. The jury are returning! No, it is a false alarm. They are not quite clear on some formal point or other, and they have sent for the judge. After one or more of these alarms, suddenly, when nobody has expected it, the little door opens and remains open. The jury really are returning this time. We see them walk slowly down those narrow red and grey stairs, and file slowly into the box. Their faces tell us nothing, but we all try to read them. The presiding judge and his two assistant judges walk slowly in and take their seats, at the long table. On their right, the red robed Public Prosecutor who has followed them, stands at his desk, on their left the lawyers for the defence stand in their seats in front of the empty dock. The stillness which was broken for a moment while the court came in becomes something tangible, something quite painful now. It has a quality of the sensation one feels in a diving bell. Our eardrums tingle with it. Then the judge's voice breaks the strain. "There must be not the least noise," he says. "I will allow no demonstration of any kind, whatever the verdict may be." Somebody laughs, and is hushed down with indignant sibilance. We

know that there will be a demonstration whatever the judge may say. There has never yet been a French trial without one.

“Mr. Foreman of the Jury,” says the judge, “Be kind enough to let us know the result of your deliberations.” If possible the silence becomes greater yet. Then: “On my honour and on my conscience,” says the foreman of the jury “before God and before men, the answer is ... to all questions.” And pandemonium breaks forth. The answer to the questions has to be “Yes” or “No”. The jury may not amplify it. They will be asked, in the trial of Madame Caillaux, to decide whether there was murder, whether there was murder with premeditation or without it. They will be asked to state whether there are extenuating circumstances, or whether there are none. On these answers, on this simple “Yes” or “No” depends the fate of the prisoner. We see the judge’s mouth open and shut, we see his hand rise and fall, but we have heard no sound of his voice in the hubbub which the declaration of the verdict has let loose. Then there is silence again. The judge has ordered the prisoner to be brought in. The verdict is told her, and the sentence, if there is a sentence, is rendered.

This is the way in which the curtain will fall on the last act of the Caillaux Drama. Will it be a final curtain? And what will the jury’s answer be to the questions which will be put to them? That, no man can answer now. Madame Caillaux may of course be acquitted, though public opinion in Paris considers this exceedingly unlikely. She may be found guilty of murder with premeditation. The sentence decreed by the Code for this is death, and nobody believes in or anticipates the likelihood of such a verdict. If the verdict be “Murder without premeditation,” if the jury finds extenuating circumstances, the Code decrees a minimum of five years, either hard labour or confinement in a prison, and a maximum of ten years. There is also the possibility that a sentence may be passed of hard labour or imprisonment for life.

And beyond the verdict, beyond the sentence, what will the future of this woman and her husband be? That no man can answer either, but we all know that whatever happens, whatever the court decides, those shots from a revolver in the office of the *Figaro* on the afternoon of March 16, 1914, will never cease to echo in the lives of Joseph and Henriette Caillaux.

And in the echo, lurks the tragic essence of the Caillaux drama.

THE END



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